

PUBLICATIONS

—OF—

THE

Mississippi Historical Society

Edited by
FRANKLIN L. RILEY
Secretary

Reprinted 1919
BY
DUNBAR ROWLAND, LL. D.
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VOL. II.

OXFORD, MISSISSIPPI:
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THE HISTORICAL ELEMENT IN RECENT SOUTHERN LITERATURE.

BY C. ALPHONSO SMITH, A. M., PH. D.

The year 1870 marks an epoch in the history of the South. It witnessed not only the death of Robert E. Lee but the passing also of John Pendleton Kennedy, George Denison Prentice, Augustus Baldwin Longstreet, and William Gilmore Simms. In literature it was not only the end of the old but the beginning of the new, for in 1870 the new movement in Southern literature may be said to have been inaugurated in the work of Irwin Russell. I have attempted elsewhere to trace briefly the chronological outlines of this literature from 1870 to the present time. In this paper, therefore, I shall discuss not the history of this literature but rather the history in this literature.

When we compare Southern literature of ante-bellum days with that produced since 1870 we note at once certain obvious differences of style and structure. In the older literature the sentences are longer, the paragraphs less coherent, adjectives more abundant, descriptions more elaborate, plots more intricate and fanciful. In the newer literature the pen is held more firmly; there are fewer episodes; incidents are chosen to illustrate character rather than to enhance the plot; the language is more temperate; the pathos and humor more subtle; some fixed goal is kept in view and the action of the story converges steadily toward this end.

But apart from these stylistic and structural differences there are differences that appeal to the student of history equally as much as to the student of pure literature. Since 1870 Southern writers have begun to find their topics and their inspiration in the life that is round about them. They are resorting not so much to books as to memory, observation and experience. They are not rising into solitary and selfish renown; they are lifting the South with them. They are writing Southern history because they are describing Southern life. The writings of Irwin Russell, Sidney Lanier, Joel Chandler Harris, Miss Murfree, George W. Cable, Thomas Nelson Page, James Lane

Allen, Miss Grace King, Mrs. Ruth McEnery Stuart, and John Fox, Jr., are spreading a knowledge of Southern life and Southern conditions where such knowledge has never penetrated before. And though we call this literature Southern, it is neither sectional in its appeal nor provincial in its workmanship. This, then, is what I mean by the historical element in recent Southern literature.

It has long seemed to me that much of the immediate influence of *Uncle Tom's Cabin* both in this country and in England was due to the fact that the South could not show in all of its ante-bellum literature a single novel treating the same themes treated by Mrs. Stowe, but treating them from a different point of view. It was the first attempt to portray in vivid colors the social and institutional conditions of the South. None of our writers had utilized the material that lay ready to their hands. There was no story written in the spirit of *Marse Chan* or *Uncle Remus* which the South could hold up and say,

"Look here, upon this picture, and on this."

The reception accorded Mrs. Stowe's book in the South teaches a valuable lesson, and a lesson which Southern writers have for thirty years profited by. *Uncle Tom's Cabin* was met by bitter criticism, by argument, by denunciation, by denial, or by contemptuous silence. But the appeal made by a literary masterpiece, however deficient or faulty in its premises, is not thus to be negated. The true answer to *Uncle Tom's Cabin* and the most adequate answer that could be given is to be found in the historical note that characterizes the work of Irwin Russell and those who have succeeded him.

I wish to state, therefore, in somewhat broader terms than I have yet seen it stated, what seems to me the historical importance of Irwin Russell in American literature. His priority in the fictional use of the negro dialect has been frequently emphasized, but I wish to emphasize his priority in utilizing for literary purposes the social and institutional conditions in which he himself had lived. Skill in the use of a dialect is a purely literary excellence, but when a writer portrays and thus perpetuates the peculiar life of a people numbering four million, he is to that extent an historian; and Irwin Russell's example in this respect meant a complete change of front in Southern literature. He did not go to Italy for his inspiration as Richard Henry Wilde had done. You find no *Rodolph*, or *Hymns to the Gods*, or *Voyage to the*

Moon among his writings; but you will find that deeper poetic vision that saw pathos and humor and beauty in the humble life that others had contemned.

The appearance of *Christmas-Night in the Quarters* meant that Southern literature was now to become a true reproduction of Southern conditions. Our writers were henceforth to busy themselves with the interpretation of life at close range. They were to produce a kaleidoscopic body of fiction, each bit of which, sparkling with its own characteristic and independent color, should yet contribute its part to the harmony and symmetry of the whole.

I would not for a moment compare the genius of Irwin Russell with that of Chaucer or of Burns; and yet when Chaucer in the latter part of his life turned from French and Italian sources to find an ampler inspiration in his own England, the England that he knew and loved, he was but illustrating the change that Irwin Russell was to inaugurate in Southern literature; and when Robert Burns broke through the classical trammels of the eighteenth century and lifted the poor Scotch cotter into the circle of the immortals, he was but anticipating your own Mississippian in proving that poetry, like charity, begins at home. To the student of literature, there is a wide difference between the *Prologue to the Canterbury Tales*, *The Cotter's Saturday Night*, and the *Christmas-Night in the Quarters*; but to the student of history the poems stand upon the same plane because each is a transcript of contemporary life.

Irwin Russell represents, therefore, a transition of vital significance in our literature, a transition that had been partly foretold in the work of Judge Longstreet and Col. Richard Malcolm Johnston. There is as much local coloring in the *Georgia Scenes* and the *Dukesborough Tales* as in the work of Irwin Russell; but I do not find the same deft workmanship; I miss in the older works the sympathy, the pathos, and the self-restraint that enable Irwin Russell to be local in his themes without being provincial in his manner.

I do not say that the poet or the novelist must never revert to past history or to historical documents for his topics. His own genius and taste must be his surest guide to both as to topic and to treatment; but I do say that a nation is unfortunate if the builders of its literature invariably draw their material

from foreign sources or from the history that was enacted before they were born.

"I have no churlish objection," says Emerson in his *Essay on Self-Reliance*, "to the circumnavigation of the globe for the purposes of art, of study and benevolence, so that the man is first domesticated, or does not go abroad with the hope of finding somewhat greater than he knows____ The soul created the arts wherever they have flourished. It was in his own mind that the artist sought his model. And why need we copy the Doric or the Gothic model? Beauty, convenience, grandeur of thought, and quaint expression are as near to us as to any, and if the American artist will study with hope and love the precise thing to be done by him, considering the climate, the soil, the length of the day, the wants of the people, ... he will create a house in which all these will find themselves fitted, and taste and sentiment will be satisfied also."

The historical element, therefore, of which I am speaking is not synonymous with the historical novel. The critics apply the term historical novel to those novels that attempt to reproduce the past. These novels are retrospective and essentially romantic. In the work of Sir Walter Scott this form of literature attained its florescence. But I contend that while the historical novel may have a genuinely human interest, its value as history is almost inappreciable as compared with the historical value of the literature that portrays contemporary life. We do not study ancient history in Chaucer's *Legend of Good Women*, but there would be a deplorable gap in our knowledge of fourteenth century England if *The Prologue to the Canterbury Tales* had never been written.

A hundred years from now Dickens' *Tale of Two Cities* will not have the historical significance that *David Copperfield* will have; because the *Tale of Two Cities* is based on records that are accessible to all students of the French Revolution. It is not an interpretation of life at first hand; it is an interpretation only of books. Then, too, historical investigation is even today far more accurate and scientific than when Dickens wrote. But *David Copperfield*, which the critics have never called an historical novel, has an historical element that time cannot take away, for it is the record of what an accurate observer saw and felt and heard in the first half of the nineteenth century. The historical novel, therefore, in the current acceptation of the term, contributes nothing to the sources of historical study, though it does

popularize history and thus help to prepare an audience for the scientific historian.

Now, the South has produced her full share of historical novels. From *Horse-Shoe Robinson* in 1835 to *The Prisoners of Hope* in 1898, Southern writers have shown themselves by no means insensible to the literary possibilities latent in our colonial and revolutionary history. But it was not until 1870 that the South may be said to have had a school of writers who, while not neglecting the historical novel proper, began to find the scenery and materials of their stories chiefly in local conditions and in passing or remembered events. Much, it is true, has been lost to our literature, but much has been saved.

It has often been said that the new movement in Southern literature was due to the influence of Bret Harte's works, but such a statement hardly deserves refutation. The cause lies deeper than this. The events of 1861-65 not only broke the continuity of Southern history but changed forever the social and political status of the Southern states. The past began to loom up strange and remote, but "dear as remembered kisses after death." Men seemed to have lived a quarter of a century in four years. They moved as in a world not realized. Now it is just at such periods that literature finds its opportunity, for at such periods a people's historic consciousness is either deepened or destroyed, and this national consciousness finds expression in historical literature.

The South, then, is slowly writing her history in her literature. Hardly a year passes that some new state or some new period does not find a place in the onward movement. Only in the last year, hundreds of readers who care nothing for formal histories have pored over Mr. Page's *Red Rock* and learned for the first time the inside history of Reconstruction; in the pages of Miss Murfree's *Story of Old Fort Loudon*, they have seen the heroism with which the Tennessee soldier won his state from the wilderness and the Indian; in Miss Grace King's *De Soto and his Men in the Land of Florida*, they have followed the discoverer of the Mississippi on a journey as marvelous and romantic as the fabled voyage of Jason; in *The Kentuckians* of John Fox, Jr., they have read again of that undying feud between highlander and lowlander that has found expression in more than a hundred English and Scotch ballads; in *Chalmette* of Mr. Clinton Ross, they have stood again with Jackson on an immortal battlefield; in *The Wire Cutters* of

Mrs. M. E. M. Davis, they have witnessed a hitherto unexplored region, that of West Texas, added to the growing map of Southern literature; in *The Prisoners of Hope*, by Miss Mary Johnston, they have heard the first mutterings of insurrection under the colonial tyranny of Governor Berkeley, —mutterings that a century later were to be reinforced by the pen of Jefferson and the sword of Washington. And these books mark the record of but twelve months.

Need I say that the significance of this historical movement in our literature is vital and profound for every man and woman before me? or that it merits the earnest consideration of every historical society organized to preserve and perpetuate the facts of our history.

Let me remind you that the literary significance of the Civil War is as noteworthy as its purely historical significance. That struggle meant far more to the South than to the North. To the North it meant the preservation of the Union and the abolition of slavery. To the South it meant decimated families, smoking homesteads, and the passing forever of a civilization unique in human history. But LITERATURE LOVES A LOST CAUSE, PROVIDED HONOR BE NOT LOST. Hector, the leader of the vanquished Trojans, is the most princely figure that the Greek Homer has portrayed; the Roman Virgil is proud to trace the lineage of his people not back to the victorious Greeks but to the defeated Trojans; the English poet-laureate finds his deepest inspiration not in the victories of his Saxon ancestors over King Arthur but in King Arthur himself, the fated leader of a losing cause. And so it has always been: the brave but unfortunate reap always the richest measure of literary immortality.

In conclusion, I believe that in the organization of the Mississippi State Historical Society and in the beneficent work that it has wrought during its career of nine years, I see another indication of that growing historic consciousness without which we cannot stand unabashed before the bar of future history. "Deeds of prowess and exalted situations cannot of themselves" says Schlegel (*History of Literature*, Lecture I) "command our admiration or determine our judgment. A people that would rank high in our esteem must themselves be conscious of the importance of their own doings and fortunes." The invaluable work that is being done by this Society for the history of Mississippi is a part of that larger movement of which I have spoken. Both testify to the advent of that historical spirit which "cannot be

gotten for gold, neither shall silver be weighed for the price thereof." If I read aright the signs of the times, the new century will not have been many years old before the history of the South will be enshrined not only in annals and chronicles but in the living letters of a nation's song and story.

IRWIN RUSSELL—FIRST FRUITS OF THE SOUTHERN ROMANTIC MOVEMENT.

BY W. L. WEBER.

So wide is the connotation of the word Romanticism, we may make up almost any conceivable definition and be sure we have respectable authority in agreement with the view we have taken. The fault to be found with the current definitions is that they stress the source, at the expense, of the character of that influence which transformed "the age of prose and reason" into the "Renaissance of Wonder." The influence to be stressed in the use I shall wish to make of the word Romanticism is protest against the settled, conservative, classical order of things. Secondly, it will be remembered that the source of much of the literary material used by the protestants is to be found in the remote past—remote whether in time or in charge of mental attitude.

In order to be able to throw a clearly defined portrait of Irwin Russell on the canvas of Southern literature, it will be necessary rapidly to review the main outlines of this Romantic movement in the development of English thought a period which may be shown to be the prototype of our own after-the-war literary life.

We shall not go into details. First we should recall to mind the main literary currents of English thinking from the time of Dryden to the end of the dictatorship of the great Cham himself. It will be readily remembered that fashion in literature had changed soon after Shakespeare's death and his native wood-notes wild were forgot for a time. The age of prose and reason followed. Self-consciousness was a characteristic note of the Augustan, the eighteenth century literature. Narrowness of imagination, and faithfulness in copying made up the main classical elements in many an English poet under the regime of Formalism.

"Back to nature!" was the rallying cry of a protest against this formalism—an inarticulate protest which culminated in the Romantic movement. Under the leadership of Dryden and for more than a century after him, canons of

literary art based on classical models had almost undisputed sway. Aristotle filtered through Horace and Horace diluted by Boileau were prescribed by doctors who would correct and amend English speech and literature. From these masters were drawn rules so minute and so inflexible as to put to the death budding originality by the demand for "correctness." If the poet were moved to describe pastoral scenes, he must needs go to Theocritus for the names of his characters, to Virgil for the contour of his scenery. But all this classicism was counterfeit. It was "more Latin than Greek, and more French than Latin." The classical poet, as he misnamed himself, followed with slavish persistence the creed which he had adopted. It was an accepted law that "the best of the modern poets in all languages are those that have the nearest copied the ancients." He would have nothing of country life. Rough and irregular scenery were distasteful to him. Mountains he described by Gothic—his pet term of opprobrium. Scenery as well as thought must conform to the level. "Decent conformity," then, characterized the Augustan age and enthusiasm had no place in the age of Dryden and of Pope.

Some of the characteristic features of the Romantic movement may be readily got at, by prefixing a negative to the qualities of the classical school. The country, out door life, rugged mountains, folk-songs, ballads in every form, the picturing of English people in English scenery were used as subject-matter—in other words, the telling what the writer had himself seen and, therefore, what he really knew, instead of what he had read. It was this reaction against formalism which produced such men as Chatterton, Burns, Wordsworth, Coleridge, Byron, Scott.

It is not within the purpose of this paper to give a full list of the writers who may be said to be the forerunners of this movement which dominated English poetry during the first quarter of the Nineteenth Century. Nor is it needful to enter into the controversy as to who first gave evidence of the changing attitude. So careful a critic as Theodore Watts assigns the place of priority to Thomas Chatterton, styles him the Father of the Romantic School, and insists that to his influence may be traced some of the best work of Keats and of Coleridge. It will always be well to remember that changes in literary habit do not take place in a year, rarely in a decade. It will, therefore, be easy to point out poets as early as Gray who gave prophecy of the new era. This much at least is noteworthy—putting aside the question as to who comes first of all—that the new current of ideas

began very early to flow through poets who were hardly more than boys. Professor Beers has already reminded us that in Joseph Warton as well as in Thomas Chatterton—neither of whom was more than eighteen years of age—we may see the set of the literary current.

It may not be insisting too strongly on a parallel to see in the history of Southern literature a state of affairs much like that we have just sketched. It will be remembered that in 1818 Bryant sounded his protest against a "sickly and affected imitation of the peculiar manner of the late popular poets of England." As late as 1848 Lowell did not hesitate roughly to assert:

They stole Englishmen's books and thought Englishmen's
thought,
With English salt on the tail our wild Eagle was caught.

In these circumstances it is not surprising that Sydney Smith should have asked with suggestion of truth even if with evidence of venom, "Who reads an American book?" American literature in the Northern and Middle sections escaped from bondage many years before the South came into its own literary inheritance. Just as unreasoning worship of a pseudo-classicism had its death-grip on Eighteenth Century writers so a like uncritical devotion to the usually read classic writers and to earlier English authors had checked the growth of the budding Southern literature of the first half of the Nineteenth Century. Conservative as the South has always been in matters of thought it was not surprising that this should be so. Paul H. Hayne tells what contemptuous references were made by the literary coterie of Charleston to the early efforts of Simms because he dared aspire to cultivate the Muses, when he must needs get his Homer through the medium of Chapman or of Pope. This respect unto classical authority was of long continuance among cultured men and showed itself, also, in the dry and tedious essays of Legare who was reputed a great scholar.

It was, indeed, not until 1870 that the South may be said to have achieved literary independence. As the sway of Greece and Rome passed away, the South came to be a literary dependency of England. Kennedy and Sims are dominated by Scott, just as Wirt and his friends of the "Old Bachelor" group got their inspiration from the Spectator. Of course there were poets as Hayne and Timrod and story-writers as Johnston and Thompson who sang

and wrote clearly and with a note of individuality. But Lowell might have described the greater part of Southern literary work in the words:

Your literature suits its each whisper and motion
To what will be thought of it over the ocean.

With the same thought in mind Poe wrote that "one might suppose that books, like their authors, improve by travel, their having crossed the sea is with us so great a distinction."

This natural conservatism was upheld by the fact that many Southerners of means sent their sons to England to be educated. The South being settled for the most part by emigrants of English blood, it is not surprising that the controlling influence should be from mother-country.

Before the war, Sydney Smith's cutting question might have been answered with greater suggestion of truth in the form, "who reads a Southern book?" A not untruthful answer would have been, "Southerners do not." We have never adequately supported our own writers. We have added to the tragedy of nations by allowing Poe to die the death of an outcast; Timrod to break his heart, without a crust to eat or a penny to buy food; Lanier not to have time to record the strains that were demanding utterance, in order to spend his wasting strength seeking support for wife and children; Russell broken in courage and in fortune to find not even a resting-place in the soil of his native State. Before the war the Southern library shelves were weighed down with Fielding, Smollett, Addison, Johnson, Scott and Dickens. Charleston had a public meeting to congratulate Macaulay on the issuance of one of the later volumes of his History. Simms and Timrod lived in the City by the Sea in obscurity and neglect. We have not yet reached the place where we turn first to our own writers.

To say we had no writers, no books is not true. We had a plentiful supply of books whose writers with a kind of literary metonymy transferred the conventionalities and commonplaces of English life to the atmosphere of the South. The result was not English and it was not Southern but it had the worst features of both. Wax flowers were long a popular form of domestic art and the literary amateur caught the unreality of the maker of flowers.

There was, indeed, abundant material in the South and much of it was made use of. A distinct weakness in our workmanship arose from the fact that too

much material was used for a given purpose. The stage was overcrowded with characters, the plot was weakened by using too much incident. This surplus-age of incident seems to have distracted the writer's attention from the details of his craft. The value of the work of art was lost in carelessness of workmanship. The new order of things was to see a renaissance of simplicity. It was to be expected that in order to bring about a re-crystallization of Southern literary canons a shock was essential. That shock came in the form of the war between the States. New ideas, newly expressed was the inheritance.

The new school of Southern writers found their material near at hand and yet from a past growingly remote. They delighted to tell of the days of slavery—to idealize that period, perhaps—and with some acquaintance with slavery as it actually existed. While it has not been a half century since the master and his slave lived together in Southern lands, yet the number of those who have had experiential knowledge of slave-life in the South is increasingly small. To be accurate the picture of master and man had need to be painted quickly.

Perhaps the very first of our writers to give a true picture of negro life in negro dialect was Irwin Russell of Mississippi. He was certainly the first to make use of verse to put before us the negro as he saw him. Russell's negro is for the most part not the slave but the negro who is reconstructed in his legal relations, but altogether unreconstructed in habits of thought and of action. That negro, a picture of whom was to be had only during the decade immediately after the war, is the hero of much of Russell's verse. That he has pictured the character faithfully is evidenced by the fact of the life of his work. Despite encouragements to die, the slender volume of posthumous verse still lives and seems destined to have permanent place in American literature.

Russell's place in our literary history does not depend solely on the estimation put on his own work but is assured by the fact of his influence on those he preceded in this new field. Joel Chandler Harris was one of the first to recognize the genius of Russell and he doubtless looks upon the power of the young poet as one of the formative influences of his life. Likewise Thomas Nelson Page delights to ascribe to the Bard of the Quarters the inspiration of his own literary life.

It will be remembered that in sketching the English Romantic Movement the fact was recorded that the boys Warton and Chatterton occupied a place of prescience with regard to these new ideas. It will be worth while calling to mind that Irwin Russell's relation to the Southern Romantic Movement was much the same. Already at sixteen years of age, he had begun to write and ten years later he had completed his work and returned his talents to him who gave them.

The parallel to be drawn between the life of Chatterton and of Russell is interesting if not suggestive of actual brotherhood of thought.

As mere boys they both began to write verse. They both made use of a medium other than mother tongue. Chatterton manufactured for himself a speech we cannot do better than describe as the Rowley dialect; Russell put into form the rude speech of the negro with whom he had grown up; yet he had no help in the difficult work of transcriber.

Chatterton found the tasks set for him in a lawyer's office unbearable while there was poetry in his mind to be written down; Russell was actually admitted to the bar but the Muse of Letters had marked him for her own and the courtroom knew him no more. Breaking away from the bondage of legal drudgery, Chatterton went with high hopes from Bristol to London where for a few short months "the unhappy boy" strove against starvation only at last to be overcome in the struggle for living.

Russell left Port Gibson and went to New York to enter upon a literary life but after buffetings not a few, he at last entered into the eternal rest not vouchsafed on earth to that weary, outworn body.

Chatterton may be granted place as forerunner of that noble body of poets who have had part in making the poetry of the Nineteenth Century as distinct contribution to English literature. Before Irwin Russell there were, indeed, fore-gleams of the day that was to dawn, but it may not unfairly be urged that he was the first to turn his camera on one section of our Southern life and give us a picture that has cause to be enumerated among the monuments which must be consulted as primary authorities by the historian who will picture the life and thought of the Southern people.

WILLIAM WARD, A MISSISSIPPI POET ENTITLED TO DISTINCTION. BY DABNEY LIPSCOMB

A gentleman of advanced age, ripe culture, and extensive knowledge of the literature of the State, was asked, "Who is the best poet Mississippi has produced?" Promptly he replied, "William Ward of Macon." Respect for the opinion of the one who so unhesitatingly adjudged this pre-eminence among the poets of the State led to a study of William Ward's life and poetry, the result of which is now presented.

At the outset, however, let it be understood that the purpose of this essay is not to establish Mr. Ward's supremacy as a poet. Classifications of this kind in literature and elsewhere are generally unsatisfactory and often invidious, for excellencies that vary greatly in kind are not to be measured in degree. Some would doubtless accord pre-eminence to Irwin Russell for his humorous, sympathetic pictures of the quaintly sage and irrepressibly happy old-time plantation negro. Others would as likely claim this honor for James D. Lynch of West Point, who, against over two hundred poets of America, won for himself and his State, by unanimous vote of the committee of awards, the proud distinction of welcoming the nations of the world to the great Columbian Exposition, and afterward of having his salutation ode adopted as the Press Poem of America. Of him and his works more will be said on another occasion. Other classes in attempts at gradation would prefer this one or that one for reasons as different as the peculiar merits of the poet or the tastes of the admirers.

Panegyric cannot perpetuate a reputation. If so, Tupper, whose fame was predicted, would live as long as the language, would now be more than a name. Joanna Baillie, too, whom even Sir Walter Scott describes as sweeping her harp

Till Avon's swans—
Awakening at the inspired strain,
Deemed their own Shakespeare lived again,

—where is she? Mindful of the futility of claiming for an author more than is warranted, no eulogy will be offered, extravaganza will be avoided. On the contrary, that criticism will be eschewed which "damns with faint praise" what is cordially admired, fearful lest others may not assent. William Ward and his poems shall speak largely for themselves; knowledge of the man and his work being sufficient, it is believed, to justify the claim that he is a poet entitled to distinction.

Like many others who have reflected honor on the State, he was a son of Mississippi by adoption, a New Englander by birth. Son of William and Charlotte Ward, he was born in August, 1823, at Litchfield, Connecticut, an historic village, the early home of the Beechers; once noted also for its famous law school, attended by many from the South, John C. Calhoun among the number. Scarcely less was it famous for the beauty of the surrounding scenery and for the aristocracy of its leading families, who boasted their descent from old English houses as much as did the Virginians of their Cavalier and the Carolinians of their Huguenot ancestry. Social aristocracy in New England was a more prominent feature of life there than is commonly supposed. Among the leading families of Litchfield was that of the Wards. William, father of the subject of this sketch, was a jeweler by occupation, a man of integrity and unusual intelligence; wealthy until middle life, when it appears that reverses overtook him. For this reason his children, excepting one, perhaps, did not receive a college education as was intended. John became an Episcopal clergyman; Elias a jeweler, like his father; Henry, sorely disappointed in not being able to attend Yale College, scholarly, poetic, took reluctantly to printing an editorial work; Mary Charlotte, literary in her tastes, married a wealthy gentleman, traveled in Europe, and wrote sketches of travel and a number of poems. Of Henry Ward, a word more in passing to indicate more fully the literary leaning of the family. At the age of thirteen, his poem, "Novel Reading; or The Feast of Fiction," published in the local paper, gave him notoriety and raised great expectations. Thwarted in his college aspirations looking toward the ministry, he grew melancholy and excessively reserved. After forty years of life as a practical printer and editor, he left at his decease manuscripts in Greek, Latin and Hebrew, versification of the Books of Job and Lamentations, and a volume of hymns. His claim to the well-known hymn, "I Would Not Live Always," generally accredited to William Augustus Muhlenberg, and also to the poem, "Tell Me Ye Winged Winds," usually

ascribed to Charles Mackay, is set forth in Harpel's Poets and Poetry of Printerdom. In it, too, may be found other poems by him and several by his sister Mary, then Mrs. Webster.

But to William Ward, the youngest son, attention must now be turned exclusively, with a glance first at the brief but important period of his life spent in his boyhood home. Of those early days which evidently left deep impression on his after life, less can be said than could be wished. The beauty of the country about Litchfield must have impressed him as it did Henry and Harriet Beecher, born amid the same surroundings, ten or twelve years before him. Like them, no doubt, he gazed with delight on the glorious sunsets which Mrs. Stowe so enthusiastically describes, and roamed in perhaps the same mood the woods in which they speculated whether Apollo had not there once built his altars. He, too, wandered along the banks of crystal Bantam River and dreamily watched the clouds as they hooded and un-hooded Mount Tom in the hazy distance. Nature there surely must have been "meet nurse for a poetic child."

His scholastic education was completed under the tuition of a learned Episcopal clergyman whose private academy for boys was well patronized. He was an insatiable reader and a fairly good student, though his mind ran in literary lines rather than to the study of the exact sciences. The classics he must have especially preferred, and in them been carefully instructed, judging from the familiarity he manifests in his poems with the mythology and literature in general of Greece and Rome. Astronomy seems to have laid strong hold upon him; for it held high place in his esteem in later life. He early gave evidence of a poetic tendency, and some of his boyish effusions are said to have possessed considerable merit. Intuition, environment, and reading apparently combined to make of this New England lad a poet. What the experiences of active life contributed in this direction, a look ahead will show.

When only sixteen years of age, a great and unexpected change in his plans and prospects occurred. He was urged by his brother Elias who had gone South and set up in business at Columbus, Mississippi, to come and learn under him the watch repairing and jewelry business. Though his tastes and aptitudes led in opposite direction, the opening seemed too favorable to be set aside. The invitation was accepted and bidding adieu forever to the home of his love, with mingled enthusiasm and trepidation the young man

set out on his long journey to the South. Embarking at New York on a sailing vessel, he reached Mobile, Alabama, after a safe but lengthy voyage. Of the experiences of that voyage which afterward gave coloring to some of his most poetic lines and of the amusing incident attendant upon his arrival at Mobile notice cannot now be taken.

Ten or twelve years of quiet busy life at Columbus, Mississippi constitute the second distinct period in William Ward's comparatively uneventful life. His letters home indicate that many of the sights and incidents connected with life in that almost frontier land were new and startling to the scholarly youth from staid Connecticut. By degrees he became accustomed to his surroundings, and identified himself with the society and business of the place. Modest and reserved in public, with his friends he was ever a genial and interesting companion. More student than mechanic, he would doubtless have preferred a literary career. As it was, his literary tendency continued to assert itself, and before attaining his majority verses from his pen began to appear in print. At twenty or earlier he became a contributor to the Philadelphia Saturday Courier, to which for ten years or more thereafter he continued to furnish poems or themes chiefly classical and patriotic. First in order of time of those that have been preserved is "The Grave of Hale," which appeared in the issue of June 3, 1843. In smooth and vigorous Spenserian stanzas, he protests against the neglect of the martyr-patriot's grave.

"Alas! and hath no gentle honoring hand,
But that of Nature decked his tomb with flowers,
We mourn the heroes of some storied land,
And leave a cold and barren grave to ours."

Among other published poems of his early period indicative of his devotion to the classic Muse, and of his ardent patriotism, may be named "The Egean," "Greece," "The Bellman of '76," and "Our Own New England."

These lines from the first two poems, written respectively in 1844 and 1845, but for the dates might seem to have been inspired by the result of the late sad struggle between the Greeks and Turks:

"Bright sea! no more the naiad haunts
Thy pearl founts with a syren spell,

No sea-nymph on thy foam-bed pants,
Within her rainbow spawning cell,
The halo of departed years—
Sleeps like a dream upon thy sky,
While the dark curse of blood and tears
Is echoed back with freedom's sigh."

"Oh Greece! could ye but boast of Greeks the shame
That gathers o'er thee now would make thy altars flame."

For the tenderness and warmth of sentiment expressed therein, the poem, "Our Own New England," merits more than simple reference to it. The last stanza shows how thoroughly Southern in ten years he had become. Friendships strong and lasting had been formed, and he was now prominent among the citizens of a town that even then prided itself on its culture. One of the intimate friends of Alexander K. McClung, he has left an appreciative tribute to that powerful, but somber and erratic genius.

In 1850 Mr. Ward removed to Macon; Mississippi, and there lived till his death in 1887. Early in the fifties he married Miss Emilie A. Whiffen, an estimable and highly cultured young lady of English parentage, then teaching in a female institute at Crawford, Miss. The *Philadelphia Courier* contained a pleasant notice of the marriage, from which this extract is taken: "We sincerely congratulate our esteemed correspondent, William Ward, Jr., Esq., whose delightful verses have enriched but too seldom our Poet's Corner, upon the agreeable fact reported in our hymeneal department last week." These were his halcyon days, during which he was prosperous and serenely joyful in his home. In 1856, he built in the woods skirting the eastern edge of the town the modest but tasteful little cottage in which he spent the remainder of his days. To verse he seems to have given but little time during those busy years; though occasionally he still contributed a poem to the *Courier* and to the Macon and Columbus papers. Three daughters and a son came to increase his pleasures and his cares. Meanwhile the war cloud lowered and the tempest broke in fury on the land he had learned to love and call his own. But this was little heeded in

comparison with the calamity which befell him in the midst of those dreadful days in the loss of his devoted and helpful wife. His life "cleft in twain," as he expressed it, from that time forward is thus described by one who knew and loved him: "To his half-orphaned children he became father and mother. We have seen him in his cottage home spending his evenings in the bosom of his little family, assisting his daughters with their lessons, amusing the children, looking after their comfort, and doing all in his power to make them happy. Proud and sensitive, he bravely struggled through poverty that came to so many Southern families; and though at times obliged to add the office of housekeeper to that of bread-winner for his young family, he never sank the dignity of a gentleman to the servility of a drudge."

Under these circumstances, all the more honor is due to him that after the war he spurned the offers of place and wealth extended by carpet-bag leaders of the Republican party who knew of his Northern birth. Instead of such a course, he became in 1870 editor of the *Macon Beacon*, and was as pronounced a Democrat as he had been Whig in former years. During intervals of work in his little shop he hurriedly wrote his editorials; and might often be seen walking up and down behind the counter evolving a poem or a prose reverie, oblivious to his surroundings. But to poetry he gave no more time than, as he said, he *must*. Outside the joys of companionship with books and with his children, he could truly have exclaimed with Burns:

"Lease me on rhyme! it's aye a treasure,
My chief, amaisht my only pleasure."

With his little ones, on Sundays, he walked in the woods hard by his house; and on clear nights he often pointed out to them the stars and constellations, and told them of the myths that cluster about Orion, the Pleiads and other denizens of the nightly firmament. He had his own telescope and frequently searched the heavens with it for hours. "It is well," he says, "to look upon the Christmas skies when the most glorious constellations of the year are gathered as at the world's great festival. It will give us higher conceptions of life and tone down excesses we too often indulge in through the anniversary week that closes up the year."

But let us look more closely at the man himself and then give his work such examination as time left us will admit. Tall, slender, erect in carriage, clean shaven, with dark brown hair and eyes, rapid in his movements, the scholar and the gentleman written unmistakably on every lineament, and William Ward, the man, is as nearly portrayed as can now be done; for except a little daguerreotype taken for his wife, which has been lost, he sat for no other picture. Singularly reserved and almost shy in public, with his children and with his intimate friends he was delightfully communicative, a vein of quiet humor often outcropping in his words and deeds.

Public life he generally avoided; offices which he might have held, he would not accept, although urged upon him. A loyal, ardent Odd Fellow, like Abou Ben Adhem, he "loved his fellow-man," and was loved by them in turn. His addresses and poems on the anniversaries of this order, and at decorations of the soldiers' graves were much admired. Though educated for an Episcopal clergyman, he never united with the church, at least in the South, more than as a vestryman for a time. It is to be regretted that, with outward eye so quick to see and interpret the true and beautiful, his eyes of faith could not discern more clearly the full truth and beauty of God's written Revelation. If so, his pathetic lines on "Hope," composed a few years after his wife's death, would have had a more triumphant ring than is contained in the last two stanzas. Elsewhere hopes shines brighter and faith soars on stronger wings, as when in his "In Memoriam" poem to his wife, he sings:

"Still for this grief so desolate, so lone,
A solace for unmated hearts is given,
Another hand, another voice hath known
The symphonies of heaven."

In the sixty-fourth year of his age, at the season he loved best, the Christmas-tide, December 27, 1887, the gentle spirit of William Ward softly slipped from its earthly moorings. His body by loving hands was tenderly laid to rest in the cemetery at Macon, his home for nearly two score years.

His spirit still lingers with us, embodied in the songs which he sang, now out of a glad, now out of an aching heart. Well has it been said that a poet least of all needs a monumental pile. The Iliad towers high above the

Pyramids, and will outlast them by ages. William Ward has left no Iliad; he sang not of the gods and demi-gods; he struck the lyre, and not the full-resounding harp. Intuition, early environment and scholastic training, as has been shown, combined to make of him a poet. Life's dull and dark experiences seemed to repress but could not suppress in him the "noble rage." Visions of beauty continually flitted in his imagination; music from choirs, visible and invisible, seemed ever to soothe and charm his troubled, lonely heart. Especially in the closing years of his life was poetry a joy and comfort to him. As the burdens of life were shifted to the shoulders of his children, he found more leisure, it appears, and indulged more frequently in poetic expression of the mood or thought that deeply stirred within.

As might be supposed, his poems are of as diverse themes and varied measures as the moods and occasions which suggested them. In them may be best shown the poet and to some extent the man; hence, they deserve and, it is believed, will repay a full and close investigation. Hear him first, as in patriotic strain, he invites the world to his adopted land:

COME TO THE SOUTH.

Come to our hill-sides and come to our prairies,
 Broaden our fields with the spade and the plow;
Bring us from Deutsche-land to gardens and dairies,
 To household and kitchen the fraulein and frau;
Come from the birth-land of Goethe and Schiller,
 Scholar and poet and teacher and priest;
Come where each acre of tilth needs a tiller,
 And people the South with the strength of the East;
Bring you the songs and dance of Rhine-land
 The legends and sports of your home if you will;
Give us the lays of your forest and vine-land,
 With the strong arm of labor the artisan's skill.

Come from the cliffs where the sea-eagle fledges
 His brood o'er the wild ocean-storm of the North,
Where the fisher-boats play round the moss-mantled ledges,
 Where the sea-kraken sports and the maelstrom has birth;
Leave you the land where the treacherous glacier

Mocks you, blinded and chilled with its pitiless glare,
Where all save the mist-clouded rim of the geyser
In the impotent sunlight lies frozen and bare;
Where Hecla sits mailed like a desolate giant,
With his flame-covered crest and his foot-stool of snow,
O'er the storm-rended realm of the Viking defiant,
And the sea rolling red in his terrible glow.

We call you, O men of the kilt and the tartan,
From highland and lowland, from mountain and mere—
Though you feel for your country the love of a Spartan,
A sunnier home and a welcome is here;
Must you cling to the fields where the gorse and the heather
That bloomed for your grandsires still blossom for you?
Cannot hopes that await you here loosen the tether
Which a birthright descended has cast over you?
There is room, there is work for the peer and the peasant,
From the land of the shamrock, the olive, and vine,
You may lift up unquestioned the cross with the crescent,
Or the lilies of France with the thistle-bloom twine.

No prosy pen could have indited those picturesque and stirring lines.

In his Centennial Hymn, "The Victory of Peace," in "The Blue and the Gray," "Under Two Flags," "Gettysburg" and other poems, his muse dons American colors and echoes the national note of peace and unity.

"Now another flag is o'er us,
And the bitter hate that tore us,
From beneath its shadow falters,
Let us raise the olden altars,
Let us smite the wretch who palter
With the tie that binds forever
Those who lost and won together,
While their banners live in story,
Haloed with a common glory."

GETTYSBURG. 1863

We see those splendid columns sweep
Across the field. Men hold their breath;
Before them frowns the sullen steep,
Before and near is life or death.

* * * * *

They are not such as break and fly,
No laggards droop, no cowards quail,
Those only pause who drop and die
Beneath that storm of leaden hail.

* * * * *

'Tis sunset. For the Blue, a gleam
Of glory fills the dying day;
From clouds above that sunset stream
Another glory for the Gray.

1887

They meet again—not steel to steel,
But hand to hand and breast to breast,
Hailed by the cannon's peaceful peal—
The Blue the host, the Gray the guest.

* * * * *

And so they share—the brave and true,

The glory of that fateful day;
The Gray the glory of the Blue,
The Blue the glory of the Gray.

* * * * *

'Tis sunset. From yon heaven away
Fades every golden, purple hue;
O'er host and guest, the twilight gray
Blends with the evening sky of blue.

In "McMahon at Sedan" he strikes the martial measure with trumpet note.
Many more stirring war lyrics could not easily be found.

But his muse was also often pensive, and in that mood he softly sings as if to himself alone. Among the best of these poems of reflection are "A Memory," "Alone," "Nebulae," and "Look Up." In them the visions and the melody evoked are often strangely beautiful and haunting; but a depressing undertone like a sigh runs through them all.

The misty realm of dream-land lies before me,
O Sleep! in thine embrace,
What shadows from the past are flitting o'er me,
What mocking memories traced;
The dim procession, slowly wafted onward,
Prolongs the dreary moan
That finds an echo in that fated one word,
Alone! Alone!

From "The Master Thought" and "If Tongues Were Steel," the conclusion might be drawn that a cynic set words to the tunes. The last stanza of the first of these is keenly pointed and sadly near the truth:

"Still man, though born a Socrates or Nero,
If white with truth, or black with falsehood's taint,
Would rather gleam in marble as a hero,
Than glow on canvas, pictured as a saint."

His intense hatred of shams and fraud of every kind occasionally found indignant voice; as

"O God! were all the lies distilled
From supple lips in cunning skilled,
Hell would be stretched and overfilled;
Aye, moulded in one burning curse,
'Twould wreck a shaken world; nay worse!
Would crush and damn a universe."

But these were transient and rare utterances. "Though far from the east the youth had traveled, he still was Nature's priest." The boy dreamer among the Connecticut hills is now a poet on the Southern prairies.

"And by the vision splendid
Is on his way attended."

"The glory had not yet passed from earth." Nature beckoned him continually, and gladly obedient to the summons, he sought her haunts, caught the visions, heard her minstrelsies, and forgot the while his burdens, his loneliness, and his long sorrow. Many of his poems in whole or part might be cited in proof of this. Most prominent are "The Dying Year," "The South Wind," and "The Night Storm."

For its rich setting and striking presentation of a common theme this poem is reproduced entire:

THE DYING YEAR.

The year is dying as the dolphin dies,
Not with the ashen hue,
Death's signal color, ere the fading eyes
See dimly, darkly through
The waxen lids. No pallor creeps along
The earth and sky; no tone
Floats through the air like a funeral song,
Or like a dying groan.

The warm rich sunlight gilds the autumn trees
Whose gorgeous tints are spread,
Each toning each, and fringed with heraldries
Of purple, gold, and red
The crimson myrtle burns upon its stem
As though a heart of fire,
The yellow maple, like an oriflamme,
Lifts up its banner higher.

The oak is rich with russet, bronze and brown,
And there a purple crest
Gleams o'er the forest like a lifted crown
Some color-god has blest.
Loosed by the frost, the sumac's pallid leaves
Like yellow lance-heads fall,
While lights and shadows ever shifting weave
A net-work over all.

O queenly autumn! though you proudly lead
The old year to its death,
A glory comes and goes where'er you tread
With every dying breath,
The year is dying—dying as a king
Dies in his purple. Now
His shroud is woven, and its colors fling
A glory o'er his brow.

The cold, the night, the storm, were especially congenial to him. He almost literally "kept open house" throughout the year; for he would hardly permit his doors to be closed even in the coldest weather. On his gallery he delighted to stand or walk and watch a thunder storm, especially by night, as his graphic picture of "The Night Storm" fully testifies. But nature in her gentler aspects was also at times very attractive to him, as this stanza must suffice to show:

"O warm South Wind! awake and send
Across the sea that breath of thine,
And let its lotus fragrance blend

With the rich odor of the pine.
O'er land and sea your treasures bring,
From zones with health and beauty rife,
To youth the fullness of its spring,
To age, the aftermath of life."

Particularly noticeable, and often fascinating through their witchery or weirdness are a number of Mr. Ward's poems. Of those through which fancy sports most winsomely are "The Lake of the Golden Isle," "St. Nicotine, a Christmas Phantasy," "Just Twenty-Two," and "Katie Did."

The last was extensively copied in the press and much admired. It will bear another repetition.

KATIE DID.

Naughty Katie, saucy Katie,
Is your secret aught to me
That you hide it, nor divide it,
In a tree?
In a tree before the trellis,
Where I have a secret hid,
And provokingly you tell us,
Katie did,
Katie didn't,
Yes, she did,
No, she didn't,
Katie did.

Prithee, Katie, by what penance
Are you nightly doomed to be
Trilling to the quiet tenants
Of the tree,
Safely hidden from espial
Of what Katie said or did,
That incessant, shrill denial,
Katie did,
Katie didn't,

Yes, she did,
No, she didn't,
Katie did?

Little disputant, securely
Ambushed, from intrusion free,
Don't I see you so demurely
From the tree,
Peeping through the latticed branches.
Where the moon its arrows slid,
Piping forth with cunning glances,
Katie did,
Katie didn't,
Yes, she did,
No, she didn't,
Katie did?

Will you tell it, Katie, never?
Must it still a secret be?
And forever and forever
From the tree,
Will that answer shrill and lonely
Mock us with the secret hid,
With these accents varied only—
Katie did,
Katie didn't,
Yes, she did,
No, she didn't,
Katie did?

Somewhat more thoughtful but scarcely less charming is the little lyric "Just Twenty-Two," which closes with the plea, "Leave me immortal at sweet twenty-two."

With "The Neophyte" in 1851, the supernatural and mysterious elements, traceable perhaps to Coleridge and to Poe, began to appear in his poems, and became conspicuous in "The Burning Casque," "The Phantom Train," and "The Ride of the Ku-Klux." At places in these, the breath comes short

and quick, and the nerves grow unsteady in the presence of grotesque phantoms and direful mysteries. Few pass a real train without a pause and look of mingled awe and admiration. A momentary glance at "The Phantom Train" should certainly be taken:

On the track stood the engine cold and still,
For throttle and valve had ceased to thrill
With the giant power of the wizard steam.
I saw the track, by the lantern's gleam,
Far on the night, till it seemed to meet
In a point at the dim horizon's feet,
And there in the distance, faint and far,
Glimmered a blue and ghostly star.
Nearer and nearer it came and grew,
'Till it gleamed in a circle of ghastly hue.

* * * * *

By the Holy Saints! 'twas a gruesome sight
As ever came from the womb of night—
A spectral train that, nigher and nigher,
Was whirled on its silent wheels of fire.

"The Ride of the Ku-Klux" is even more gruesome and fantastic, but the appearance of those terrible night regulators cannot satisfactorily be shown by a brief extract.

Several poems of personal character deserve notice for both their merit and the associations connected with them. The noble lines to George Peabody may be found in Harpel's "Poets and Poetry of Printerdom," to which reference has been made. In it, too, are published "The Blue and the Gray," "The Frosted Pane," and "The Ride of the Ku-Klux." It is unfortunate that a poem which elicited the following interesting note cannot be designated, perhaps is lost:

New York, March 11, 1872.

Dear Sir:

I thank you for the privilege of reading your beautiful poem, and regret that I could not have been its inspiration. I wrote once a poem for the Atlantic entitled "The Heart of the War," but never one with the title of yours. You will pardon me, I am sure, for relieving you of the burden of a mistake which was very complimentary to me.

Yours very truly,

J. G. HOLLAND.

Shakespeare and Dickens were particular favorites of Mr. Ward's, one of his last purchases of books being a new set of each of these authors. For Byron also, as a poet, he entertained a high regard; but perhaps the literary character whom he loved the most was Oliver Wendell Holmes to whom on his seventy-fifth birthday he addressed an affectionate and admiring tribute, which called forth this response from the genial Autocrat:

Beverly Farm, Mass., Oct. 5, 1884.

My Dear Sir:

I beg you to accept my sincere thanks for your very pleasant lines. I am sorry they were too late for the birthday number of The Critic; for they would have been reckoned among the best and most graceful of all that were sent. Believe me,

Gratefully yours,

OLIVER WENDELL HOLMES

The most popular poem, however, of this class is one dedicated to Wyatt M. Redding, the telegraph operator who during the yellow fever epidemic of 1878 bravely died at the post of duty in the plague stricken city of Grenada. For its historical as well as poetical value it should be preserved.

**WYATT M. REDDING.
GRENADA, 1878.**

Click, Click

Like the beat of a death-watch, sharp and quick,
From hearts that are stifled and lips that are dumb
With the lightning's speed, and the lightning's thrill,

The dark words go and come:
Click, click, and a pulse is still—
There's a form to shroud and a grave to fill,
For the Yellow Death is upon the air,
And the city lies in the clutch of Despair.
Not less a hero than he whose plume
Goes blood-stained down in the conflict's gloom,
Not less a martyr than those who slake
A blood-thirst, bound to the burning stake,
Is he who stands as the last defence
Against the shock of the pestilence.

Click, Click
His heart is strong and his fingers quick,
'Tis a fearful work of hand and brain,
Each click is a groan, each word is a pain,
But he falters not in the fight with death,
Even under his wings as he breathes his breath,
The shrouded city before him lies,
And the dead drop down 'neath the burning skies,
Never a smile, or a word to cheer,
Brightens his eye, or falls on his ear,
All is dreary and all is dumb,
Save the hourly wail from a stricken home.

Click, Click
'Tis the only hope where the dead are thick,
Where the living strewn by the plague's hot breath
Are sown with the ripening seeds of death.
Still, the hero-boy at his key-board stands,
And many a far off city feels
The thrill of the wire, and its mute appeals,
And hands are stretched from the East and West
Their upward palms with a blessing blest,
As it comes to those who meet their doom
Like scorched leaves struck by the hot simoon.

Click, Click

Like the beat of a death-watch, sharp and quick,
'Tis the last note struck, 'tis the first wild touch
He gives the key, as he feels the vague
An creeping chill of the deadly plague.
Ere its burns with the strength of its fever clutch.
He falters, falls, and his work is done,
And the fiend has marked his victim won,
Not long he dallies with those who fall
Beneath the curse of his yellow thrall,
O city, beneath his merciless sway,
Mourn, mourn, for your hero dies today.

Passing several poems of genuine humor and two or three more lengthy ones of epic cast and tragic interest, this appreciation of William Ward's life and poetry, though incomplete must find an end. What poetry in the abstract is, the world has not yet determined, and probably never will. Whether it be "the rhythmical creation of beauty" or the "lyrical expression of emotion," or both; whether its end be truth or beauty or merely sensuous delight, one or all, each will decide for himself, according as he is provincial or cosmopolitan in his culture. What is poetry to one is doggerel or riming prose to another. "The Ring and the Book" is intolerable to many who enjoy "The Idylls of the King." Wordsworth is for the most part childish or meaningless to numbers who delight in Scott or Byron. Where Poe is lauded, Whitman very likely will be scouted.

Individual estimates of William Ward's poems will, therefore, vary according to the tastes and training of the reader. But it can hardly be doubted that they will appeal strongly to a majority of the lovers of true poetry. If imagery be preferred, it is conspicuous throughout his verse; if emotion be specially sought for, it too in almost every type pulsates in these poems; if music be the criterion, in that also they will not be found wanting, for the melody and harmony of most of them is a striking characteristic. That they might be judged on their own merits, and not so much on the opinion of one who might be deemed more advocate than critic, fuller selections by way of illustration have been offered than would have been the case, if the poems could readily be found. They were published mostly in the Philadelphia American Courier, the Macon Beacon, and the New

Orleans Times-Democrat, and have not been collected in book form, as it is earnestly hoped they yet will be. Better known, it is confidently believed that they will place their author high on the roll of Southern poets.

As a summary and a conclusion, the following Report of the Committee on Necrology to the Press Convention of Mississippi in 1888 is here appended:

"One of the oldest members of this association, who had not an enemy on earth, the urbane, genial and ever agreeable William Ward is with us no more. Those of us who knew and loved him for his big heart and true manly worth, will sadly miss his gentle footfalls, cheerful face, and warm hand-clasp as we meet in our annual conventions. The voice of him who sang songs of love, devotion, and duty, is as silent as the marble shaft that marks his resting place.

"Born in a New England village up among the hills of old Connecticut in 1823, Mr. Ward came South when a youth of tender years, to seek a home in the land of sunshine and flowers, fit prototypes of his own sunny self. A poet by nature and a writer of purest English, he gave to the press some of the sweetest poetic gems that have graced the literature of the South; and his poems addressed to or read before our press conventions were always regarded as the chief features of an entertainment. With them he was wont 'to set the table in a roar,' or draw tears from the eyes of the most obdurate. He wrote his name high on the scroll of fame, and through all the vicissitudes of life, from the days of his early manhood when struggling to support a growing family to the evening of his declining years when surrounded by the comforts of life, that name remains as pure as a star, as unsullied as the snowflakes falling in mid-heaven. In all the relations of life, William Ward was ever a true and honorable man, loving and beloved by all who came within the circle of his acquaintance.

"Let the recollections of this New England youth who cast his lot with the South, and who lies buried in its soil ever remain fresh and green in our heart of hearts; and now let us pluck a flower from the chaplet of memory, and tenderly lay it upon his hallowed grave."

SHERWOOD BONNER—HER LIFE AND PLACE IN THE LITERATURE OF THE SOUTH.

**BY ALEXANDER L. BONDURANT, A. M.
(HARVARD)**

The life of Sherwood Bonner illustrates the union of the subtle elements, ancestral traits and personal qualities, which, distilled by the alchemist, Dame Nature, in her alembic produce the individual.

Her father, Dr. Charles Bonner, was born in Ireland, but his family left their ancestral home when he was quite young, and settled in Pennsylvania. When he arrived at man's estate, he left the North, and like Prentiss and Boyd turned his face Southward. He reached Mississippi in "Flush Times," and was content to dwell there, for he found a cultured, refined people, who recognized in him a kindred spirit.

In her novel, "Like Unto Like," Sherwood Bonner thus describes the home of his adoption: "The climate was delicious. Winter never came with whirl or wind and wonder of piling snow, but as a temperate king with spring peeping to meet him, before autumn's rustling skirts had quite vanished round the corner. Yet there was not the monotony of eternal summer. Winter sometimes gave more than hints of power to the pert knaves of flowers who dared to spring up with a wave of their blooming caps in his face; and the peach-trees that blossomed too soon were apt to get their pale pink heads enclosed in glittering ice-caps, through which they shone with resplendent beauty for a day then meekly died. Even a light snow fell at times; and everybody admired it and shivered at it, and said the climate was changing, and built great wood-fires, and tacked list around the doors, and piled blankets on the beds, to wake in the morning to find sunshine and warmth—and mud. But for the most part, the days, one after another, were as perfect as Guido's dancing hours."

She thus speaks of the people whom both she and her father loved: "They had the immense dignity of those who live in inherited homes, with the simplicity of manner that comes of an assured social position. They were handsome, healthy, full of physical force as all people must be who ride horseback ---- and do not lie awake at night to wonder why they were born. That they were Southerners was, of course, their first cause of congratulation. After a Northern tour they were glad to come home and tell how they were recognized as Southerners everywhere—in the cars, shops, and theatres. They felt their Southern air and accent a grace and a distinction, separating them from a people who walked fast, talked through their noses, and built railroads."

The young physician found the sun which caused the flowers to bud, to blossom, to give forth rich fragrance not less kind to the daughters of the Southern village whither he had journeyed; but one seemed to him fairer than all the rest, and he sought to make her his own. Miss Mary Wilson is said to have been both lovable and beautiful. Fortune favored his wooing so they were soon wedded. Their means were ample and Dr. Bonner retired from the active practice of his profession, dividing his time between the management of his estate, and the dispensing of an elegant hospitality in his own home. He was always a great lover of books and possessed a fine mind, but had no ambition beyond his class; and while believing in and honoring woman to the highest degree, he thought her place to be the home.

His library was large and carefully selected, and he directed in large measure the reading of his family. We surmise that the daughter is giving an episode in her own life when she has Blythe Herndon tell Roger Ellis that she never disobeyed her father's injunction about books but once, that having exhausted everything else in the library, she climbed up to the forbidden shelf and took from it a copy of "Tom Jones." But, says Blythe, "papa scolded; to this day I have never known whether Tom married Sophia." Dr. Bonner was an honorable, courteous, cultured gentleman, another Thomas Dabney. The daughter being asked by Mr. Harper, of Harper and Brothers, where she obtained such a fine command of English, replied with great dignity, "In my father's house."

From her father Sherwood Bonner inherited her love for books, and her keen sense of humor, her best gift from the gods; from her mother came beauty and a charming femininity.

Five children were born to Dr. and Mrs. Bonner; Katharine Sherwood, born February 26, 1849; Ruth Martin, now Mrs. David McDowell, who lives at Holly Springs, Mississippi; Samuel Wilson, who died of yellow fever in '78; and two other children, who died in infancy.

The family residence built by Dr. Bonner is still standing. It is a commodious brick mansion, built in Gothic style, with a wide portico in front, and ample windows opening to the floor. The house stands well back from the street, surrounded by a spacious lawn. One enters a wide hall, and on the left is seen the library, where in winter a wood fire is kept burning. The room is a very charming one, and afforded a most appropriate setting for the writer at her desk. This room is connected with the hall by folding doors. On the right is the drawing-room.

One seeing the fair haired baby-girl in this luxurious, well-ordered Southern home, would probably have said that she was destined to become what her mother before her had been, charming, well read, and, according to prevailing standards, educated. But in addition to these inherited qualities, Sherwood Bonner possessed that strong individuality that made her a writer. As a child she was fond of play, but she loved books and stories better still, and games ceased to charm, if gran'mammy consented to tell her the story of the wonderful adventure of "Breer Rabbit" and "The Tar Baby," or some of his other escapades, or if her papa came in bringing her a fresh volume of fairy stories.

Her first effort at original composition was while she was still wearing pinafores. It came about in this way: she and a playmate lost their temper, and, forgetting that they were little gentlewomen, began to fight like two waifs with no family dignity to uphold. Kate got her frock torn, and later when her mother asked her the cause of the quarrel, she handed her a paper, with a tragic air, saying, "read this, it will tell you all."

She was not universally popular as a child, for she manifested a precociousness that separated her, in large measure, from her kind; but she attracted strongly those whom she really liked and was, at an early age, the queen of a little coterie of her own. In childhood she was distinguished for loyalty, a ready wit and a keen sense of humor; qualities that made the warp and woof of her nature, and but strengthened when the maid was merged in the woman.

Her education was conducted under her father's eye, and as he pressed the chalice to eager lips, little did he guess that he was entertaining genius unawares. At school she could not have been accounted a hard student. Her mind slaked its thirst at the pure fountain of the muses; history was a joy, literature a delight, and the composition, a task hated by most of her schoolmates, a pleasant pastime; but she looked askance at the sciences, and pronounced life too short for geometry. During her last year at school she wrote an allegory. It is the work of a tyro in art, but was regarded by her schoolmates a remarkable production.

The morning of her life was bright, and with father, mother, sister, brother, around the family hearth, each passing day brought added happiness. Even the dark clouds that began to lower in the North, ere she passed the limits of girlhood, did not bring sadness, for she with many older heads in the South failed to comprehend what these foreshadowed. But she was now to receive the baptism of sorrow, and to gain through suffering needed training and added strength.

"Who tears to other eyes would bring
Must first have tasted sorrow."

She was just sixteen, she had written something and it had been accepted, her heart was aglow with visions of the future, when the desolating blow fell upon her home. The much loved mother was taken from her, the rude shock and turmoil of war being too much for that gentle spirit.

We find this entry in Sherwood Bonner's scrapbook in her own hand: "First story ever published, aged fifteen, *Boston Ploughman*, twenty dollars." Underneath, the story is pasted in. It was called "Laura Capello, A Leaf from a Traveler's Notebook." It is a mystery story, highly melodramatic and crude, but containing the promise of a rich fulfillment as the bud contains the rose. It deals with the lot of a young girl whose life is the fruit of unhallowed love. The scene is laid in Italy, the land of mystery, and the story is given to the world by a young American artist, whom a capricious fate enmeshes, and make an unwilling actor in the drama. The sketch shows dramatic power, and abounds in vivid description.

Mr. Nahum Capen, the author of "The Republic of the United States," "History of Democracy," and other works, was at this time connected with

The Ploughman. He was the friend of Longfellow, Lowell and Emerson, and was selected by Hawthorne as the first one to read his first book, which appeared anonymously. He was the intimate friend and adviser also of Irving. Under his tutelage Sherwood Bonner first essayed Grub street, and he never ceased to take a keen interest in her, and was to the day of her death her trusted adviser and friend. He urged her to write, and encouraged her work with kindly, but discriminating words of praise. "Laura Capello" was followed by "A Flower of the South," published in a musical journal. Somewhat later a piece called "An Exposition on one of the Commandments" was sent to *Frank Leslie's Journal*.

In 1871, Sherwood Bonner became the wife of Mr. Edward McDowell, a gentleman of refinement and liberal culture; like his wife he was a native of Holly Springs. The young wife assumed with earnestness the responsibilities of the new life and when her husband determined to try his fortune in the frontier state of Texas, she went with him into a country that was little better than a wilderness. But the venture failed and the young people returned to Holly Springs poorer in purse than when they left. A daughter was born to them, and for her child henceforth the mother in large measure seemed to live. Like George Sand, she found in motherhood love's deepest expression. At this crisis of affairs, the young wife and mother recalled her talent, and remembering the kind words that had come to her from Boston, she determined to go thither, and try her fortune with her pen. In Boston she became a member of Mr. Capen's family, and under his eye, and with his encouragement, continued her work.

She had the gift of clear vision, and at once perceived that the defects of her early training must be overcome if she was to write that which the world would read; so she studied closely, books, men and manners. The North received her lucubrations with a criticism that was in the main kindly, and ere long she had made for herself a place in "The Moral Lighthouse" as she playfully denominates Boston. After several years she was able to have with her her child and the aunt who since her mother's death had striven to supply her place. But she counted that she was only sojourning in the North. The place of her birth she ever spoke of as "home," and a portion of each year she spent amidst the dear familiar scenes.

Soon after going North she met the poet Longfellow. He recognized her talent, became her warm personal friend, and lent her aid and

encouragement in her work. She in turn seemed to impart new vigor to the white-haired poet. She became his private secretary and collaborator. At her suggestion he compiled "Poems of Places, Southern States," and she assisted in this work. It is a quaint conceit of the poet which causes him to treat the South as a separate country. In that interesting book, "Poets' Homes," appears a description of Longfellow's home written by her. It is given the place of honor in the book, but by a strange oversight no credit is given to the author. In one of her early letters from Boston, published in the *Memphis Avalanche* she writes: "A great man and a poet, who enjoys the additional distinction of being my very good friend, read my first letter written for your columns, with an evident amusement, which he made a commendable effort to suppress. 'This is too bad,' frowned he, between smiles, 'don't do it again. Write about the good side of Boston next time.'"

She wrote a number of letters for Southern newspapers in a style that the ordinary newspaper man would strive in vain to emulate, though she regarded the letters as mere potboilers. They give interesting accounts of the happenings in Boston, and her impressions of Boston's great men: Emerson, William Lloyd Garrison, Oliver Wendell Holmes and Wendell Philips. She says of Boston: "For the native Bostonian there are three paths to glory. If his name be Quincy or Adams, nothing more is expected of him. His blue blood carries him through life with glory and straight to heaven when he dies. Failing in the happy accident of birth, the candidate for Beacon Hill honors must write a book. This is easy. The man who can breathe Boston air and not write a book is either a fool or a phenomenon. One course remains to him should he miss fame in both these lines. He must be a reformer."

She thus speaks of her meeting with Mr. Emerson: "The unaffected charm of Mr. Emerson's manner soon restored me to my normal serenity, and the interview progressed delightfully for both of us. He has the purest and most refined face I have ever seen, and his smile is something to be remembered forever. Of course we spoke of the South, and he expressed the opinion that the Southern man had a more elegant manner and a finer physical frame than the Northerner, but must generally yield the palm in intellect. And to this I assented sorrowfully enough, recalling as I did, the small returns from the stock I took in a certain Philo club, where I spent the ambrosial evenings of my life and pinned my faith to several masculine coat sleeves

of intellectual giants pro tempore, who would have brought my tawny hair down in sorrow to the grave—if I hadn't taken the pin out.

"Mr. Emerson has a way of looking off into the distance as he speaks or listens which is very poetic and beautiful. I liked it, but yet I was not happy, for I had a knot of purple violets in my hair, and I distrusted this way of appreciating them. I don't wear violets every day; nor for the Colonel who talks politics to me; nor for the young preacher who propounds chemical conundrums. And so they meant something in this case! perhaps to subtly express the homage of a Southern heart, that I had no skill to put into words. I dare say, however, the great man received a general impression of sweetness and perhaps it is well he did not trace it to outside influences.

"On the whole, Mr. Emerson personally strikes me as one who might falsify that comprehensive saying that no man is a hero to his valet, as I cannot imagine him under any circumstances other than the consistent high-toned man, who beyond all scholarship and learning

'Still may hear without abuse
That Grand old name of gentleman.'"

She thus describes her impressions of Carl Schurz, the occasion on which she saw him being a Sumner memorial meeting: "He is German in accent but not in appearance. His full whiskers are red, not blonde. And his features have none of the Teutonic heaviness, but are rather characterized by the sagacious sharpness of the American. The eulogy was very fine, and repeated bursts of applause testified to the enthusiasm of the audience. Most especially I must note the warm and hearty reception accorded that part of the address in which Mr. Schurz spoke of the noble and manly stand taken by Mr. Lamar, of Mississippi, and paid a just tribute to his brilliant eloquence, which was especially grateful to my Southern pride."

In the following paragraph she gives her Southern readers a pen picture of her poet friend:

"Longfellow was there from his beautiful historic home. Bret Harte calls him his 'ideal poet,' and as one looks upon his gracious, benignant face, framed in silvery hair, and reverently notes the broad thoughtful brow, and the eyes from which love toward all mankind seemed to beam, it is easy to comprehend how the perfect harmony between the man and his works

should win from one, a poet himself, the highest praise he could possibly bestow."

In her stories Longfellow suggested that she write of the life around her, but she chose, and wisely, the life of the South that she knew best, and the poet admitted in the end that her instinct had led her aright. Before '76 she wrote some of the "Gran-mammy Stories" and other short sketches that found a ready sale. Longfellow said that she would be "the American writer of the future."

Eleven years after "Laura Capello" was written its author visited the scenes where the plot was laid. She enjoyed deeply this foreign travel, and has left a partial record of it in her letters published in Boston and Southern papers, and in her private correspondence. She writes thus to a friend from Rome: "I am living every hour, never have I known days of such enchantment; Roman violets that make the air sweet, Roman fleas that bite with a Swinburne ardor, Roman donkeys that bray in the early morning, Roman shops that bewilder with their gems, shopmen who will make you buy whether you will or no; even in these delights I revel, so what can I say of the pictures, the statues, the ruins of Rome? Do you remember how my Lilian exhausted her raptures after the first layer of her box, and sat afterwards in a mute adoring ecstasy? Think of Lilian's mother in the same position."

Several days were spent by her party at a little coast town in France. At times the hours lagged, so the little group, like the young people in the *Decameron*, devised game and story to amuse themselves. Sherwood Bonner showed herself the most fruitful of device, and became the leader in the sport. She devised a game that was played with avidity. The loser each time was supposed to pay the forfeit by taking his life with his own hands. A wan young Scotsman who had been "Ordered South" chanced to be one of the party and participated in the game. For the rest it was a pleasing pastime, but for him it had a tragic suggestion, for at that time Robert Louis Stevenson—it was no less than he—had begun that hand to hand conflict with disease that terminated fatally twenty years later. It is thought that he received from this game the suggestion of that very unusual story of his, "The Suicide Club."

Home at last came this busy working bee after her flitting in distant lands. "The Crest of the White Hat," "Rosine's Story," and other sketches show the effect of this foreign travel. The years following were filled with hard work; ever attaining, but never quite satisfied, she strove to make each piece better than the last. During this period she wrote a clever characterization in verse of "The Radical Club," which set all Boston to laughing.

Sometimes she had her hours of despondency as when she wrote a friend, "Put up a tablet for me in case I join the mermaids and write on it,

Death came to set me free,
I met him cheerily
As my true friend."

During the summer of '78 yellow fever raged in many parts of the South. The citizens of Holly Springs with a noble disregard for consequences offered an asylum to the refugees from the stricken town of Grenada; in this way the plague was introduced, and of the first hundred who took the fever only ten survived.

Sherwood Bonner was in the North at the time, but she at once hurried to Holly Springs to urge her loved ones to seek a place of safety. But the old physician would not go and his son remained with him; they were soon stricken with fever; she nursed by their bedside during the weary hours of their sickness and they died in her arms on the same day. She escaped the disease, but left Holly Springs broken in health from her constant vigils, and wounded in spirit. She wrote an account of the plague for *The Youth's Companion*, from which the following extract is taken: "It is not alone to see loved ones die; it is to dread their dying kiss. It is not to watch the dear dead face until the coffin lid is closed above it, but to turn, shuddering, from the face where you can see waves of change follow each other, until it has become a yellow transfigured mask. It is not to see the folded hand clasping flowers, the dear forms enshrouded in fresh grave-clothes, nor to see them laid away with prayers uttered above them and friends standing by with uncovered heads, but it is to know—with what intensity of horror!—that these forms are changed to a poison so deadly, that death can be tasted in the air around them, and love itself shrinks from rendering its last sad offices. It is to know that they are buried, wrapped hastily in sheets,

sometimes uncoffined, hurried to deep graves, without friends, or mourners, or care, by hirelings, who slight and dread their task."

After the publication of "Like unto Like" she found ready publishers. Mr. Conant, the editor of *Harper's Weekly*, said to her, "I accept your articles now without reading them in advance, your signature is enough." Enduring fame was hers if she could only live to grasp it, but ere the noon hour was reached, the worker was laid low. She began to feel the approach of an insidious disease, which she strove in vain to throw off. Not wishing to distress her loved ones she spoke of it to only a few friends, who finally persuaded her to consult the best medical authority. The physician when he saw her perfect physique expressed his surprise at her coming. He made the examination, but hesitated to state the result. She would have the whole truth and he pronounced her death sentence, telling her that she had but a single year of life. She met her fate with fortitude, and determined to make the most of the few remaining months, in order to provide a competency for the loved ones that she must soon leave.

She worked on to the very gates of death, her courage never forsaking her; and even when her good right hand was useless she continued to dictate to an amanuensis, and was satisfied with nothing short of the best work.

February 14, 1883, she wrote:

A LONGED-FOR VALENTINE

Come to my aching heart, my weary soul,
And give my thoughts once more their vanquished will;
That I may strive and feel again the thrill
Of bounding hope, to reach its farthest goal.
Not Love, though sweet as that which Launcelot stole,
Nor Beauty, happy as a dancing rill,
Nor Gold poured out from some fond miser's till,
Nor yet a name on Fame's immortal scroll—
But what I ask, O gracious Lord, from Thee,
If to Thy throne my piteous cry can reach,
When stricken down like tempest-riven tree,
Too low for prayer to wreak itself in speech,
Is but the fair gift—ah, will it e'er be mine?

My long lost Health for my dear Valentine.

A dear friend writes of the closing days of her life: "During her hours of suffering, her bravery, her patience, and her heroism were extraordinary. One who watched by her dying bed said: 'I have seen her smile when it would have been a relief to see her cry.' She uttered no complaint and no one heard her repine. One day she gaily asked her friends what would be a suitable inscription for her tomb-stone; and from several that had been suggested she selected this, 'She was much loved.' Surely no words could furnish a more fitting epitaph for the young life that had done so much, enjoyed so much, suffered so much, in a little more than thirty years." The end came July 22, 1883.

Sherwood Bonner cast the witchery of her personal charm over all who surrounded her. Nature formed her to command, to love and to be loved. In childhood she was slight, but in womanhood she possessed a perfect physique. Hers was no usual beauty; her features were refined, but not regular: her complexion a delicate pink and white; expressive blue eyes, her hair an indescribable shade of auburn and very heavy; an exquisite mouth and chin; and a hand that would have been a sculptor's joy.

The poet Longfellow in a poem dedicated to her thus describes her:

"A cloud-like form that floateth on with the soft undulating
gait
Of one who moveth, as if motion were a pleasure."

Her heart was always true to the friends of her youth, and when they visited the North she was ever ready to introduce them to the circle of which she was so prominent a member. Adulation did not spoil her for she had the artist's perception with her woman's heart. Hers was a trenchant tongue and a stinging wit, but like the Venusian bard she was quite as ready to hold up her own foibles to ridicule as those of others.

She lived for her child, and nothing from her pen is more charming than the references to her in letters to friends, hitherto unpublished. In one of them she writes: "Now for my baby, she certainly is the most perfect child in the world. No human being knows how I love the little thing. Every plan of my life bears upon her future, and so long as she is left me, nothing can ever make me unhappy again."

We may not judge of her literary work as of a finished product. It is rather like a sculptor's dream that is but half realized. Lips are parted as if for speech, eyes look wistfully towards the East; but the figure is still restrained in its marble prison, and we wonder why the sculptor was stricken, the task unfinished.

But this unfinished work was fraught with rich promise. She probably wrote the first story of any writer that belongs to the distinctively Southern school. She wrote before '77 some of "The Gran'mammy Stories," and these seem to be the first negro dialect stories published in a Northern journal, and thus speaking to the whole country. She wrote in '78 "Like unto Like," a story that has to do with the reconstruction period. Into this field Cable came later, and Page selected it as a fitting period in which to locate his most ambitious work, "Red Rock." Only one writer before her had attempted to work this virgin soil, Baker in "Colonel Dunwoddie, Millionaire." In this book she refers to the "Tar Baby Story," which she published several years later in *Harper's Monthly*. She wrote some excellent dialect stories of the Tennessee mountains, thus doing pioneer work in a field which Miss Murfree has made so peculiarly her own. She spent some time beginning in 1880, in that portion of Illinois known as Egypt; and "On the Nine-Mile," and "Sister Weeden's Prayer" illuminate this dark world. These stories and a number of others were written in the dialect peculiar to this region. Of "Sister Weeden's Prayer" in the "new" dialect *The Nation* spoke in most complimentary terms. She seems to have been the first to give to the vernacular of this region literary treatment, thus doing for Illinois what Eggleston and Riley have done for Indiana.

Her principal writings may be grouped as follows: Early pieces, '64-'73;—Letters from Boston and Europe, '74-'76;—Short Stories published in periodicals between '73 and '83; a number of these were collected after the death of the author and reprinted in a volume entitled "Suwanee River Tales"^[1] (There are many excellent sketches in this little book, but the best are those in which Gran'mammy figures); to this period of her life belong "Miss Willard's Two Rings,"^[2] and "From '60 to '65"^[3];—"Like unto Like,"^[4] a novel, "The Valcours,"^[5] a novelette, "The Revolution in the Life of Mr. Balingall,"^[6] "Two Storms,"^[7] "A Volcanic Interlude,"^[8] appeared between '78 and '83. She wrote during these years besides, a number of dialect stories dealing with negro character, the mountaineers of East

Tennessee, and the denizens of the Western prairie. "Hieronymus Pop and the Baby," "The Case of Eliza Blelock" and "Lame Jerry" are all strong sketches. Some of these stories have appeared in book form.^[9]

The "Gran'mammy Stories"^[10] reveal with force and beauty the characteristics of the old Southern "mammy," who deserves a modest place with "The chaste and sage Dame Eurycleia" and fair Juliet's nurse; and Sherwood Bonner has made posterity her debtor by preserving the lineaments of this picturesque personage whose place formerly was of so much consequence in the Southern home. But let the author unfold her character:

"In our Southern home we were very fond of our old colored mammy, who had petted and scolded and nursed and coddled, — yes, and spanked us, — from the time we were born."

She was not a 'black mammy,' for her complexion was the color of clear coffee; and we did not call her 'mammy' but 'gran'mammy' because she had nursed our mother when a delicate baby,—loving her foster child, I believe, more than her own, and loving us for our dear mother's sake.

She was all tenderness when we were wee toddlers, not more than able to clutch at the great gold hoops in her ears, or cling to her ample skirts like little burrs; but she showed a sharper side as we grew old enough to 'bother round the kitchen' with inquisitive eyes and fingers and tongues. I regret to say that she sometimes called us 'limbs' and would wonder with many a groan and shake of her head, how we contrived to hold so much of the Evil One in our small frames.

"'I never seed sich chillern in all my born days,' she cried one day, when Ruth interrupted her in the midst of custard making, to beg leave to get into the kettle of boiling soap that she might be clean once for all, and never need another bath; while Sam, on the other side, entreated that she would make three 'points' of gravy with the fried chicken for dinner. (Sam always came out strong on pronunciation; his very errors leaned to virtue's side.)

"'I 'clar to gracious,' said poor gran'mammy, 'you'll drive all de sense clean outen my head. How Miss Mary 'xpec's me ter git a dinner fitten fur white folks ter eat, wid you little onruly sinners *furever* under foot, is mo' dan I

kin say. An' here's Leah an' Rachel, my own gran-chillern, a no mo' use ter me dan two tar babies.'

"As gran'mammy grew older, her manner softened; her love was less fluctuating. It was she to whom we ran to tell of triumphs and sorrows; she whose sympathy, ash-cakes and turnover pies never failed us. It was she who hung over our sickbeds; who told us stories more beautiful than we read in any books; who sang to us old-fashioned hymns of praise and faith; and who talked to us with childlike simplicity of the God whom she loved.

"During the troubled four years that swept like the hot breath of the simoon over our country, she was true to the family. Her love, courage, her faithful work, helped us to bear up under our heavy trials. And when the gentle mother whose life had been set to such sweet music that her spirit broke in the discords of dreadful war, sank out of life, it was in gran'mammy's arms that she died; and neither husband nor children mourned more tenderly for the beautiful life cut short."

"How Gran'mammy Broke the News" shows the tact of the faithful old nurse in revealing to "Aunt Sarah" the fact that her soldier son, who was reported to have been killed in battle, is alive and well, in fact has but a few moments before arrived at that house. One of gran'mammy's foster children is a witness of the scene. The little girl was for going to tell her aunt as soon as her cousin arrived, but gran'mammy said: "Stop, honey, stop; Miss Katie, you forgit. Don't you know dat joy itse'f is sometimes more dan a breakin' heart kin bear? Mis' Sarah is mighty frail; an' she mus' be made ready to meet dis shock, for dis is jes as much a *shock* as de lie dat struck her down. Blessed be de Lord for sendin' de last so quick on de heels of de fust. * * *

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"Aunt Sarah's door was ajar. She was seated by the fire in an attitude of utter dejection. Gran'mammy was bustling about the room, an expression of perplexity on her dear old brown face. Presently with a side-long glance at poor Aunt Sarah, gran'mammy began to sing softly. I had never heard her croon anything but Methodist hymns. Now, to my surprise, she broke forth in a chant that Miss Rose was very fond of singing with us after vesper

service Sunday afternoons, 'Praise de Lord, O my soul! O my soul; and forget not all his benefits.'

"At first Aunt Sarah took no notice; but, at a louder, more vigorous, 'Praise de Lord, *Praise de Lord!*' she shook her head, as if a gnat was buzzing about her ears, and looked at the singer with a dull look of surprise in her weary eyes.

"Gran'mammy *singing!*' she said, in a faint voice.

"Gran'mammy came and stood directly in front of my aunt. She tried to laugh, but the tears tumbled out of her eyes so fast that she choked in the effort to swallow them.

"'Why, yes, Mis' Sarah,' she at last manged to say; 'when my heart is light with thinkin' of de goodness of de Lord I can no mo' help singin' dan if I was a saint in heaven worshippin' at de throne.'

"'The goodness of God!' echoed Aunt Sarah, drearily; 'He has forgotten mercy; He has turned His face from me; He has left me desolate and forsaken in my old age.'

"'De Lord *never* forgits,' said gran'mammy, solemnly; 'an' He never fails to keep de promises He has made. Lean on me, Mis' Sarah. Rest yo' po' tired head. Speak de name of yo' boy, honey. It'll do yer good ter talk about him.

"'No, no, no!' said Aunt Sarah, shrinking back; 'I thought you loved him, gran'mammy, but you could come to my room and sing. Go away, I do not want you.'

"'I'll go, Mis' Sarah, in one little minute. Love Mars' Allan! Why, wusn't my arms de fust ter hol' him—a little soft helpless innocent—even before you held him to yo' own mother's heart? An' from that very minnnit I loved him. I kin see him now, a little white-headed boy, always runnin' ter his ole granmammy fur turnovers an' ginger-cakes. Hevn't I watched him all through de years, growin' as straight an' tall as a young poplar, full of his jokes, but with never a mean streak in him, bless de Lord! An' den, Mis' Sarah, don't you mind how he looked in his grey uniform, wid de gold lace on his sleeves; an' how his eyes would kindle an' his voice ring out when he talked of de country he loved next ter God?'

"Gran'mammy! do you want to break my heart? Why do you torture me?' And Aunt Sarah burst into such wild, wild tears that I was frightened.

"Oh! my po' sweet mistis, I wants to *mend* yo' heart, not break it;' and gran'mammy, too, burst into tears, kneeling now by Aunt Sarah, with her arms around her. 'I wants you to call ter mind jes' one thing—de commandment given by de Lord to his people, *given wid a promise*. Kin you say it over ter me?"

"Honor thy father and thy mother,' said Aunt Sarah, like one in a dream, 'and thy days shall be long in the land—'

"Stop dar, Mis' Sarah,—*stop at dat promise*,' almost shouted gran'mammy. 'Did Mars. Allan honor his father an' his mother?'

"Always! Always! He never disobeyed us in his life. No son could have been better or nobler.'

"*And thy days shall be long in the land*," cried gran'mammy, 'which the Lord thy God giveth thee!' Now, Miss Sarah, jes *trust God*. He won't break dat promise.'

"Words cannot do justice to the solemnity, the yearning tenderness, the pathetic earnestness, that made the dear old woman like one inspired. Wave after wave of feeling rolled over her face. I do not know how to express it, but a sacred, even a *religious* rapture seemed to hold her in its possession. Strong feeling had exalted her, I felt as if I should like to steal in and pray beside her. She still knelt, but she kept her arms about the frail figure in the arm-chair.

"Wild, vague suspicions were evidently forming in Aunt Sarah's mind. She looked at gran'mammy—a piteous, agonizing gaze. But gran'mammy's eyes met hers with steady joy.

"What do you mean?' she gasped huskily. 'In God's name, what do you mean?'

"I mean,—lean on me, dear, lean on me,—I mean dat if our blessed Lord wus on earth today, an' we could kneel at his feet askin' de life of our boy, he could not give it ter us. For Allan's grave has not been dug, an' Allan is livin' not dead today.'

"What have you heard?'

"'A messenger has come.'

"Then I saw a transformation. Aunt Sarah sprang up, the color and light flashing into cheeks and eyes, the vigor and erectness of youth restored to her shrunken and bowed figure. No longer a haggard old woman,—like a girl she threw open the door, and swept past me without a word."

"Gran'mammy's Last Gifts" has to do with the closing hours of her life.

The children that the old nurse had tended from infancy now gather around her bed. She had her daughter look in her chest and take from it a parcel. "The parcel was handed her, and taking off the outer covering, a white one was revealed; then a third wrapper of silver paper. Slowly, reverently, she unwound this; and there were two tiny, high-heeled satin slippers, yellow with age, but dainty enough for fairy feet.

"'De night your mother was married, honey,' said gran'mammy proudly, 'nobody waited on her but me. I unlaced de fine weddin' dress,—all lace an' satin,—an' I put de white nightgown over her head. An' when I took de slippers off her slim pretty feet, she flung her white arms aroun' my neck, an' she says, 'keep 'em gran'mammy, in memory o' dis night.' An' now, my chile, arter all dese years, I gives em ter you' de fustborn, your dead mother's weddin' slippers.'

"I could not speak for my tears. Was there ever a gift so delicately bestowed? I pressed the slippers to my heart kissing them and the faithful black hands that had taken them from the little feet so many years ago.

"'Now my little singin'-bird,' said gran'mammy to Ruth, 'I was boun' you should remember me; so I jes' went to de picture man, an' here's my ole black face for you to keep.'

"The likeness was perfect; and as Ruth warmly thanked her she sank back wearily on the pillows.

"'I'm tired now,' she said, 'Miss Ruthy, I'd like to hear you sing once more—before I hear de angels on de other side.'

"Ruth hushed her sobs and in her exquisite voice rolled out in those beautiful words:

"Only waiting till the shadows

Have a little longer grown,
Only waiting till the glimmer
Of the day's last beam is flown;
Only waiting till the angels
Open wide the mystic gate,
At whose feet I long have lingered,
Weary, poor and desolate."

"'Only waitin', murmured the dying voice. 'O my chillern!' and she spoke with sudden energy. 'In your hearts you are pityin' your poor ole gran'mammy; you are thinking o' de sun shinin' outside, an' de fflowes, an' home an' love. You see me lyin' here, ole, an' black, an' racked wid pain. But oh! what's de sunlight of earth to de glory roun' de throne of God? what's de flowers here ter de flowers in de gyardin younder? An' what's de love of earth ter dat waitin' for me, sinful an' onworthy though I am?

And with her beloved nurslings around her gran'mammy passed quietly away. Amongst her last words were, "Good-by Miss' Marthy, take good keer o' Miss' Mary's chillren."

"Two Storms," one of her latest stories, published in *Harper's Monthly*, deserves especial notice.

The story has to do with the gulf coast. We see a fair young wife with a husband who idolizes her, and a little daughter with her faithful black mammy. The mother dies suddenly, and the husband is felled by the blow. In his despair he curses Fate and would die. His child he neglects, in fact her presence is disturbing, since it but serves to remind him of his irreparable loss.

Little Dinah's lot is a hapless one. It would be tragic were it not for the devoted old nurse, who watches over her "Shorn Lamb" with a tenderness not to be surpassed by a mother. "'I wish I were a little dog' she said once to Maum Dulcie, 'then I could lick papa's hand, and perhaps he would pat my head.'

"'You po' little sweet rosebud!' cried the old woman, 'Ain't you got yo' ole nuss to love you an' pet you?'

"And in her compassionate tenderness Maum Dulcie did her best to spoil her charge by too great indulgence. * * *

"When at last she aroused from the long trance of her illness, it was to find a face she had dimly feared all her life, bent above her with a rapturous protecting love, to hear a father's voice murmuring: 'My child, my little Dinah, forgive your father for all you have suffered. It is over now, and we will begin a new life hand in hand.' Safe in the purest love man ever gives to woman, she rested on her father's heart; and Maum Dulcie said weeping: 'I dunno but it's a sin to give thanks fur dat Las' Islan' storm, an' I is as sorry as anybody fur de mo'ners an' de dead, but I can't help seein' de good dat de Lord brings out o' calamity.'"

She dedicates "Like unto Like" to Longfellow in the following verses:

O poet, master in melodius art,
O man, whom many love and all revere,
Take thou with kindly hand, the gift which here
I tender from a loving reverent heart.
For much received from thee I little give,
Yet gladly proffer less, from lesser store;
Knowing that I shall please thee still the more
By thus consenting in thy debt to live.

The story has to do with that time when the South Niobe-like still mourned her dead, and was unable to grasp fully the living present. The opening chapter reveals three Dixie lassies standing on the bridge at sunset—Blythe Herndon, Betty Page and Mary Barton. Each is a real flesh and blood maiden; and while each is southern, they differ much. Below them gurgles a limpid stream and peering into the clear water they see clinging to stones at the bottom moss, which twists itself into fantastic shapes. Above towers a lofty mountain, the setting sun now giving it a glowing aureole; from its base gushes a noble spring, the pride of Yariba, for so this Arcadian village is named. Each maiden speaks of the suggestion that this whirling, twirling moss carries to her mind, and by these and other confidences exchanged on the bridge we are enabled to form some opinion of the dispositions of the young girls, who are important characters in the story.

As the girls talk on the bridge, Mr. and Mrs. Herndon approach. They are still lovers after forty years; and sweet are the memories that crowd upon them now, for it was here they plighted their troth. They find the girls in

animated conversation about the advent of a Yankee regiment that is to be stationed at Yariba for the summer. And these loyal young "rebels" are not at all agreed that the officers should be received. Mrs. Tolliver has consented to take Colonel and Mrs. Dexter to board,—brave soul, it cost her many a pang, but she did it to aid her husband's fallen fortunes. This decision causes a flutter, but finally Mrs. Oglethorpe calls and where this lady leads all others follow. With the regiment comes Roger Ellis, a man of middle age, and an ultra-radical. He wins the heart of Blythe Herndon, and then loses it again largely through his own fault.

"But death to the dove
Is the falcon's love—
Oh sharp is the kiss of the falcon's beak!"

It is best to mate with your kind, this lesson the book teaches.

The story is briefly told, but its chief charm consists not in the plot, which is rather slight, but in the local color and character portrayal. The artist sketches from life. Squire Barton (the chief of the village detectives), who always knows all the happenings of the village, and thinks he *knows* much that never happens; he is the selfsame squire whose refrain is, "Search the whole world over, there is no place like Yariba," or "We are a good breed in Yariba;" Colonel Dexter, whose eyebrows are askew, the one fierce the other mild; Civil-Rights Bill, the little darky whose antics amuse the reader, but often bring him summary punishment from his old black gran'mammy; Ellis the enthusiast whose passion is reform; Blythe's grandmother, who has ceased to pray to her God because he allowed the Southern cause to fail; Mrs. Roy, the mountain woman, called 'po' white trash' by the plantation negro, but having a pathetic life, and individuality all her own; the forerunner of many others that appear later in the sketches of Craddock, McClelland and Sherwood Bonner; Aunt Sally, the old laundress, (she would have much preferred to be called a washer'oman), who sniffs at a wash board and beats her clothes, "I'se no puny Alabama nigger, I'se fum South Caliny, I 'longst to de oldest branch uv de Tollivers;" Van Tolliver, the brave soldier, the true gentleman who fought through the war, but accepted in good faith the arbitrament of the sword, and in the New South made for himself a place; Blythe Herndon, the idealist, who loved not wisely, and waking found her dream shattered; Betty Page, the cool, calculating

coquette; Mary Barton, the loving, sympathizing woman—all these are living breathing persons, not abstractions or figures on a stage.

This book was well received by the critics. Mr. Longfellow, in a letter to Mr. Harper of the firm, Harper and Brothers, says: "It has marked and decided merit, is beautifully written, and full of interest to North and South."

Mr. S. G. W. Benjamin wrote a highly favorable review of the book for *The Literary World*, Boston, from which the following extract is taken: "When a country is ripe for it, its literature comes unsought and the authors who are its creators appear. Among the various indications that such a literature is at hand, not the least is the publication of such a remarkable work as *Like unto Like*. In style it suggests the work of no other writer; its merits and its faults are entirely its own; its characters could only be found in our complex civilization. The plot is founded on certain phases of American society, and is evidently directly suggested by the author's personal experience and observation. * * * The characters of Blythe, Ellis, the abolitionist, Civil-Rights Bill, Mrs. Roy and the inimitable Mrs. Oglethorpe, abundantly vindicate their right to a prominent and permanent place in our literature."

A reviewer in the *Providence Journal* says: "We welcome it as an olive branch in the truest and best sense of the word. * * * There is not an attempt at fine writing in the book, and yet it is full of painting from life. There is excellent comedy and at least one scene of the deepest tragedy. Here and there we are reminded of Miss Austen, the common scenes of life are drawn with so much fidelity, but our American Miss Austen excels her English sister in imaginative delineation of character, and becomes the true poetess in the presence of nature."

Paul H. Hayne thus speaks of the work: "Regarded purely as a literary performance, this work, as I have before intimated, is exceedingly clever; in certain particulars even brilliantly able. The descriptions of scenery, which in most novels bore one unspeakably, are here vivid, picturesque and truthful, with occasional displays of bright, poetic enthusiasm: and of the *dramatis personae*, some are portrayed with quiet but significant humor, some with keen, ironic shrewdness, and one at least (the 'Grandmother of Blythe Herndon') with a degree of tragic force decidedly impressive."

The concluding extract is taken from a review of "Like unto Like" that appeared in *The Boston Courier*: "Sherwood Bonner's new novel in Harper's Library of American Fiction is a book so original, so charming, so complete in itself, that to write a review of it must be one of the most disheartening tasks possible. Not for many years has there been produced a novel so broadly American, so un-provincial while yet retaining the peculiar atmosphere of locality, and at the same time utterly unassuming as to its representation of 'phase.' Its art is so good and so fresh that it hardly impresses us as art; it is more nearly nature. And yet the story abounds in traces of dainty skill, and delightful appreciation of the shades and angles of character, and perfect and easy adaptation of words to the transmission of meaning, without that over-solicitude as to style which has become so fatiguing in our recent New England school of fiction writers. * * * The main thing to observe is that Sherwood Bonner has seized the transition period of the feeling between South and North so perfectly that her book will probably stand in the future as the best representative of this episode in the national life; and she has done this within the compass of a simple tale which commends itself to our affections quite independently of that special illustrative interest."

In *Harper's Monthly*, *Lippincott's Magazine* and *The Atlantic Monthly*, the book was favorably reviewed. Sherwood Bonner spoke of it as "a part of her training."

Mrs. Albert Anderson, her lifelong friend, wrote of her: "To literature she was 'Sherwood Bonner,' the young author, full of genius and promise; to society she was the beautiful, fascinating woman, always the central attraction in every room she entered, but to the companions of her youth she was only 'Kate,' the loyal, brave, trusted friend, whose untimely death has taken so much from life that it can never look the same again."

"Hers was a talent," says Dr. William Kirk "sure to expand and develop; she observed life and learned from it and was in no uneasy haste to record her impressions; the future was hers through her individuality, if fate could have permitted it." But for the work that she has done, which when weighed in the balances still sustains the test, Sherwood Bonner should possess for the students of Southern literature and Southern life, a permanent and abiding interest.

FOOTNOTES:

- [1] Boston, Roberts Brothers, 1884.
 - [2] Lippincott's Magazine, December, 1875.
 - [3] Lippincott's Magazine, October, 1876.
 - [4] New York, Harper and Brothers, 1878.
 - [5] Lippincott's Magazine, September, October, November and December, 1881.
 - [6] Harper's New Monthly Magazine, October, 1879.
 - [7] Harper's New Monthly Magazine, April, 1881.
 - [8] Lippincott's Magazine, April, 1880.
 - [9] "Dialect Tales," New York, Harper and Brothers, 1883.
 - [10] See "Suwanee River Tales."
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**"THE DAUGHTER OF THE
CONFEDERACY"—HER LIFE, CHARACTER,
AND WRITINGS. [\[11\]](#)
BY CHARLES CLIFTON FERRELL, PH. D.
(LEIPZIG).**

It was on the 27th of June 1864 that Winnie Davis was born in the 'White House' of the Confederacy at Richmond. The boom of cannons in the distance seemed to celebrate this important event,—the birth of a daughter in the reigning family. But in reality the firing was not a manifestation of joy; many of the cannons were hostile cannons which were ultimately to deprive her of her birthright. The superior forces of the Union were closing in upon the Confederate capital, and it was not long before it fell, and the little girl, as well as her parents and friends, became an outcast. She took part in the flight from Richmond, traveling by day and night in an army ambulance for hundreds of miles over rough roads through lonely woods, and being even carried at times long distances in her mother's arms. It was a veritable *via dolorosa*! The happy cooing of the baby alone comforted the bleeding hearts of the family and brought smiles to eyes bathed in tears. During the dark days of her father's imprisonment little Winnie, who alone of the children was allowed to visit him, [\[12\]](#) was the only sunshine that came to him. She liked to stay in his cell, where she played and prattled, all unconscious of the sad surroundings. She would put her arms round his neck, and he would clasp her to his bosom, forgetting everything for the moment except the baby fingers that were pressed against his cheek and the blue eyes that looked into his. It would be hard to overestimate the comfort she afforded him while he was treading the winepress of bitterness and humiliation.

Thus the infant had received the baptism of fire and deserved the name of 'Daughter of the Confederacy.'

Mrs. Davis tells some interesting anecdotes of the little girl's precocity, which I repeat in her own words. "When Winnie was very small,—I think three years old,—her father was reading aloud to me an essay on the refusal of a tomb to Byron in Westminster Abbey. The nurse took her up to carry her to bed and she called out: 'Oh, do leave me until I hear the rest. The English will regret refusing their great man a grave in their church;' showing she had comprehended the whole paper. Another time, when she was five years old, she was asked: 'For what was Abraham blessed?' 'For the manifestation of faith in hospitality,' she answered. No one had told her in this phrase, for I was her only teacher. At this same time she chanced to be at a church meeting, waiting for me and heard us talking of the minister's needs. For six months afterward she saved up her little pennies and one day tipped up behind him and put them into his hand, which was behind his back, saying: 'Dear Doctor, buy everything you want,—here is the money.' She asked questions which it taxed our mind and ingenuity to answer, and reasoned out her own theories and adjusted facts so as to suit her own ideas of right and justice. She could never become reconciled to the fatted calf being killed for the prodigal son, and sympathized passionately with the dutiful son who came from the field overtired with labor in his father's service to hear sounds of revelry in honor of the prodigal son, while he had never been given a fatted calf with which to entertain his friends."

The father took great pride in the development of his younger daughter's bright mind. He and Mrs. Davis were her first teachers and introduced her to the immortal writers that they knew best. Before she could read she knew 'The Wreck of the Hesperus,' 'The Fight at Coilantogle Ford,' and Allan-Bane's song in the dungeon of Stirling castle, and had the Bible at her tongue's end. At the age of twelve she knew by heart also many striking passages from Shakespeare and was an ardent admirer of the 'Wizard of the North.' In 1877 she was placed in a boarding school at Karlsruhe, Germany, where she remained five years. The mental and moral discipline maintained by the Protestant sisterhood that directed the school was of the strictest kind; the life was as secluded and as free from gaiety and frivolity as that of a convent. In 1882 Miss Davis went to Paris, where she studied French several months, and afterwards traveled extensively.

When she returned home she spoke German and French more fluently than English, and was well-versed in European, especially German literature and

history, but had little reverence for the learning and literary history of her own country. Her parents began by dictations and by interesting excerpts from Anglo-Saxon history to make her breathe their atmosphere and adapt herself to their habits of thought. After her many years of seclusion a new world opened before her young eyes when she made her first appearance in the gay society of New Orleans at the time of the Exposition. Now was formed her first acquaintance with theatre and opera. She was well prepared for this,—really her first encounter with life,—bringing to it a mind vigorous by nature and well disciplined by the study of history and economics. Hence, in spite of the great enthusiasm with which she met the world, she was prevented from forming any but just judgments of men and things. She was queen of Comus this same season,^[13] and somewhat later while attending her father on his triumphal procession through Alabama and Georgia she was introduced to the Confederate veterans by General Gordon as 'The Daughter of the Confederacy,'—an eminently appropriate title which she always wore in a manner worthy of her father's daughter.

In 1879 the family had moved to Beauvoir, where they lived until the death of Jefferson Davis. Miss Winnie's devotion to her father is said to have been beautiful. She was his constant companion, accompanying him on all his trips through the South; she served him as private secretary and assistant in all his literary work. She would walk hand in hand with him by the sounding sea; she would pore over volumes uninteresting to her because she knew his heart was in them; she would read aloud to him by the hour, and when he was weary she would sing to him sweet old Southern songs. In fact she was the stay of his declining years, succeeding in her effort to fill not only her own place but that of the sons he had lost.

After the death of the husband and father, Mrs. Davis and her daughter moved to the North. They felt that they must do so in order to secure work, which was now a necessity.^[14] It was also a great advantage to them in their literary labors to be in close touch with their publishers, and the Northern climate was better suited to the mother's health. 'The Daughter of the Confederacy' received an urgent and hearty invitation to attend every function connected with the 'lost cause,' which she always accepted when it was possible. Both hemispheres were shocked at the announcement that her life had been cut short at Narragansett Pier on the 18th of September 1898. As was fitting, her body was buried at Richmond, where her cradle had

stood,—in that city which is richest in memories of the 'lost cause' and all that is associated with it.

Splendid was the character of this woman who had been fondled and kissed in her babyhood by such men as Alexander H. Stephens, Judah P. Benjamin, Stephen R. Mallory, and the immortal Robert E. Lee. The hopes they expressed for her future usefulness as they stood around her cradle were fulfilled in rich measure. She always remained a child in her simplicity and in her exquisite purity of soul; she was a woman in dignity and in her ideas of justice before leaving the nurse's arms. Even when she was a mere baby she resented any reflection upon her truthfulness or sincerity; once when somebody reproved her for a supposed fault and threatened to tell her mother, she replied, "Do tell her, she always understands me; I am not afraid of my mother." After she had become known as one of the most cultured women of her time,—up to the very hour of her death, in fact,—she did not give up her tender, baby ways with her mother, to whom she would say simply, "I try to be a good girl, do you think, dear, I am?" She was unaffected, charitable, honest, and loyal. Her love for little children was very marked; to the sick and afflicted she was a ministering angel; she was almost worshiped by the poor people and the children about Beauvoir. It is said that she never allowed tramps to be turned away hungry even though she saw them impose upon her repeatedly. She was a model listener and would sit with her blue eyes shining with sympathy. Too modest to lead the conversation, she did so only when her interest in the subject and her knowledge of it made her forget herself and inspired her to speak. She was chary of expressing her opinions, which were honest and well-considered, and especially disliked pronunciamientos.

Charles Dudley Warner, who knew her and loved her for many years, pays a high tribute in an article as yet unpublished to her sterling character and ingenuous face, her sweet disposition, and power of great affection. He emphasizes her sympathetic nature, her simplicity of manner, her open-eyed candor, her transparent sincerity, and her unworldliness,—her disposition to place spiritual things above material things. He was especially struck with the fact that she was free from prejudice and bitterness with regard to the war between the States. He had reason to know that she rather shrank from the demonstrations of the Confederate veterans towards her, as she was a little timid in such matters, and had a very humble opinion of herself and

her merits and womanly reluctance to such publicity. Yet she met the trying situation admirably, her tact and delicacy preventing her from making any mistakes. She seemed to the veterans the embodiment of those principles for which they had fought, and she always remained true to the traditions of her family and of her beloved Southland.

The first thing Miss Davis published was a little poem in blank verse which appeared in 'The Times-Democrat;' it was an address to a group of giant pines at Beauvoir and was signed 'The Colonel.' She was a member of a little literary club in New Orleans called the 'Pangnostics,' at which each girl read a paper at an appointed time. 'The Daughter's of the Confederacy' chose for her subject Robert Emmet, in whom she felt a strong interest because Mrs. Davis' grandfather, Colonel James Kempe, of Natchez, had been one of Emmet's men before he was sixteen. Besides questioning her mother closely as to the stories which her great-grandfather had told about the ill-fated struggle for freedom in the home of his youth, she read at least twenty books on Irish history or subjects related to it, in order to prepare herself for writing, 'An Irish Knight of the Nineteenth Century,'^[15] as the piece was called, contains a vivid portrayal of the oppression of Ireland from the earliest times and a sympathetic sketch of the young patriot, whose life was a romantic tragedy. The author shows as great enthusiasm for freedom as does Schiller in his 'Robbers.' Charles Dudley Warner, who was present when the paper was read to the club, was much pleased with it, and Mr. and Mrs. Davis were so proud of it that they decided to have it published, expecting only to distribute copies gratuitously among their friends. However, it went through three editions, and although she had only a small percentage on the books, which sold for twenty-five cents, it brought the young girl \$300. Mr. Ridpath once told Mrs. Davis that it had gone through many Irish societies and awakened much enthusiasm.

The next publication, entitled 'Serpent Myths,' appeared in 'The North American Review.'^[16] It shows wide reading and offers an interesting and ingenious theory to explain the origin of these myths. After this came some short descriptions of German life written for various papers and some clever bits of versification which were never published. Two or three years after her father's death she wrote for 'The Ladies' Home Journal' a very strong article against foreign education for American girls, on the ground that such education gives the pupil a different point of view from her own people and

puts her out of harmony with her surroundings. This piece attracted wide attention in the North as well as in the South. She wrote for 'Belford's Magazine'^[17] a clever criticism of Colonel William Preston Johnston's theory that Hamlet was intended as a characterization of James I, of England.

Miss Davis next resolved to write a book, and chose for her subject a story her mother had told her about a veiled doctor that had once attended a member of Mrs. Davis' family in Pennsylvania. It shows the delicacy of her nature that she feared she might wound the feelings of his family and accordingly laid the scene of her story at Wickford, Rhode Island, in an old house which she had seen there. The main incidents of this novel^[18] are true. As it is her most ambitious work, I will speak of it in detail.^[19]

Doctor Gordon Wickford, the heir of the leading family in a provincial town, has married a city belle. She is a beautiful blonde, whose "glory lies in her hair," which she treasures above all other earthly possessions, including her husband. "He had prostrated himself spiritually before her beauty, and demanded nothing but the acceptance of his adulation." Too late he finds out that blind infatuation has caused him to marry a woman who is so vain, shallow, and frivolous as to be utterly unworthy of him. The uncongenial surroundings among which she finds herself serve to accent her lack of loveliness of character, and to widen the chasm between them. This becomes impassable, as far as he is concerned, when he catches her in a downright lie. Then he turns upon her for the first time, and tells her that, while she may remain in his house, she shall henceforth be his wife only in name. The spirit and determination he shows reveal to her a force of character she had never suspected in one who had been accustomed to yield to her in everything, and she begins to respect him thoroughly. Only after she has lost his love does she realize the value of it, and then she strives to win it back, while a genuine love for him begins to grow up within her own bosom.

As time goes on Wickford recognizes the fact that he is doomed to die of cancer, that dread disease to which other members of his family had already fallen victim. On returning from the city, where his worst fears with regard to his condition have been confirmed, he is thinking of seeking a reconciliation with Isabel, his wife, in order that she may comfort him in the

trying hours that are to come. He hesitates because he has heard her make so many unfeeling remarks about the afflicted and infirm, and knows she cannot bear to come into contact with suffering. While he is still in doubt what to do, a scene of which he is an unseen witness convinces him of his wife's infidelity, and in a moment of delirium he cuts off her beautiful hair and throws it into the fire. After this he is ill of brain-fever for a long time.

As he has completely ignored his wife ever since he discovered that she had been lying, he is not aware of the change in her feeling toward him. He persistently refuses to listen when his old aunt attempts to plead the cause of Isabel.

His sensitive nature cannot bear the thought of everybody seeing the mark of the loathsome disease as it slowly eats its way, so he covers his face with a black veil, which he never removes. He loses sight of his own condition in ministering to the sufferings of others. Finally, after many months his own hour comes, and he locks himself within his office, determined that no mortal eye shall see his last sufferings. He writes a letter to his wife beseeching her to respect his wishes in this matter, and assuring her that by doing so she can atone for all her sins against him. She obeys him to the letter, refusing, in spite of vigorous protests, to allow anyone to enter his chamber. She takes her position just outside his door, and listens with agony to his moaning until the end comes, when she finds a note, written just before he expired, in which he recognizes her love for him and asks her forgiveness. After her own great sorrow she is able really to sympathize with the sufferings of others, and finally goes down to the grave respected by all who know her.

Such is the story, briefly told. The title reminds us of Hawthorne's parable, 'The Minister's Black Veil.' Both Doctor Wickford and Parson Hooper put on the veil never to lay it aside even for a moment, and the effect on the outside world is naturally very much the same in both cases, but here the resemblance ceases, for the cause is physical in one instance and moral in the other. The selfishness and levity of Madame Wickford find a parallel in the heroine of Benson's 'Dodo', while her 'new birth' is not altogether unlike that of Marcella, who is, however, an infinitely stronger character. More interesting still is a comparison between our novel and 'The Forge Master' of George Ohnet. Claire persists in receiving the advances of her husband, Philippe Derblay, with such coldness that he finally loses patience and pays

her in her own coin. Her respect for him is awakened, and when he is on the point of fighting a duel for her sake, she rushes in between him and his adversary, revealing to him the fact that she now loves him devotedly. Thus a reconciliation is effected. I do not mean to say that our author has borrowed anything from these stories, for, while she is probably acquainted with them all, it is by no means certain that she has read any one of them. I have mentioned these points of resemblance merely because I think they are interesting.

I have heard the situations in 'The Veiled Doctor' characterized as unnatural and melodramatic, and the style criticised as stilted. With this opinion I cannot agree. Our author partially disarms criticism by calling our attention to the perspective,—the events being supposed to have taken place in "those times when the lives of men and women swung between the two poles of war's brutality and a super-refined sentimentalism, which seems mawkish to their more prosaic grandchildren." The ideals of different periods are not the same, and it is hardly safe to take those of our own as a perfectly reliable standard in judging those of another. For instance, to our age Goethe's 'Sorrows of Werther' seems full of maudlin sentimentality, yet it was received with wild enthusiasm when it appeared, for it mirrored perfectly the spirit of the time. All are agreed that a story should harmonize, at least in a general way, with its historical setting, for else we should be reminded of Horace's picture of the figure with a woman's head, a horse's neck, feathered body, and a fish's tail.

When we take into consideration the sensitive nature of Gordon Wickford and the ignorance of the physicians of his day with regard to the proper treatment of cancer, his desire to die alone does not seem so unnatural, and, if this view be accepted, Isabel's obedience is easily understood. It must be confessed that the most sympathetic and practical character in the book is 'Aunt Hannah.'

The style is not always what it should be, our author being at times unable to resist the temptation to use high-sounding phrases, but it sometimes manifests considerable strength, and we find numerous bits of description that are really clever and show excellent taste in their simplicity. I quote several passages:

"As yet the trees in the street had not completely hidden their graceful branch-lines in new spring greenery; there were still light young shoots in the box hedges, and the air was full of the breath of the spring. In the old garden long lines of crocus, yellow jonquils, and single blue hyacinths hedged the grass-plots. The snowballs were covered with great foamy white balls, periwinkles looked up clear-eyed from under the parlor windows, and everywhere the single blue violets were making the air sweet with their spring thanksgiving. The tall standard roses had thrown out pale-green racemes, and the 'bridal-wreath' bushes were just commencing to powder their branches with miniature blossoms. A young moon hung like a reape-hook in the evening sky; the bride and groom could see it between a fret-work of flowery apple and pear branches as they paced backward and forward in the soft air."

"At last the day broke rosy and splendid over a steel-blue sea."

"There was a freshness on her cheeks and a dewy look about her eyes that seemed to answer to the glory of the new day, and to proclaim her an integral part of the summer morning."

"Autumn had dressed the old town in sober suits of brown, laced with yellow and red; there was a sharp tang in the salt sea air that sent the blood dancing. The smell of the ripe apples, crushed by the cider-presses, pervaded the orchards, and in the fields the stacked dried corn showed the unsuspected wealth of golden pumpkins that grew between rows. Out in the woods the ferns had grown wan and pale, and the fading leaves began to carpet the dead summer's undergrowth. Day after day the officer and the lady rode away from the tree-shaded streets to the silent autumn forests where silver-gray oak-boles upheld canopies of brown velvet leaves. The gumtrees burned like fire, and the hickory and sassafras gleamed golden over the red sumach and whortleberry that made the old fields seem deluged with the blood of some mighty battle. At times the long lines of homing ducks would pass them, or a V of wild geese would sweep over their heads, crying 'honk-honk!'"

"Evening had come on, and the bare boughs were etched black against a lemon-colored sky, which melted into orange where it kissed the horizon."

"The rosy glow in the west faded to ashen gray as the day burned itself out."

"Autumn followed, spreading its rich India carpet of leaves before the retreating footsteps of the dying year."

"Again the dawn swept up out of the sea, rosy and clear; she could see the pink light of a new day on the western walls of the passage."

"He labored under the oppressive aloofness begotten by sorrow, which endows even the most familiar objects with a strangeness borrowed from the new relation that we thenceforth bear to our dead selves. The old landmarks seemed to be obliterated by the torrents of his anguish and he felt no more of the balm he anticipated from a sense of homecoming than he might have experienced in entering any wayside tavern. His disease created a spiritual alienation from all things, and in his heart, like the Jewish lepers, he cried out perpetually, 'Unclean! unclean!' proclaiming his eternal separation from humanity."

"There were all sorts of half-fledged thoughts nestling in his heart as he strode out into the night."

"A sudden apprehension shook her, every overwrought nerve in her body seemed strained to listen; the wind had risen since dark, and was moaning in the chimney. She heard him fumble with the bolts; it seemed an age before the door flew open with a crash, and the storm rushed in whooping, making the candles flicker and starting the smouldering logs into a blaze. Some one was talking to the Captain in the hall; now the door closed, and she heard his quick step coming back alone. The presentiment of impending evil that had oppressed her all day now took the form of anxiety for her husband; her fear grew into an awful certainty of misfortune as she listened for the Captain's return. Could Gordon have been taken ill? Was there an accident on the journey? Could he even be dead? 'Oh God,' she prayed dumbly, 'not without saying good-bye,—not angry with me, and without good-bye!'"

Finally, the moral of the book is one that has the sanction of the father of Greek tragedy; it is the familiar adage that wisdom comes through suffering. The strongest feature of the story is its interest; I could hardly put it down before I had finished it. This interest, which is inspired by its intrinsic merit, is increased by the fact that it is the work of 'The Daughter of the Confederacy.' While it is not a great book, it is well worth reading.

Next came many unsigned essays for different journals,—a Christmas story for 'The World,' and a pretty one called 'Maiblume' for 'Arthur's Home Journal.' Then followed a comprehensive article on 'The Women of the South before the War,'—before she was born. Mrs. Davis gave her the material, and her beautiful, pure soul shed upon it the moonlight of idealism. The piece last mentioned, as well as a remarkable paper on her father's character as she saw it, was published by McClure's syndicate.

Miss Davis was unusually well-versed in Chinese history, as she had spent two years reading it because of her intention of writing a Chinese novel. On this account 'A Romance of Summer Seas' has so strong a *vraisemblance* that people thought the author had visited the scenes so vividly described. Her knowledge of the Chinese world is shown also in an article not yet published which has for its title, 'An Experiment in Chinese Money;' it was written at the time of the silver and gold contest.

It was a cherished wish of the dutiful daughter to put herself in a position to buy a little home in a beautiful country district and a little pony carriage for her mother and herself. With this in view she wrote 'A Romance of Summer Seas,'^[20] which she had first intended to call 'An Unconventional Experiment.' She had contemplated writing a novel of which the scene should be laid at Hong-Kong,—a novel of a more ambitious nature than 'A Romance of Summer Seas.'

The 'unconventional experiment' consists in a young girl's being forced by circumstances to travel under the sole guardianship of a young Englishman from their home, Penang, off the coast of the Malay Peninsula, to Hong-Kong and Yokohama. The summer seas of the Orient and the two cities last named form the background of the story. The pair are very reserved and stand aloof from the other passengers until these begin to gossip about them and to whisper that the relations between them are not just what they should be. This causes two or three fights, two challenges, and one duel, all of which might have been avoided if the people on board had minded their own business. It also brings about a marriage between the young man and young girl in question, who have been awakened by these rude happenings to the consciousness that they love one another.

The characters are well-drawn and lifelike. Bush, the Globe Trotter, who tells the story, proves to be a very entertaining *raconteur* in spite of the

reputation he has of being an insufferable bore. He is loyal and true, and does not hesitate to risk his life for his new-found friend. Malcolm Ralstone and Minerva Primrose, the pair in whom the interest of the story centers, are not idealized but thoroughly human. Guthrie, the Kansas cattle king, is the best-drawn character of all; he is kind-hearted and manly, but the personification of vulgarity,—one of that type of Americans who travel much because they think it is the thing to do, make themselves very conspicuous by their loudness, bad manners, and ignorance, and do all they can to bring our country into disrepute. They are aided in this noble work by such vulgarians as the American consul at Hong-Kong,—these creatures who owe their prominence to the abuses of our consular system. Miss Edwina Starkey is a revised but unimproved edition of Mrs. Jellyby,—what Mrs. Jellyby might have been if she had become a sour old maid. Though an apostle of 'The Brotherhood for the Diffusion of Light,' Miss Edwina has about as much of the true spirit of Christianity as she has of personal beauty. Among the minor characters Doctor Clark is admirably drawn.

The book contains many charming bits of description; one has the feeling that Miss Davis must have visited these scenes which she so vividly paints. The life on shipboard seems very real. We find evidence of the closest observation of the world, and the results of this observation sententiously expressed. A quiet humor pervades the story, which is realistic in the best sense and quite healthy.

I insert a few extracts.

"We were all up on deck enjoying the black glory of the night,—stars set in a velvet pall overhead, and, below, the phosphorus fringes that edged every ripple in the water and made the ship's wake shine like a reflection of the Milky Way."

"As I sat there heedless of time, the light in the west faded, and the great blue dome blushed with a thousand delicate gradations of color, from the deep sapphire overhead, where the first stars twinkled, through fainter blues and apple greens, until everything melted into the gold of the horizon."

"So he went off, leaving me alone in the white glory of the tropic night. No words of mine can convey the magic of that moonlight, enveloping everything, and culminating in a glittering path across the water. Every now and then a fish jumped, and I could see its wet sides glitter; or a ghostly gull

swept by on silent wings, for when the full moon rides in the southern sky, not even the birds can sleep, but wake and sing their songs fitfully throughout the night."

"They sat at the window waiting, and watching the heat-lightning play in the west and the reflection of the ships' lamps that lay in the water like long yellow smudges. As the night closed in the threatened storm swept up out of the sea, deluging the city and whipping the quiet harbor into a foam; the thunder crashed incessantly, and the flashes of lightning showed stooping figures running along the bund to shelter, and hooded jinrikishas tearing by, the coolies' grass cloaks dripping at every blade."

"When one woman wishes to wound another she always strikes at her heart."

"Black was very inky and white immaculate to this son of the prairies."

"People never relish life as they do when the taste of death is still bitter between their teeth."

"Her heart was as pure as crystal."

"Women are the most conservative things alive."

"The face he turned upon me was no more the face of Minerva's lover than the sea in December is like the sea in June."

"I venture to say that very few of the dead would be entirely welcome if they returned unexpectedly to their widowed affinities."

"Nothing is so perfect a guarantee of respectability in a chance acquaintance as the names of your own friends on his visiting-list."

"Many babies and Burmese summers had exhausted all the elasticity she had ever possessed."

On the whole, 'A Romance of Summer Seas,' while it is on a less ambitious scale than 'The Veiled Doctor,' seems more natural and shows a gratifying advance along several lines.

When Miss Davis was suffering intensely in her last illness, she would pat her mother's hand and say, "We shall have our carriage when my book sells." But her unselfish dreams were not to be realized. The career which seemed so full of promise was cut short by death. Now we see through a

glass darkly; when we see face to face, we shall know why this life of usefulness ended in its morning. As long as the memories of the 'lost cause' linger in her beloved Southland, so long shall the name of Winnie Davis, 'The Daughter of the Confederacy,' remain unforgotten. She has passed away, but the perfume of her noble life will not pass away.

FOOTNOTES:

[11] The writer is indebted to the kindness of Mrs. Jefferson Davis for much of the information necessary in the preparation of this paper. Even Mrs. Davis, however, is unable to give the date when some of her daughter's minor pieces were published, and every effort to secure them has proved fruitless. They are either out of print or inaccessible.

[12] She was the only one of them he wished to have with him, as she alone would not understand that he was a prisoner.

[13] In 1892 she was queen of Momus,—an honor that has always been reserved for natives of New Orleans. Miss Davis is the only visitor upon whom it has ever been conferred.

[14] With their slender means the two women found it impossible to meet the interruptions and exactions of sight-seers at their home, so this too had something to do with the change of residence.

[15] John W. Lovell & Company, New York, about 1884 or 1885. Now out of print.

[16] February, 1888.

[17] March, 1891.

[18] 'The Veiled Doctor,' A Novel by Varina Anne Jefferson Davis, New York, Harper and Brothers, Publishers, 1895.

[19] The following review is practically the same as one published by the author of this paper in 'The University of Mississippi Magazine,' April 1896.

[20] 'A Romance of Summer Seas,' A Novel. By Varina Anne Jefferson-Davis, Author of 'The Veiled Doctor,' New York and London, Harper and Brothers, Publishers, 1898.

SIR WILLIAM DUNBAR—THE PIONEER OF SCIENTIST OF MISSISSIPPI. [\[21\]](#) BY FRANKLIN L. RILEY, PH. D. (JOHNS HOPKINS UNIVERSITY)

William Dunbar was born in 1749 at the celebrated manor house of Thunderton, near Elgin in Morayshire, Scotland. He was the youngest son of Sir Archibald Dunbar, who was head of one of the most ancient and famous earldoms in his native country.^{[\[22\]](#)} After William Dunbar's removal to America, he became head of this house in Scotland. Although he never assumed the title which he thus inherited, he is known in the history of his adopted state as Sir William Dunbar.^{[\[23\]](#)}

After he had received a liberal education at Glasgow, his fondness for mathematics and astronomy led him to continue these studies in London. His health failed in the latter place and he decided to try his fortune in the New World.

He procured from the great house of Hunter and Bailey, London, an outfit of goods suitable for trading with the Indians. He reached Philadelphia in April, 1771, and immediately transported his goods, to the value of about £1,000, overland to Fort Pitt (Pittsburg).^{[\[24\]](#)} Within two months he had exchanged them for furs and peltries, which he forwarded to London. He continued in this business for two years, when he formed a partnership with John Ross, a prominent Scotch merchant and capitalist of Philadelphia.

In order to establish a plantation in the British province of West Florida, Dunbar descended the Ohio and Mississippi in 1773, and selected a tract of land near Baton Rouge, then called by the English, New Richmond. He went to Pensacola, capitol of West Florida, where he received from Governor Chester permission to settle the tract selected, and thence to Jamaica, where he bought a large number of slaves, direct from Africa. With these, he returned to his new home, by way of Pensacola, the lakes, and the Amite.

He first directed his attention to raising indigo, but soon found that it was more profitable to manufacture staves for the West India market. These he exchanged for such commodities as were demanded by his neighbors along the Mississippi. ^[25]

From a document written in 1773, and found among the papers of George Chalmers, Secretary of Trade of Great Britain, we find that at this time there were only thirty-three settlements east of the Mississippi and between Natchez and what is now the state of Louisiana. ^[26] But from that date the streams of immigration began to flow steadily into this new country. This fact is shown by another contemporary manuscript, which was written by Gov. Chester, shortly after the Spanish conquest of West Florida. In it he says that in 1778, "considering the importance of the Western Parts of the Colony (of West Florida) lying on the River Mississippi which had so far increased in its inhabitants____that since the____last Assembly (held in 1772) it had been divided from the District of Mobile or Charlotte County and erected into Two Districts, viz.: The District of Manschack and the District of Natchez and contained a great number of respectable wealthy Planters and Settlers than either of the other Districts in the Colony" (Mobile and Pensacola). ^[27]

During the greater part of his first six years' residence near Baton Rouge, Dunbar suffered from a series of misfortunes which well-nigh destroyed all that he could accumulate through his industry and thrift. In 1775, he lost some of his most valuable slaves through a rebellion in which they were implicated. Three years later, his house and plantation were plundered by one Capt. James Willing, ^[28] who, although a commissioned officer in the continental army was really a freebooter. In speaking of Willing's visitation, Dunbar says, in his private Journal that "the houses of the British gentlemen on the English side were plundered, and among the rest, mine was robbed of everything that could be carried away—all my wearing apparel, bed and table linen; not a shirt was left in the house,—blankets, pieces of cloth, sugar, silverware. In short, all was fish that came in their net____I was plundered of £200 sterling value." ^[29] The year following, 1779, his plantation was again raided,—this time by marauding bands of soldiers from the Spanish army that subdued the district under their gallant leader, Galvez.

For several years after the last of these misfortunes, Dunbar was left undisturbed in his pursuits; and by constant application to business and the adroit management of the affairs of his firm, he accumulated a competency.

In 1787, he wrote to his partner, Mr. Ross, that the lands at Natchez were far preferable to their lands at Baton Rouge; that the Natchez soil was particularly favorable to the production of tobacco and that there were overseers in that part of the country who would engage to produce from two to three hogsheads to the hand besides provisions. His final settlement was at a place nine miles south of Natchez and four miles east of the Mississippi River. Here he opened the celebrated plantation called "The Forest," where he spent the remainder of his life.

On account of the competition from Kentucky and the Spanish restrictions on trade, he found the cultivation of tobacco unprofitable. He directed his attention to the raising of indigo, but was soon forced to abandon this also, because of the ravages of an insect. He then engaged in the cultivation of cotton, which proved to be a very remunerative crop. We are told that he became "the most extensive and successful planter" in this region, being one of the first to turn the attention of the planters of the Natchez District to the advantages which the cultivation of cotton afforded over other crops. In 1799 he wrote to Mr. Ross of Philadelphia that he continued to cultivate cotton with very great success and that it was by far the most remunerative staple that had been raised in this county.^[30] In another letter, written while in the midst of the cotton harvest, he said that he had made "not less than 20,000 pounds of clean cotton worth in London £2,000." He also mentioned that he had helped to improve the method of packing cotton by the introduction of the square bale. In order to perfect this improvement, he requested his correspondent to have a screw press made in Philadelphia according to the specifications which were enclosed.^[31] In a subsequent letter written to the same party, Dunbar expressed his surprise that the press should have cost him \$1,000, but added that he would try "to indemnify" himself "by extracting an oil from the cotton seed." He requested to be informed what price such an oil would bring in the market, stating that it would probably be classed "between the drying and fat oils, resembling linseed in color and tenacity, but perhaps less drying."^[32] Claiborne says that this was "the first suggestion of that product which has now become a great article of commerce, or indeed of utilizing cotton seed at all. At that

period it was not dreamed of as a fertilizer, nor fed, in any shape to stock. It was usually burnt or hauled to a strong enclosure, at a remote part of the farm, to decompose, and was considered of no use whatever, and really a nuisance."^[33]

These brief extracts, from the correspondence of Dunbar, show that he made a practical application of the scientific principles which he had learned in his native country. No comments are needed to show that he was a man of thought as well as of action.

Dunbar continued his business relations with Mr. Ross until the partnership was dissolved by the death of the latter in 1800. The interest of the heirs of the deceased was then bought by Mr. Dunbar for about \$20,000.^[34]

The remaining years of his life were devoted almost exclusively to scientific investigations, which he frequently characterized as his "favorite amusements." He seemed to be indifferent to political preferment, and though out of deference to the wishes of his people, he sometimes permitted an interruption of his scientific work in order to perform the duties of the offices which were more than once thrust upon him, such labors were not congenial to him. After the adjournment of the Territorial Legislature in 1803 of which he was a member, he wrote to President Jefferson expressing his delight upon being able to return to his scientific work.^[35]

No greater injustice could be done Mr. Dunbar than to infer that his political indifference was due to lack of patriotism. His strong attachment to the home of his adoption is shown in the following extract from a letter to President Jefferson, written January 7, 1803:—"By a letter____from my much esteemed friend, Mrs. Trist,____she says that you had informed her it was my intention to remove shortly from this country; I beg leave to remove this impression. Since the country has been united to the American federation, I have never ceased to consider it as my own country which I hope never to be under the necessity of abandoning."^[36] In another letter, written to the same great statesman six months later, Dunbar calls attention to the "renewed activity and immigration of the French to the Mississippi Valley," and expresses a fear of the consequences to follow therefrom. "It is desirable," he adds, "to preserve the whole of the Valley of the Mississippi for the spread of the people of the United States; who might in the progress of a century, plant the fine western valley of the Mississippi with many

millions of inhabitants, speaking the same language with ourselves. It ought not to be objected that this object is too remote to merit contemplation of the present moment."^[37] He then gives a discussion of the political methods of the French and Spaniards; also his ideas of the reason why the Spaniards had stopped the right of deposit at New Orleans, with circumstances to confirm the same.

He closes this letter by saying that politics is not a favorite subject with him, and that he would probably not introduce it again into their correspondence, unless in the view of communicating something which it might be important for Jefferson to know. However sincere may have been his intentions to abstain from writing on political matters, we find that in his next letter to Jefferson, written about four months later, he discusses at length the claim of Louisiana to West Florida, and gives a representation of the political outlook of Mississippi and of Louisiana.^[38] In another letter, written three months later still, he opposes a resolution submitted to Congress "to deprive Jefferson College of thirty acres of land____and to give the same to the city of Natchez."^[39]

Dunbar's greatest claim to prominence is based upon the results of his scientific investigations. His researches in this remote and then unexplored field of inquiry brought him into fellowship with the wise and learned of all countries, and gained for him a reputation wider perhaps than that of any other scientist in the history of the State. Col. Claiborne, writing in 1876, said of him that he "was not only the most learned man of his time on the Mississippi, but we have had no man his equal since."^[40] Dunbar's fondness for mathematics and astronomy made him the friend and correspondent of Sir William Herschel. He also numbered among his correspondents some of the foremost scientists of his time,—Hunter, Bartram, Rittenhouse, and Rush.

During the latter part of the Spanish rule, he was appointed Surveyor General of the District of Natchez. He also served as a representative of the Spanish government in locating the 31° of North Latitude, which was established as the boundary line between the United States and the Spanish possessions east of the Mississippi. As he was never a subject of his Catholic Majesty,^[41] these services were strictly professional. The relationship between him and Governor Gayoso was, however, very cordial,

as is shown by their correspondence.^[42] Upon one occasion,^[43] Dunbar presented Gayoso with a costly sextant, which the latter needed in order to complete a course of astronomical observations upon which he was engaged. At another time^[44] Gayoso had cause to thank Dunbar for the use of a "famous astronomical circle" belonging to the latter. Gayoso says of this instrument, "it surpassed my expectation,____. Every part is so delicately finished and solidly supported & so well prepared to be adjusted that it would give me courage to make an observation myself. If the instrument was not your own property I would have advised you to make a voyage to admire it. Now I think with your assistance I may with confidence and decency proceed to the demarcation of the Line as soon as I receive orders for the purpose." The sickness of Mr. Dunbar about this time was a source of great concern to Gayoso. In a third letter^[45] upon this subject, written two weeks before the work upon the line began, Gayoso expressed some apprehension that, for his sake, Dunbar might imprudently expose himself. When Dunbar was at work upon the line, Gayoso wrote to him as follows: "I congratulate myself for having had the opportunity of meeting with a person so well calculated to fulfill so important a charge for which is required science with every other quality worthy of public trust; you possess them all in a degree to do honor to any country; these are my sincere sentiments."

Dunbar's services on the line of demarcation extended from May 26 to August 28, 1798, the time consumed in surveying the first eighteen miles of the boundary.^[46] The preliminary observations leading to the location of the 31° were made in his private observatory on Union Hill.^[47] An inundation of the Mississippi prevented the survey from beginning at the bank of the river. The water having receded by the 28th of July, Dunbar began to extend the line to the river from the point of starting, while Ellicott, the American Commissioner, continued his survey to the east.^[48] Through this swamp, which was found to be 2111.42 French toises or 2 miles and 186 perches English measure, a trace sixty feet wide was cut to designate the boundary, and posts were put at intervals of a mile.

Dunbar rejoined the American Commissioners on August 20. A few days later he made the following entry in his report to the Spanish government:—"I set out on the 31st day of August bidding a final adieu to the

Gentlemen of both Commissions, with whom I had spent three months in a manner highly agreeable to my own taste, and with uninterrupted harmony on my part with every gentleman of both parties, and had it not been that my family and other interests demanded my protection and superintendence, I should have with pleasure pursued this employment to its conclusion."^[49] Ellicott, in his report of this survey, published in the Transactions of the American Philosophical Society, says:—"To William Dunbar, Esq., of the Mississippi Territory I feel myself under the greatest obligations for his assistance during the short time he was with us; his extensive scientific acquirements, added to a singular facility in making calculations would have reduced my labour to a mere amusement, if he had continued."^[50] The same writer in his Journal, published in Philadelphia, five years after his association with Dunbar, says that he is "a gentleman whose extensive information and scientific acquirements would give him a distinguished rank in any place or in any country."^[51] Since Ellicott himself was one of the foremost scientists of his time in this country^[52] the value of his estimate of Dunbar cannot be questioned.

A few months after the completion of this important public survey, Daniel Clarke wrote a letter to Thomas Jefferson, in which he referred to Dunbar as "a person worthy of being consulted____on subjects relating to this Country its productions, or any philosophical Question connected with them____For Science, Probity & general information (he) is the first Character in this part of the World. His long residence in this Country, still but little known to men of letters, its Situation with respect to many Savage tribes, some of which lately inhabited the very Place where he resides & where their visages are still perceptible, the extensive Communications with remote parts presented by the Mississippi and concourse of Indians & traders, have given him many opportunities of making observations which may not have presented themselves to others and may not probably occur in future, to these may be added those he has made on the Country itself, its population, manners, Customs of the Inhabitants, the different Changes in their Government for the last 40 years, the Climate, soil & Trade which are but little known abroad."^[53]

The manuscript correspondence of Thomas Jefferson, in the Archives of the Department of State at Washington shows that he acted upon this suggestion

from Mr Clarke. In this collection there have been preserved fifteen letters that were written by Dunbar.

The first of these in chronological order, bears the date of July 15, 1800. It states briefly that in compliance with the request of a friend in London, Dunbar had prepared certain notes and remarks "made while upon the line of Demarcation." These he sent to Jefferson with a request that after reading he forward them to London. Jefferson, who was then President of the American Philosophical Society and a great patron of science, was so favorably impressed by these notes that instead of forwarding them as directed, he sent them to Dr. Wistar of Philadelphia with a recommendation that Dunbar be elected to membership in the Philosophical Society. On this point Jefferson wrote that he had proposed so many members at different times that he was afraid to add to the number. "Yet," says he, "Dunbar ought to be associated to us. I enclose you a letter with communications of his to Mr. Smith of London which ____ will enable you to judge of his degree of science, & therefore, I leave them open for your perusal, & will pray you to seal & send them ____ to London." Shortly after this Dunbar was elected to membership in this, the most celebrated organization of scientists in the early history of the United States. The fact that only thirteen other Americans were added to this body during the three years from January 1st, 1799 to 1802, gives a proper estimate of the high honor conferred upon Mr. Dunbar. In writing to Dunbar, shortly after this recognition of his scientific attainments, Ellicott says: "If you do justice to your own abilities and observations, you will do credit to the society by your communications."

Before considering the character and extent of his subsequent contributions to science, the notes and remarks referred to above demand consideration. These are contained in his report of the survey to his Catholic Majesty, [\[54\]](#) the Spanish copy of which is in the archives at Madrid. Several years ago it was examined by Alexander Everett, who often referred to it as "a document of rare science and accuracy." [\[55\]](#)

It consists of two parts. The first treats of the mathematical calculations and the astronomical observations made in locating the 31° of latitude and in surveying the first eighteen miles of the line of demarcation. The remainder consists of notes taken at his encampment on the Bluff, in August, 1798. These treat, for the most part, of the vegetable and animal life to be found

along the line of the survey, particularly in the swamp of the Mississippi river.

He makes several interesting observations on the red and the white cypress, the former of which he says is the more valuable for strength and durability, owing to its being impregnated with resin. He also observes that the "cypress knees," as they are commonly called, never reach a height greater than the high water mark. In combating the theory of Dupratz that the cypress is propagated from its root, Dunbar says that is "invariably propagated from the seed, which is about the size of a Spanish walnut," and that he has "often observed half a dozen or more young plants produced from one apple, which often coalesce into one and sometimes the greater part perish to make room for their more fortunate brethren." He says of one species of the white oak, that "nature has so ordained that the husk embraces the acorn so firmly that they are not separated by their fall from the tree, by which means this case by its comparatively small specific gravity buoys up the acorn, and being carried along by the various current of the inundation, serves to plant distant colonies of this species." He also gives an interesting account of the cotton tree, the willow and the bamboo cane, the last of which he attempts to classify botanically. He says of the cane: "It produces a very abundant crop of grain, and that only once, for it immediately after perishes, root and branch, it is not known how many years the reed requires to arrive at this state of maturity; if we were to suppose that 25 years were its limit, it must happen that a person who has resided during that length of time in this country and who has visited many parts of it must have seen all the cane that came under his inspection once in grain, and upon the average one twenty-fifth part of all the cane in a large tract of country ought annually to yield a crop, but this is by no means the case, for I who have lived during that length of time in this country and have frequently traversed many extensive tracts of it, have never in any one year seen 1-500 part of the canes in seed of those parts that I have intimately known." He therefore concludes that it must require at least five hundred years for this plant to reach "a state of maturity to enable it to bear a crop of seed."

His description of the ornamental trees of this region is graphic and interesting. No one can read his account of the magnolia tree without being deeply impressed with the fact that he appreciated its beauty. In studying

the properties of the poplar, he made a hydrometer of a thin, broad piece of plank of this material, cut across the grain. He "improved its sensibility by boiling it when very dry, in a solution of mild alkali or carbonated potash." He describes many other trees, among which are the dogwood, the redbud, the wild cherry, the horse chestnut and the sweet gum.

He records the observation of a very rare phenomenon, which he saw August 12th, when engaged upon this work. It was a rainbow that consisted of more than a semi-circle, "the vertical point" of which "did not seem more than 8 feet from the eye, although the inferior parts seemed farther removed, which produced an optical deception by giving it the appearance of an ellipsis, the transverse diameter being parallel to the horizon; this perhaps is the first natural rainbow exceeding a semi-circle which has been seen by a human eye, because to produce such an effect from the general idea formed of this phenomenon, the sun ought to be in the horizon to cause the appearance of a full semi-circle exceeded only by the parallax angle of the elevation of the eye above the base of the rainbow, which must generally be insensible; the above effect however is easily accounted for on Newton's principles^[56] from the peculiar circumstances in which I was placed."

He says that the microscope reveals in the water of this part of the country the same varieties of animalculæ which he had often examined in Europe and many new ones, which he does not remember to have seen described by any writer, and which he hopes to find leisure to describe at some future day.

After giving a brief account of some of the wild animals, reptiles, fish, and birds of this country, he concludes with lists of the "vegetable productions of the Swampy Grounds or such as are much exposed to the Annual Inundation;" the "most remarkable vegetable productions of the high lands;" and the "Trees and Plants cultivated by the Inhabitants of the Mississippi territory and by those of the adjoining Spanish Provinces."

As has been noted above, the last ten years of Dunbar's life were devoted almost entirely to scientific research. The value of his contributions to knowledge was widely recognized, and "The Forest" became familiar to the scientific world, though it was sometimes incorrectly placed in Louisiana.

Volume V. of the Transactions of the American Philosophical Society, published in Philadelphia in 1801, contains three articles from his pen, and Volume VI. of the same publication, issued eight years later, contains twelve, one of which was translated into the German and appeared in Gilbert's Annalen of Physics, vol. 31,^[57] published in Leipzig in 1809. To this latter volume of the Transactions Andrew Ellicott contributed nine articles, Jose Joaquin de Ferrer, eight, Dr. Benjamin Smith Barton, five, Benj. Henry Latrobe, three, and Dr. Joseph Priestly, F. R. S., three, while to repeat Dunbar contributed twelve. This shows that Dunbar was at that time one of the most active investigators on the continent.

His contributions to the Transactions and his correspondence with Jefferson give a conception of the character and extent to his investigations. The first of these contributions was written June 30, 1800, and treats of the "Language of Signs among certain North American Indians." In this he traces certain points of analogy "between the Chinese written language and our Western language of signs." In both, says he, there are certain "roots of language in which every other word or species in a systematic sense is referred to its proper genus or root." He gives, for example, the sign for water which is a genus and shows that rain, snow, ice, hail, hoar-frost, dew, etc., are species represented by signs more or less complex, retaining always the root or genus as the basis of the compound sign. He adduces other interesting facts from this study of the subject, which cannot be given in this connection.

His Meteorological Observations for 1799, gives unmistakable evidence of his devotion to science. It shows that three times a day, each day in the year, he recorded the temperature and the barometric readings; also the direction and strength of the winds with the state of the weather, and the amount of rainfall together with remarks about the state of the vegetation from time to time. To this he adds a Recapitulation, giving the greatest, the lowest, and the mean points of the thermometer and the barometer, and the amount of rainfall for each month and then for the whole year. The Editor of the publication states in a footnote that "the society have been induced to publish this journal *entire*, as it is certainly the first that has been kept with so much accuracy and attention in that part of the world, and may serve as a standard with which to compare future observations."

In another article, Dunbar gives a "Description of a singular phenomenon seen at Baton Rouge" in the spring of 1800.

His fourth contribution consists in extracts from a letter dated Aug. 22, 1801, which he wrote to Jefferson, relative "to fossil bones found in Louisiana, and to Lunar Rainbows observed West of the Mississippi." In this letter, he referred to an account of "Dr. Hooks' scheme of a telegraphy, in the year 1684," which he intended to transmit to Jefferson, but found himself anticipated in that communication by a paper in the first volume of the London Philosophical Magazine. He also directs Jefferson's attention to "a certain phenomenon at sunset,"—the yellow orange color of the Eastern clouds, which ascends as the sun descends—upon which he makes certain observations and explanations, and suggestions for further investigations by philosophers.

With this letter there was enclosed a fifth contribution to the Transactions. This article is entitled, "Meteorological Observations made by William Dunbar, Esq., at the Forest, four miles east of the Mississippi, in Latitude $31^{\circ} 28'$ North, and in Longitude $91^{\circ} 30'$ west of Greenwich, for the year 1800; with remarks on the state of the winds, weather, vegetation, etc., calculated to give some idea of the climate of the country." In this article he says, "the frequent and rapid changes in the state of the weather in this climate furnish an excellent opportunity of verifying the vulgar opinion of the moon's pretended influence at her conjunctions, oppositions and quadratures; but truth compels me to say (what probably may be said of many similar persuasions) that after a continued and scrupulous attention to this object, I have not discovered any such regularity of coincidences, which might justify the reverence with which those traditional maxims are at this day received." After discussing a method of manufacturing ice by artificial means, he concludes this communication with the following observations on the storms of the Gulf Coast region: "It is evident that the circular course of the vortex followed that of the sun's apparent diurnal motion.—It is possible that if similar observations are made upon all hurricanes, tornadoes and whirlwinds they will be found universally to consist of a vortex with a central spot in a state of profound calm."

Dunbar's next letter that is preserved in the Jefferson Papers is one to John Vaughan bearing the date of March 21, 1802. In this the writer says that he envies Vaughan's "happiness at the discovery of a complete skeleton of a

mammoth." He makes some observations on the species to which this mammoth belongs and refers to recent discoveries of a similar nature in the interior of Asia and Borneo. He gives the results of recent geological observations on the nature of the soil and the stratification of the same as shown by the banks of the Mississippi at Natchez; also a discussion of stones, rocks, ores, mineral waters, petrification, etc. He requests Vaughan to inform Dr. Bartram that since writing him last, he has made several new discoveries of a botanical and zoological nature which he here describes.

This letter also shows that Dunbar was one of the first Mississippians to resort to inoculation for protection against small-pox. He asked Vaughan to send him some fresh vaccine virus and stated that six children in his own family had never "had that disease, besides a lengthy list of Black people, both young and old." Vaughan complied with this request by sending the virus and asked Jefferson to do likewise, stating that "the Vaccine inoculation gathers strength hourly, *no* respectable practitioner (of Philadelphia) opposes it."

January 15, 1803 Dunbar wrote to Jefferson: "Bad health which has endured above twelve months has withheld much of my attention from Philosophic objects, a favorable change having lately taken place, I perceive with satisfaction that my mind and body are both recovering their former tone and now again enjoy the pleasing prospect of dedicating my leisure hours to my favorite amusements."

Dunbar's next contribution to the Transactions was entitled, "Abstract of a communication from Mr. Martin Durale, relative to fossil bones, etc., of the County of Opelousas, west of the Mississippi to Mr. William Dunbar of the Natchez," etc. In this account Dunbar, in referring to certain phenomena makes use of the following expression, which has characterized the true philosophers of all ages, "I have never observed them without endeavoring to ascertain the cause of them."

This communication was accompanied by "pretty full vocabularies of the tongues of two Indian nations of that country," to which "was added a sketch of the religion or superstition of these people." In this connection, Dunbar says, "From several other quarters I have used some efforts to draw similar information, but am hitherto disappointed." He also makes mention

of a letter which he had just received from Sir Joseph Banks with an extract from the Transactions of the Royal Society.

January 28, 1804, Dunbar wrote to Jefferson transmitting his seventh and eighth contributions to Volume Six of the Transactions, while an extract from his letter was published as a ninth contribution. His seventh article was entitled a "Description of the river Mississippi and its Delta, with that of the adjacent parts of Louisiana." In this he gives a table of the mean altitude of the waters of the Mississippi at Natchez, from the lowest ebb to the highest elevation for the first and fifteenth of each month in the year. It also contains a good account of overflows and some philosophical reflections on the velocity, banks, currents, deposits and depth of the river and the effects of confining it to its channel. In speaking of the overflow lands he says, "although no successful attempt is likely to be made in our day, yet posterity will reclaim" them. He discusses the methods used in Holland and in Egypt, and makes several speculations as to the method that will probably be successful. This sketch, he says, in conclusion, "is the result of occasional observation for a series of years and of scattered information collected from various sources, probably often uncertain, from a cause which is unfortunately, too general; viz: the extreme inattention of persons, even of some education to the most curious phenomena passing daily under their review."

The eighth article was entitled: "Monthly and Annual Results of Meteorological Observations" for the years 1801, 1802, 1803.

In an appendix to his seventh article, he discusses the writings of certain Italian, French and German scientists, giving his reasons for differing with them on certain philosophical questions. His discussion is devoted largely to a consideration of certain laws of hydrostatics.

His "Observations on the eclipse of the sun, June 16, 1806" made in his private observatory on Union Hill, constitutes his tenth contribution to the publication mentioned above. This article gives a vivid account of the excited state of mind with which an astronomer awaits the time when nature affords favorable opportunities for investigating her mysteries. It also shows that this frontier scientist of Mississippi enjoyed in thought, as he could not by personal association, the companionship of the great thinkers of the world. These are his words:

"The moment of the expected impression approached and reflecting that this eclipse was to be seen all over Europe and North America which renders it a very important phenomenon for settling comparative longitudes, I conceived that all the zealous astronomers of both worlds were then looking with me at the great luminary and centre of our system. I kept my eye riveted upon that point of the disk where the eclipse was to commence, with an anxiety known only to astronomers; with the chronometer watch at my ear, I attended to the most doubtful appearances which my perturbation perhaps presented to the eye, and upon every alarm, began to count the beats of the watch (five in two seconds) in order that I might not lose the very first instant of the impression, and I am confident that not one quarter of a second was lost."

The last letter that has been preserved from the interesting correspondence between Dunbar and Jefferson, bears the date of Dec. 17, 1805. With it was enclosed Dunbar's "Method of finding the Longitude by a single observer without any knowledge of the precise time," a problem that had been solved by him at Jefferson's request. This formed an eleventh contribution to the publication referred to above.

There is no reason for doubting that this correspondence was continued throughout the remaining four years of Dunbar's life, though the letters have not been found by the writer.

Dunbar's last contribution to the Transactions was entitled: "Observations on the Comet of 1807-'8." It was read before the Society Nov. 18, 1808. In this article appears at least one entry which indicated that the scientific services of its author were drawing to a close. "Indisposition," says he at one point in the narrative, "prevented observation for some time past." A few months from this date the scientific investigation of this remarkable man were brought to a close.

Writers have frequently noted the fact that many great men have lived in advance of their times. To substantiate this assertion they cite us to the careers of Copernicus, Galileo, Newton, and a host of others. That Dunbar is entitled to the same distinction might be amply proved by a study of his life.

The most conclusive evidence of this fact is furnished by his idea of the relation the government should sustain to scientific explorations. In a letter

to John Vaughan, bearing the date of March 21, 1802, he writes as follows:

"There is no example of any encouragement being held out by [our] Government; no spirit of inquiry set on foot at the public expense. What is the reason, we have no State observatory to which individuals might send their contributions & from which they might receive astronomical intelligence.... No naturalist travels at the public expense to explore our immense country & make us acquainted with the infinite resources it Contains upon its surface, in its waters & within its bowels, from whence great national advantages would result; the public & individuals would be instructed where to direct their researches after such objects as might become subjects of curiosity, Public the exercise of genius & agrandizem't of fortune; but it would seem that the speculations ... of our politicians are confined within the narrow circle of the Customs & Excise, while literature of our present illustrious President will correct & enlarge the views of our public men, & that under his auspices & protection, Arts, Science, & Literature may take a flight, which will at length carry them beyond those European brethren, as wel[l] to[o] as above them in the enjoyment of national liberty."

In transmitting this letter to Jefferson, Vaughan says of Dunbar, "he is like yourself a warm friend to the encouragement of Science and letters, it would be fortunate for the country, if these ideas became more prevalent."

Remarkable to relate, two years had not elapsed after Dunbar had written this despondent letter before he saw evidences of a partial fulfillment of his desire and three months later still, he was appointed a member of one of the first expeditions sent out for scientific purposes at the expense of the government of the United States. In a letter to President Jefferson, written May 13, 1804, Dunbar says: "The surveying and exploring expeditions to be undertaken at public expense must be most gratifying to all lovers of science and natural research.... It will give me the highest satisfaction to contribute everything in my power to promote the proposed expedition on the Red and Arcansa Rivers."

Owing to the dissensions among the Osage Indians, the main part of this expedition was postponed, however, until the spring of 1805. In a letter bearing the date of July 14, 1804, Jefferson wrote to Dunbar:—"It is very desirable that you make use of any part of the men or matters provided for the expedition and go to what distance, and in what direction you please, return when you please, but in time to report to us the result of your researches, which report will probably induce Congress to enlarge the appropriation."^[58]

August 18, 1804 he wrote Jefferson that, "in consequence of the permission you are pleased to grant, I have determined to make an excursion up the Washita river and to the hot springs." Two months later, he wrote that he had about completed the necessary preparations for the expedition and that he would carry "several instruments [of his own] in addition to those provided for the party" by the government. Three weeks after writing the above letter, he again wrote to the President from the Post of Washita giving him the latitude of the most important points on the river.

After his return to Natchez, he wrote Jefferson the first scientific account of the water at Hot Springs. Subsequent analyses of this water have shown some inaccuracies in this account, but it must be remembered that Dunbar was only a pioneer in this important field. His account reads as follows:

"I have examined the water at 130° Fahrenheit under a powerful microscope and found vegetable and animal life, the former a species of moss, the latter a testaceous bivalve of the size of the minutest grain of sand. I do not despair of being able to reanimate these as soon as I can procure a little leisure....^[59] From our analysis of the water ... it appears to contain lime with a minute portion of iron dissolved by a small excess of Carbonic acid. This is ... visible upon the first view of the Springs; an immense body of calcareous matter is accumulated upon the side of the hill, by perpetual deposits from the hot waters, and the bed of the run is coloured red oxide of iron or rather Carbonated iron. Every little spring which rises up in a favorable situation forms its own calcareous cup considerably elevated in form of a crater."

The following year (1805) Dunbar was given the general supervision of the Red River Expedition. May 24 of that year Mr. Dearborn, the Secretary of War, wrote requesting him to make all arrangements for this expedition, limiting the expenses to \$5,000. In a letter bearing the date of March 30, 1807, Mr.

Dearborn expressed his appreciation of Mr. Dunbar's services in the following words:—"The frequent drafts on account of the United States upon your time and patience demand an apology, while your disinterestedness and highly useful services entitle you to the most grateful acknowledgements."

Dunbar's idea of the relation the government should sustain to scientific research is still further set forth in his last letter that has been preserved in the Jefferson manuscripts. From this letter, which bears the date of December 17, 1805, the following extract is taken:

"I have just received from London a six feet Gregorian reflecting Telescope with six magnifying powers from 110 to 550 times; hitherto from a liberal construction of the act of Congress, by the Collectors of the Mississippi Territory residing at Fort Adams, I have been in the habit of receiving books and instruments free of duty, but Mr. Browne at New Orleans is so rigidly faithful as a public servant that he admits of no exemptions neither in favor of the Mississippi Society, for which I have lately imported a chest of books; nor in favor of this valuable instrument, the cost of which in London was about 150 guineas, [about \$750]. I suppose Mr. Browne is quite correct as to the letter of the law.... I have just sent off an order for Mr. Briggs, Mr. Dinsmore and myself, for astronomical instruments & chronometers to the amount of 300 guineas [about \$1,500], all of which as well as that just received, will in some shape be applied to public use and benefit & might therefore be entitled to a claim upon public indulgence."^[60]

The significance of this extract is twofold. It shows that Dunbar devoted his time to scientific investigation not only to gratify himself but to serve the public. His love of science for its own sake made "favorite amusements" of

labors that would otherwise have been very onerous. His desire to benefit others through these investigations led him to fulfill that true test of all greatness,—service to one's fellow-man. This extract shows further the contagion of an enthusiastic devotion to a great cause. Dunbar and his friends, remote from the intellectual centers of the world, constituted themselves into a society, which spent a larger sum of money for scientific purposes than perhaps any other private scientific organization in the history of the State. He sought the co-operation of all thinking men with whom he came in contact. He was active in his efforts to collect all facts of scientific interest throughout his part of the country. That he was often disappointed in these efforts, is shown by more than one passage in his writings. In his "Description of the Mississippi and its Delta" he expresses his regret over "the extreme inattention of persons, even of some education, to the most curious phenomena passing daily under their review."

Philip Nolan, the dauntless hero of one of Edward Everett Hale's most interesting stories,^[61] was a warm personal friend of Dunbar and was often mentioned in the Jefferson correspondence in the most complimentary terms. This relationship was probably due to the fact that Nolan had a remarkably wide range of information gathered from the remote western wilds and he took pleasure in imparting the results of his observations to Dunbar.

He was a warm friend to all students of nature. Only a few months before his death, he had the pleasure of entertaining in his own home, "the Father of American Ornithology," Alexander Wilson. Upon hearing that Wilson was in Natchez, Dunbar wrote him the following letter:

FOREST, 20th May, 1810.

"SIR:—It is very unfortunate that I should be so much indisposed as to be confined to my bedroom; nevertheless I cannot give up the idea of having the pleasure of seeing you as soon as you find it convenient; the perusal of your first volume of Ornithology, lent me by General Wilkinson, has produced in me a very great desire of making your acquaintance.

"I understand, from my boy, that you propose going in a few days to New Orleans, where you will see some small

cabinets of natural history that may interest you. But as I presume it is your intention to prosecute your inquiries into the interior of our country, this cannot be done better than from my house, as your headquarters; where everything will be made convenient to your wishes. My house stands literally in the forest, and your beautiful orioles with other elegant birds, are our courtyard companions.

"The bearer attends you, with a couple of horses, on the supposition that it may be convenient for you to visit us today; otherwise he shall wait upon you any other day that you shall appoint.

"I am respectfully, &c.,

"WILLIAM DUNBAR."^[62]

In writing of this visit, Wilson says in his Journal:—"I was received with great hospitality and kindness, had a neat bedroom assigned me; and was requested to consider myself as at home during the time I should find it convenient to stay in exploring this part of the country." In his great work on Ornithology he acknowledges the assistance of Dunbar in securing two or three new species of birds. He also refers to Dunbar as a man "whose life has been devoted to science," and he says "the few happy days I spent there [at 'The Forest'] I shall never forget."^[63] In writing to Dr. Bartram from Philadelphia, Sept. 2, 1810, Wilson says, "Mr. Dunbar of Natchez, remembered you very well, and desired me to carry his good wishes to you."^[64]

The most prominent trait of Dunbar's character was his love of nature. He admired her in all of her manifestations. She was attractive to him not only because of her beauty but because of her mysteries. With the spirit of a true philosopher, he ever inquired into the laws which regulated her actions. To paraphrase slightly his own language, he never observed any phenomena without endeavoring to ascertain the cause of them. He did not read at random, pages from the great book of nature, but read as continuously as circumstances would permit. He read it in the howling wind, the turbid current, the trembling needle, the growing plant, the blazing comet, the silent stone, the lifeless fossil. He read it critically; he read it appreciatively. That he often raised his eyes from the well-conned pages of this great book

to fix them on the omniscient Author himself is shown in more than one passage from his writings.

The career of this great pioneer scientist of Mississippi ended in the month of October, 1810. Although he was then in his sixty-first year, his work was incomplete and his plans but partially executed. In the words of Pliny, "The hand of death is ... too severe, and too sudden, when it falls upon such as are employed in some immortal work. The sons of sensuality, who have no other views beyond the present hour, terminate with each day the whole purpose of their lives; but those who look forward to posterity, and endeavor to extend their memories to future generations by useful labors:— to such death is always immature, as it still snatches them from amidst some unfinished design."

The permanent results of Dunbar's life-work may be summarized as follows:

- 1. He helped to locate and to survey part of the present boundary line between Mississippi and Louisiana.
- 2. He first directed the attention of the world to the manufacture of cotton-seed oil.
- 3. He invented the screw press for packing cotton, and helped to perfect the process of packing it in square bales.
- 4. He made the first accurate meteorological observations in the valley of the Mississippi.
- 5. He made a critical scientific study of the Mississippi River and its Delta.
- 6. He made important contributions to geographical knowledge, by determining the latitude and the longitude of many places.
- 7. He was the first to give a scientific account of the Hot Springs and an analysis of its water.

FOOTNOTES:

[21] The writer acknowledges, with pleasure, the valuable assistance rendered him by Major William Dunbar Jenkins, of Natchez, Miss., great-grandson of Sir William Dunbar.

[22] In the ruins of the old Elgin Cathedral, which, on the authority of Billings, was once "the most stately and beautifully decorated of all the ecclesiastical edifices" of Scotland, may still be seen many evidences of the greatness of this family. Over the great Western, or Alpha window of this building have existed for upward of 450 years the arms of the Stewarts and Dunbars, "two families whose names are closely associated with the civil and ecclesiastical history" of Morayshire. "The north end of the transept was called Dunbar Aisle, probably from its having been the burial place of the Dunbars who have been landowners in Moray for upwards of five hundred years." The following are a few of the names of members of this illustrious family, whose remains are deposited here:—Columbo Dunbar, Bishop of Moray; Sir Alexander Dunbar of Westfield, Knight (M. P.); Mr. Patrick Dunbar, Chancellor of Aberdeen; Sir James Dunbar, heritable Sheriff of Moray; Gavin Dunbar, Preceptor of King James V., Archbishop of Glasgow, and Lord High Chancellor of Scotland.

The tomb of Gavin Dunbar, Bishop of Aberdeen, may be seen in 'Bishop Gavin Dunbar's Aisle,' in the transept of the Cathedral at Aberdeen. (Notes from the "Guide to the Ruins of Elgin Cathedral," 10th ed. Published for James S. Pozzi, Keeper of the Ruins of the Elgin Cathedral, 1892.)

[23] Natchez Democrat of Sept. 10, 1873; *ibid.*, Centennial Edition. (1876.)

[24] Claiborne's (J. F. H.) *Miss. as a Province, Territory and State*, 200; supplement to Appleton's *Cyclopaedia of American Biography*.

[25] "Interesting Centennial Reminiscences" by J. F. H. Claiborne in the *Natchez Democrat* for 1876.

[26] Peter Force Collection of Historical Manuscripts in the Manuscript Department of the Library of Congress, Washington, D. C.

[27] Manuscript volume in the Manuscript Department of the Library of Congress, entitled "W. Florida. Respond: Answer A. Chrystie, V. Chester."

[28] He had been an unsuccessful merchant at Natchez and was well known to the people of that community. (Claiborne's *Miss.*, 117).

[29] *Ibid.* 119-120.

[30] Claiborne's *Miss.*, 143.

[31] Claiborne's "Interesting Centennial Reminiscences" in *Natchez Democrat*, Centennial number (1876.)

[32] *Ib.*

[33] Claiborne's *Miss.*, 144.

[34] *Natchez Democrat*, Centennial Number (1876.)

[35] Manuscript correspondence of Jefferson in the archives of the State Department, Washington, D. C.

[36] *Ibid.*

[37] *Ibid.* This sentence is doubly interesting in the light of the fact that Mr. Jefferson himself had predicted "that it would be a thousand years before the country would be thickly settled as far west as the Mississippi." (See Hart's *Formation of the Union*, 139.)

- [38] Manuscript Correspondence of Jefferson, in the State Department, Washington, D. C.
- [39] Ibid. On Dunbar's Memorial to Congress, in behalf of Jefferson College, see Gales and Seaton's Annals of Congress, 8th Cong. 2d. Ses., pp. 685, 1184.
- [40] Natchez Democrat, Centennial Number (1876.)
- [41] He retained his English citizenship until Natchez passed into the possession of the United States, when he took the oath of allegiance to this government.
- [42] Sixteen letters from Gayoso to Dunbar are now in the possession of Mrs. George T. Green, of Natchez, Miss.
- [43] March 9, 1787.
- [44] Letter written at New Orleans, Dec. 20, 1797.
- [45] Letter written at New Orleans, May 12, 1798.
- [46] This was the limit of the cultivated lands at that time.
- [47] Transactions of the American Philosophical Society. V., 216, Footnote.
- [48] They separated ten miles east of the point of starting.
- [49] Manuscript copy of Dunbar's Report, presented to the writer by Major William Dunbar Jenkins, of Natchez, Miss.
- [50] Transactions of the Amer. Phil. Soc. V., 203.
- [51] Ellicott's Journal, (1803) 56.
- [52] See Publication of the Amer. Hist. Association for 1897, 181, Footnote; Publication, Miss. Hist. Soc. for 1898, 55, Footnote.
- [53] This letter was written at New Orleans, Feb. 12, 1799. It is found in the Manuscript Correspondence of Thomas Jefferson in the archives of the State Department, Washington, D. C.
- [54] The exact title of this report is: "Account of the Commencement and Progress of the First 18 Miles of the Line of Demarcation, beginning at the River Mississippi and proceeding East along the most northerly part of the 31st degree of North lat. between the Territories of Spain and the United States of America, concluding with Observations and Remarks on the Country, its Climate, Production, &c., by William Dunbar."
- [55] Natchez Democrat of September 10, 1873.
- [56] He here refers to a conflict between the theories of Bernardin de St. Pierre and Sir Isaac Newton respecting the nature of the rainbow and claims that this phenomenon demonstrates the correctness of the latter.
- [57] Pages 421-434.
- [58] Letter in the possession of Mrs. George F. Green of Natchez, Miss.
- [59] A fortnight later, he wrote that he had failed to reanimate what he had supposed to be bivalves in this water. In fact, he was mistaken in his supposition, as has been shown by subsequent analyses.

[60] "The following is a list of articles ordered by Dunbar from John Swift, London:

- 1 Pocket Chronometer, 30 guineas.
- 1 Telescope, £150.
- 1 Astronomical Circle, £100.
- 1 Parallel Ruler.
- 1 Brass Sextant and Stand, 20 guineas.
- 1 Improved Astronomical Telescope.
- 1 Hair Compass.
- 1 Bow Compass.
- 1 Pneumatic Apparatus.
- 1 Electrical Machine with apparatus for philosophical and medical uses.
- 1 Double-barrel rifle gun, to be made after my own plan, as follows:
Barrels 27 inches; weight 12 pounds; astronomical telescope magnifying ten times, 1-3/8 to 1¾ inches in diameter, 12 to 14 inches in length. With this rifle carrying a 4 oz. ball, you may shoot a mile into a ten inch circle. By one vertical hair and several horizontal ones, the sights in the focus of the telescope may be regulated for optical distances. By this instrument we may compute the velocity of the ball and its general decrease; the fall of the ball by the power of gravitation; the comparative velocity with and against the wind; the lateral action of the wind, &c."—Natchez Democrat, Centennial Number (1876.)

[61] See "Philip Nolan's Friends; or 'Show Your Passport's'" in Scribner's Monthly, Vols. XI, XII, and XIII. Dunbar recognizes the value of Nolan's assistance, particularly in the study of the language of signs of the Indians.

[62] Wilson and Bonaparte's Amer. Ornithologist, Phila. Introduction pages C.-CI.

[63] Ib. 70.

[64] Ib. CI.

HISTORY OF TAXATION IN MISSISSIPPI.

CHARLES HILLMAN BROUGH, PH. D.

(JOHNS HOPKINS)

The history of fiscal legislation and development in Mississippi has five distinct phases and is therefore comprised within the compass of five distinct periods. These periods, with rough chronological indices for each, are: (1) Territorial (1798-1817); (2) Transitional (1817-1861); (3) Confederate and Post-Confederate Governments (1861-1867); (4) Reconstruction (1867-1876); (5) Modern (1876-1898).

By an act of Congress approved April 7, 1798, all that tract of land which today includes the States of Mississippi and Alabama, was constituted one district and called the "Mississippi Territory." Major Winthrop Sargent, a native of Massachusetts, was appointed governor and judges were empowered to frame a code of laws for the Territory, to be drawn from the statutes of other States. This code, known as "Sargent's Code" has been characterized by an able political writer as "directly at variance with all Statute law in America, and utterly repugnant to any known system of jurisprudence derived from the common law of England."^[65] Certainly this is true of that part of it "directing the manner in which Money shall be Raised and Levied to defray the charges which may arise within the Several Counties."^[66] According to its provisions, the court of general quarter sessions in each county was authorized to make an estimate of the county's average annual expenditure, the estimate to be submitted to the governor and one or more of the territorial judges for approval. The amount approved was then apportioned among the several towns within the county by commissioners biennially appointed by the court of common pleas. If the town numbered sixty or more free citizens, two commissions were appointed; if one hundred or more, three commissioners. These commissioners received the returns of taxables in each township, and assessed the property therein. It was specified that the commissioners should ascertain "the names of all free men, inmates, hired male servants (being twenty-one years of age) and whether profitable or chargeable to the

employers" * * * and obtain "a list of all lands not being the property of the United States or appropriated to public uses, the tenements, houses, cabins or other buildings wherein people dwell and which are rented and afford an income to the owners, and all ferries, stores, shops, warehouses, mills, gins, keel or batteaux, boats of the burthen of twenty barrels and upward producing a yearly income, and of the bound male servants and male slaves above the age of sixteen and not exceeding fifty; draught oxen, saddle and draught horses, cows penned or kept up and immediately productive to the owners; together with the stock cattle, including sheep and swine intended for market and thereby productive of annual income and profit."

Lands were assessed "in just proportion to their value," with special regard to their annual profit, and no one having visible property less than one dollar per head annually, save by a due proportion of labor in the opening and keeping in repair highways and public roads. This enumeration, viewed in the light of modern interpretation, virtually means a graduated income tax applied to town and county government. The valuation of real estate was determined, not by its intrinsic worth or actual selling value, but by the annual income [profit] which, on the average, it was deemed likely to produce. Taxation was altogether local, there being no territorial levy as distinguished from the biennial county and township levies. This localization of fiscal activity, an income [profit] valuation, and the fact that visible specific property bore all, or nearly all the burden of taxation, are thus the most striking characteristics of Mississippi's primitive scheme of taxation.

The collection of taxes was vested in the sheriff, who was *ex-officio* the county collector, as he is today. This officer had powers of imprisonment and distraint. The commissioners appointed by the County Court as assessors were allowed \$1 per day, and the sheriffs were authorized to keep 1% of their collections before making their reports to the county treasurers.

This crude fiscal system devised by Sargent remained in effect without substantial modification until 1815. In that year a law was passed providing for a distinct territorial tax and specifying that county taxes should be levied upon the same property and objects enumerated as were within the territorial schedule.^[67] County taxes, however, could not exceed one-half of the territorial tax. Henceforth, there was to be commonwealth taxation, as distinguished from purely local taxation. The territorial schedule comprised

a general list of ratable objects with fixed valuations. Land was divided into six classes, each class having three qualities. The bases of classification were proximity to the city of Natchez and distance from the Mississippi, Chickasawhay and Tombigbee Rivers. Thus, class number one contained all lands lying within eight miles of the city of Natchez, the first quality of which was rated at \$12 per acre; the second, at \$8; and the third, at \$3. Class number two contained all land lying within fourteen miles of the Mississippi River, with valuations according to quality ranging from \$2 to \$7. In short, valuations decreased in proportion as the distances from commercial centres and water courses increased; lands, lots and buildings within any city, borough or town were subject to a uniform ad valorem tax of 2 mills; and merchandise and bank stock, to an ad valorem tax of 2½ mills. Capitation taxes of 50 and 62½ cents respectively were levied on each slave and free white male above the age of twenty-one. Slave traders were taxed \$5.00 on each slave imported into the Territory, a tax containing the germs of the privilege license system. The schedule was further strengthened by a tax of \$1.25 on every pleasurable carriage.

It was provided that assessing and collecting officers were to be appointed by the Governor, rather than by the County Court, as heretofore—a change probably due to the differentiation between commonwealth and county taxation.

We may, for the lack of a better designation, call the period from 1817, the date of Mississippi's admission into the Union, to the outbreak of the Civil War, the period of ante-bellum Statehood. Such a division in fiscal history would seem to be perfectly artificial, yet it is justified by the fact that during this period the tax system of the State underwent substantial change. The increased expenses of State administration, an accumulation of State indebtedness, minuter differentiation in industry, giving rise to more numerous classes of wealth and progress in democratic thought—all demanded an extension of the State's fiscal system.

Personal property became as important an object of taxation as real property. The personal property list was no longer limited to slaves, pleasure carriages, moneys arising from the sale of merchandise, and bank stock, but also included gold and silver plate, pianos, weapons, watches or clocks, cattle in excess of twenty head, saddle and carriage horses, merchants' and brokers' capital and money loaned at interest. ^[68]

This taxation of personal property, usually rated, was supplemented by the privilege license system, with charges partly rated and partly apportioned. Thus, in 1857 auctioneers and peddlers were taxed 3 per cent. on the amount of their sales; saloon-keepers, one-fourth of one per cent. on all sales of vinous and spirituous liquors by the gallon; trading in slaves, horses and mules, 3 per cent. on the amount of their sales; keepers of ferries, toll bridges or turnpikes, one-fourth of one per cent. on all receipts; circuses \$25 for each day's performance; nine-pin alleys or any like contrivance, \$25 each; theatres or places for theatrical performances, \$35 each. Even the poll tax was widened into its application so as to include free negro as well as free white males between the ages of twenty-one and fifty years.

Contemporaneously with this external expansion, the tax system of the State underwent internal changes. Land classifications were abolished, and annual income was rejected as a device of valuation.^[69] A method was substituted which is in vogue today, viz: Assessment according to intrinsic value, to be determined by the owner or person in charge on oath, taking into consideration improvements, proximity to navigation, towns, cities, villages or roads, and any other circumstances that may tend to enhance value. The distinction between commonwealth and county taxes was preserved, but not in the same form as the older distinction between territorial and county taxes.

County police boards were now authorized to "order a certain [variable] rate per centum on the amount of the assessment of the State tax," and "to levy a special tax for the erection or repair of the court house, jail or other county buildings."^[70] Under the territorial regime, it will be recollected, the county tax could never exceed half the territorial tax.

This period of ante-bellum Statehood was also marked by a radical change in the machinery of assessment and collection. During the territorial period assessing and collecting officers were appointed by the County Courts or by the Territorial Governor; during this period they were chosen directly by the people who were directly responsible for their conduct.^[71] The county sheriff was *ex-officio* the county collector, but the assessor was a separate officer with distinct functions. Both were biennially elected, and the compensation of each was fixed at 5% on the amount of the state tax assessed and collected. This per centum remuneration could not exceed a

fixed sum; the assessor's maximum being fixed at \$500 per annum and the collector's at \$3000. The fiscal machinery thus set in motion during the period of ante-bellum Statehood is patterned on substantially the same model today.

Although this period witnessed the establishment of *some* of the main features of the modern system of State and local taxation in Mississippi, it cannot be designated as transitional, in the sense Prof. Ely uses the term. There was no change from the taxation of specific kinds of property at varying rates to the taxation of the collective mass of property at one uniform rate. More specific kinds of property were taxed, but there was no disposition to bunch property under a common category at a uniform rate. The objects taxed were as specific and the rates as variable as ever. The period was marked by an extension of the tax system, not by its leveling-out.

War demands emergency revenue, and especially was this true of the Civil War. When Mississippi formally renounced her allegiance to the Union in 1861, the Constitutional Convention which passed the Ordinance of Secession supplemented this by an "Ordinance to Raise Means for the Defence of the State."^[72] This ordinance provided for the collection from each taxpayer of an additional Special State tax of 50% on the regular State tax, and also a tax from every inhabitant of 3-10 per cent. upon all money owned or controlled by such inhabitant—the moneys so collected to constitute a Military Fund.

In 1863 it was further enacted that a special tax of 50 per cent. on the regular State tax should be levied, to be known as the Military Relief Tax, the proceeds to be used for the relief of the destitute families of Confederate soldiers.^[73] In 1865, in order the better to provide for the families of the soldiers a direct tax in kind of 2 per cent, was levied on the gross amount of all corn, wheat and bacon, in excess of 100 bushels, 25 bushels and 100 pounds respectively; on the tolls from all grain mills in the State, on the gross profits of leather, whether manufactured for sale or received on shares as commission by tanneries; and on all woolen and cotton factories and fabrics manufactured for sale.^[74]

For the benefit of the County Indigent Fund, the Boards of Police of the several counties were empowered to levy a tax in kind of ½ per cent. on all

corn, wheat and bacon, grown and produced in the State.^[75]

The exigencies of war and the depreciation of the Confederate treasury notes, in which taxes were paid, necessitated not only the levy of special taxes, but an increase in the number and rates of the specific objects taxed. Notable among the additions to the regular tax schedule were taxes of five cents a pound on all seed cotton over one bale of 500 pounds of lint, raised by a single hand; of 2 per cent. on the gross profits of iron foundries, machine shops, dealers and speculators^[76] in grain, provisions, etc.; of 50 per cent. on the wages of mechanics in excess of 75 per cent. profit above the actual cost of labor and material; of twenty cents on every hundred dollars of railroad stock which paid 3 per cent. per annum. Heretofore the State had encouraged railroad enterprise by exemption from taxation and before the war had even gone so far as to levy special railroad taxes in the several counties in payment of stock subscriptions to these enterprises. But financial expediency dictated that premiums for industrial progress be withdraw and that all the State's fiscal energy be conserved for the business of war. Emergency taxation was supplemented as a fiscal device by depreciated cotton money, Confederate currency and Mississippi Treasury notes, and this extreme economic tension was only relaxed after the last troops of the Confederacy had surrendered.

Upon the downfall of the Confederacy in 1865, the Constitutional Convention assembled by Gov. Sharkey organized Mississippi as a regular State government. The financial problem confronting this Post-Confederate government was as hard a Gordian knot to cut as that which confronted the Confederacy itself. Land was worthless as an object of taxation, because it had no value. Industries were paralyzed, and needed bonuses rather than increased burdens. The debt contracted during the war was not repudiated, and there was a State government to support. How was the difficulty to be solved?

The Constitutional Convention of 1865 and the State legislatures of 1865, 1866 and 1867 acted in a sensible and heroic way in dealing with the situation. A direct tax of \$1 per bale was levied on all cotton brought to market and sold; an inheritance tax of 1 per cent. of the gross amount of all collateral inheritances; a tax of 3-10 per cent. upon the amount of the annual rents and tenements. Privilege licenses were exacted from the larger corporations best able to bear them, a notable instance of this being the

license of \$2000 per annum imposed upon express companies.^[77] This selection of taxable objects proved most fortunate, the cotton tax alone yielding sufficient revenue to support the whole state administration. The commonwealth's indebtedness was scaled, and Mississippi was rising Phoenix-like from the ashes of financial despondency.

But in 1867 there was fastened upon the State the reign of "Reconstruction and Radicalism," which meant untold retrogression in fiscal policy. This reign of mongrelism, ignorance and depravity was formally ushered in by a motley assemblage known as "the black and tan convention," so called from the negroes and carpet-baggers composing it. The special taxes levied to cover the profligacy and extravagance of this convention, whose expenses for a period of less than five months aggregated nearly a quarter of a million of dollars, were prophetic of the future. Cotton, cotton gins, grist and saw mills, ferry and wharf boats, grocery, drug and provision stores, banks, hotels, photograph galleries, railroad and steamboat companies—all were impaled on reconstruction's fork. Even the freedom of the press was not respected, sums ranging from \$20 to \$50 being levied on each daily, tri-weekly and weekly newspaper published in the State. The plunderers modestly concluded their infamous schedule with the provision "that a special tax of 50 per cent. on the State tax be levied in addition to the State tax now assessed upon real and personal property."^[78]

The Constitution framed by the "black and tan convention" was rejected and the Conservative administrations of Governors Alcorn and Powers, both property owners and taxpayers in the State, had the effect of tempering fiscal excesses. However, this temperance was only temporary and, as compared with the former period, might be called rank intoxication. In 1869 the State levy was only 1 mill on the dollar; in 1870, 5 mills; in 1871, 4 mills; in 1872, 8½ mills; and in 1873, 12½ mills. This was only the State tax. In many counties a county tax of 100 per cent. on the State tax was added, besides a Special tax in some counties to pay the interest on their bonded debt, and a Special tax in the incorporated towns of from 5 to 10 mills on the dollar for town purposes. In this way it happened that the total tax paid by citizens was 2 8-10 per cent. outside the cities, and from 3½ per cent. to 4 per cent. in cities and towns.^[79]

With the election and inauguration of Adelbert Ames as Governor in 1874, the spirit of plunder and revenge which animated the aliens and negroes burst forth with a fresh fury. The tax on land was increased to 14 mills, a rate which virtually amounted to confiscation. Cotton was taxed \$10 per bale and the proceeds were invested in the Freedman's Savings Bank, a gigantic swindling agency at Washington. The poll was increased from \$2 to \$6 a head, and the responsibility for the payment of the negroes poll was saddled on his white employer. This farce fiscal comedy reached its climax in the imposition of a 1 per cent. tax on all amounts expended by the citizens of the State in travel.^[80] The people simply could not pay these taxes, and over 6,400,000 acres of land were forfeited for nonpayment.

On January 4, 1875, the taxpayers driven to desperation by this confiscation of their property met in convention and submitted to the Legislature a most respectful appeal for relief. The Legislature treated the petition with contempt, an action which resulted in the organization of taxpayers' leagues over the State and the speedy overthrow of carpet-bag government.

This struggle between taxpayers and tax-layers in Mississippi is but another illustration of the truth of Edmund Burke's saying that "from the earliest times the great battles for human freedom have been fought out on the question of taxation."

But the price of the victory was dear and the penalty paid for experience was great. In addition to a payable and interest-bearing debt of \$984,200, the carpet-baggers left outstanding, unpaid on January 1, 1876, non-interest bearing Auditor's warrants amounting to \$414,958.31. During the last six years of their regime, as is shown by the Auditor's and Treasurer's books for these years, they spent \$8,501,337.86, strictly on account of the expenses of State government, an average of \$1,484,699.55 per annum. They collected nearly a million dollars of what is known as the Common School fund, and spent it all in riotous governmental living, save the pittance of \$57,000 in U. S. bonds left in the treasury to the credit of that fund.

This money was not spent on the common schools, the purpose for which it was collected, but was misappropriated and unaccounted for, and a debt against the State on account of that fund, was left January 1, 1876, amounting to \$830,378.18. This, too, in spite of the fact that the average rates of State and county taxation during the six years in question were

8.87½ mills and 12.49-2/3. mills respectively, making a combined average of \$21.37½ on the thousand.

Indebtedness was thus the legacy which the "Modern Period" [1876-1898] in Mississippi's fiscal history received from the period of "Reconstruction and Radicalism." Although burdened with this incubus and with increasing expenditures for educational and eleemosynary institutions, the "Modern Period" has been characterized by a decrease in both State and County tax rates and by a proportionate reduction in State indebtedness, both in amount and interest charge.

The first year of this period, i. e. 1876, gave earnest or fiscal reform. State taxes were reduced from 9½ mills on the dollar to 2½ mills. The taxing power of county boards of Supervisors was restricted, a law being passed which prohibited them from levying taxes for county purposes, which added to the State tax, would exceed 16½ mills on the dollar, except for indispensable purposes. Supernumerary officials were dismissed, the common school system improved, sinecures abolished and salaries reduced. The highest rate of compensation was no longer paid for the lowest standard of qualification. This policy of economy in State administration has yielded substantial results.

The average rate of State taxation for the past 22 years, inclusive of 1876, has been 4.66 mills, as opposed to an average of 8.87½ mills for the six years preceding 1876. The average rate of county taxation for the same period has been 11.1 mills, as opposed to 12.49½ for the six years preceding. Combining averages, we find a saving to the credit of home rule of 5.60½ mills on the dollar, or 5.60½ on the thousand.

Reduction in tax rates has meant a reversal of the policy of confiscation. Of the 6,400,000 acres of land forfeited for nonpayment during Reconstruction rule, all save 250,000 acres have been redeemed. Property valuation has largely increased, the value of real and personal property in the State today being estimated at \$156,432,328.

Conservative capital is seeking investment in all branches of industrial enterprise and economic progress is following in the wake of fiscal reform.

Although the total payable debt of the State has increased from \$830,750 in amount and \$45,507.50 in interest charges in 1876 to \$1,105,780.41 in

amount and \$53,421 in interest charges in 1897, this increase is seen to be a proportionate decrease when all the facts are considered.

The obligations, amounting to \$876,256.57 in principal and interest, handed down from reconstruction times have all been paid. During the past 22 years \$6,755,706.57 has been appropriated and actually paid to common schools, as opposed to \$1,323,765.62 appropriated and \$327,742.25 paid during the six years preceding 1876.

During the "Modern Period" the State University at Oxford, the Alcorn University, the Normal Schools at Holly Springs and Tugaloo have been liberally supported. The A. & M. College has been established, built, equipped and supported at an aggregate expense of \$697,909.95. The Industrial Institute and College has been built and supported at a cost of \$329,735.99.

Higher education has been liberally supported, eleemosynary institutions established and equipped, and the Confederate pension fund largely increased.

Yet these extraordinary expenditures have only meant an addition of \$282,943.91 in principal and interest to the State's payable indebtedness. This fact alone gives character to the administration of the State's finances, and bodes well for a wise use of the commonwealth's taxing power in the future.

FOOTNOTES:

[65] Lowrey and McCardle: Hist. Miss., p. 71.

[66] Miss. Laws, 1799, pp. 121-133.

[67] For provisions, Cf. Digest of the statutes of M. T., 1816, pp. 415-424.

[68] Revised Code of Miss., 1857, pp. 72-73.

[69] Hutchinson's Code of Miss., (1798-1848) pp. 188 and 202.

[70] Miss. Rev. Code, 1875; pp. 417-18.

[71] Miss. Rev. Code., 1857, pp. 70-72.

[72] For provisions, Cf. Proceedings of Constitutional Convention, 1861, pp. 12-15.

[73] Miss. Laws, 1862-63, p. 70.

[74] Indigent beneficiaries were divided into three classes, viz: (1) Those entirely dependent. (2) Those deficient in breadstuffs. (3) Those deficient in bacon. No beneficiary could receive more than 6 bushels of corn, 1 bushel of wheat, and 50 pounds of bacon during the year.

[75] Miss. Laws, Feb'y and March, 1865, pp. 3-10.

[76] Miss. Laws, 1862-63, pp. 153-155.

[77] Miss. Laws, 1866-67, pp. 412-414.

[78] Miss. Constitutional Convention, 1868, pp. 215-220. This Convention dropped that provision, found in the Constitution of 1832, restricting the origination of money bills to the lower house. The Constitution of 1890 expressly declares that all bills may originate in either house and be amended and rejected in the other.

[79] Lowry and McCardle: Hist. Miss., p. 230, Cf. also Barksdale: Reconstruction in Mississippi, p. 339 (In Noted Men of the Solid South.)

[80] Miss. Laws, 1875, p. 46.

TERRITORIAL GROWTH OF MISSISSIPPI

J.M. WHITE, M. S.

In 1783 the independence of the Thirteen Colonies in America was recognized. Fifteen years later on April 7, 1798, Congress passed an act a part of which was as follows: "All that country bounded on the west by the Mississippi river; on the north by a line to be drawn due east from the mouth of the Yazoo river to the Chattahoochee river; on the east by the river Chattahoochee; and on the south by the thirty-first degree of north latitude, shall be, and hereby is constituted one district, to be called the Mississippi Territory." More than half of this territory is now embraced in the state of Alabama, and the portion that remains to Mississippi constitutes something like one-third of the area of the state. Very little of the boundary of the original territory remains intact, and in so far as Mississippi is concerned all that remains of this original boundary is that around its south west corner, extending from Pearl river along the thirty-first degree of north latitude to the Mississippi river and up that stream to the mouth of the Yazoo river.

The lands that have been added to the original territory lie to the north and to the south of it—that added on the north comprises the South Carolina and Georgia cessions, and that on the south a portion of the Louisiana Purchase, or Spanish cession.

Before going farther into this subject it is necessary that we examine briefly some of the old grants made by Great Britain for the purpose of stimulating the formation of Colonies in the New World. By such an examination we hope to get a clearer idea of the subject, and how it is that some of the boundaries of our state are where they are. The first of these grants to embrace the territory now in Mississippi was that made by Charles I. to his Attorney General, Sir Robert Heath, in 1629. This grant known as Carolina was possibly the largest ever made to any one individual, covering as it did almost all that part of the United States south of the present southern boundary of Virginia and of Missouri. Mississippi was completely swallowed up in this princely domain. Thirty years later (1659) soon after the death of Oliver Cromwell and about the time of the restoration of the

Stuart kings to power in England, this charter for non-user was voided, and in 1663 Charles II. gave to eight of his royal favorites, the Lords Proprietors, a charter to Carolina, and by a supplemental charter two years later (June 30, 1665) granted on the petition of the Lords Proprietors, he extended the territory of Carolina so that its northern boundary was 36 degrees thirty minutes north latitude and its southern 29 degrees north latitude.^[81] All of Mississippi was in like manner embraced in this grant. This charter was surrendered to the King by seven of the proprietors, act of Parliament July 25, 1729.^[82] It had been one hundred years since the grant to Robert Heath. (The eighth proprietor gave up his claim Sept. 17, 1744.) It was at this time that Carolina was divided, South Carolina having remained a part of it until this date. The western portion of the line separating the Carolinas, now forms the northern boundary of Mississippi.^[83]

Three years later June 9, 1732, George II., King of Great Britain, granted a charter for the establishment of the Colony of Georgia in America. The lands embraced by the provisions of this charter lay within the royal province of South Carolina, between the Savannah and the Altamaha rivers and the zone lying between parallels passing through the head waters of these streams and extending to the Pacific Ocean.^[84]

Now the line passing through the head waters of the Savannah left a zone twelve or fourteen miles wide belonging to South Carolina, and lying between said line and the southern boundary of North Carolina. This strip east of the Mississippi embraced 4900 square miles and was generously ceded by South Carolina to the United States in 1787, and today forms the northern part of Georgia, Alabama, and Mississippi. South Carolina's right to this zone was not questioned nor was Georgia's right to her western zone lying between the parallels passing through the head waters of the Savannah and Altamaha rivers. This zone became, as did the South Carolina zone, a part of the Mississippi Territory, and together they constituted the lands added to the original Mississippi territory on the north as above indicated. But as to the original territory, viz., the zone lying between the thirty-first and the thirty-second and one-half degrees of north latitude, a number of disputes at different times arose. South Carolina claimed it, Georgia claimed it, Spain claimed it, and the United States claimed it. The contentions that arose in consequence of these conflicting claims were protracted over a quarter of a century.

In 1752 the Georgia charter was surrendered, and by virtue of the French and Indian war which soon followed, and the treaty of Paris 1763, Great Britain made good her claim, over France, to all lands east of the Mississippi river and began at once to occupy this territory, which prior to 1732 had been a "sort of free zone of doubtful ownership." The King of Great Britain issued a proclamation, Oct. 7, 1763, creating the provinces of East Florida and West Florida and by the same proclamation the Georgia territory according to the charter of 1732 was extended so as to take in the lands lying between the rivers Altamaha and St. Mary's. This proclamation also settled temporarily a dispute which had arisen between the provinces of South Carolina and Georgia as to the right to the said territory. The provision is as follows: "We have also, with the advice of our Privy Council aforesaid, annexed to our province of Georgia, all lands lying between the rivers Altamaha and St. Mary's." Thirteen years later the Colonies declared their independence, and, as was natural, each claimed jurisdiction over areas previously determined by royal charters, proclamations, &c. At this time Georgia's claims were bounded on the east by the Atlantic Ocean and the Savannah river; on the north by a line passing through the head waters of said river to the Mississippi; on the west by the Mississippi river; and its southern boundary was one with that of the United States. Her title to all of this territory was the charter of 1732, King George III's proclamation of Oct. 7, 1763, extending the area as provided by said charter, and a commission^[85] to Governor Wright Jan. 20, 1764, which gave him jurisdiction as far west as the Mississippi and as far south as the thirty-first degree of north latitude.^[86]

Acting upon these claims, in 1785 the legislature of Georgia established the County of Bourbon in the extreme southwestern limit of her claim, and 1788 authorized the sale of large bodies of land lying between the Tombigbee and the Mississippi rivers to certain companies known as Virginia Yazoo, South Carolina Yazoo, and the Tennessee Yazoo. These sales were made; but when the State Treasurer refused to accept Georgia bills of credit in payment, the Virginia company withdrew the moneys that she had previously paid and the South Carolina Company brought suit against Georgia in the supreme court of the United States; but the ratification of the eleventh amendment to the Federal Constitution, privileging a state from being sued, cut short the suit.^[87]

In 1795 another act was passed authorizing the sale of these lands, but on investigation it was found that many members of the Legislature—in fact all the members voting for the sale except one—were interested in these sales in a pecuniary way and a third Legislature, 1796, declared the act of the previous legislature null and void, because obtained by fraud and corruption, and the records of all the sales and conveyances made under it were blotted out and destroyed.

This, however, did not vitiate the titles of these companies to said lands.^[88] The supreme court of the United States decided that the act of the Georgia legislature in repealing the prior act for the sale of the land was unconstitutional and void, was in violation of a contract, and that the titles of claimants were good and valid.^[89]

In the midst of all this confusion the United States planted the Mississippi territory with boundaries as given above, justifying her right to do so in her belief that these lands did not belong to Georgia or to any other state at the time of the signing of the peace treaty in 1783, but to the United States in common as the result of their combined effort in establishing independence. In deference, however, to Georgia's claims, Congress in authorizing the establishment of a government in the Mississippi territory provided, "That the establishment of this government shall in no respect impair the right of the state of Georgia, or of any person or persons, either to the jurisdiction or the soil of the said territory; but the rights and claims of the said state, and all persons interested, are hereby declared to be as firm and available as if this act had never been made."

Section I. of this act is as follows: "That the President of the United States be, and he hereby is, authorized to appoint three commissioners, any two of whom shall have power to adjust and determine, with such commissioners as may be appointed under the legislative authority of the state of Georgia, all interfering claims of the United States and that state, to territory situated west of the river Chattahoochee, north of the thirty-first degree of north latitude, and south of the cession made to the United States by South Carolina; and also to receive any proposals for the relinquishment or cession of the whole or any part of the other territory claimed by the state of Georgia, and out of the ordinary jurisdiction thereof."^[90]

To all this Georgia protested vigorously and asserted her right to the land in question. Commissioners were, however appointed as provided. They were not long in reaching an agreement, which led to the cession of these lands to the United States. The terms were about as follows: The United States gave Georgia in exchange for these lands, a strip about twelve miles wide now forming the northern part of Georgia; agreed to extinguish the Indian titles within her limits; to admit the ceded territory into the Union as a state, when the population should number sixty thousand souls; to confirm all grants recognized by Georgia as legal; to set apart five million acres to satisfy claims such as those of the Yazoo companies and other companies which Georgia did not consider legal; and to pay a million and a quarter dollars to the state of Georgia from the proceeds of lands sold in the said district.^[91] All this having been agreed to by Congress, the cession was formally made in 1802 and two years later, together with the South Carolina Cession lying just to its north, became the Mississippi territory. But the contest did not end until Congress voted eight million dollars in 1814 in land script to satisfy all claimants.^[92]

The territory had not, however, reached its full growth, for there was yet to be added the strip south of thirty-first degree of north latitude and lying between the Perdido and the Pearl rivers. The title to this land, and in fact all British West Florida, was a subject of dispute between the United States and Spain. This dispute had its origin in the indefiniteness of boundaries as provided by the treaties given by Great Britain to said powers on Sept. 3, 1783. The United States claimed the thirty-first degree of north latitude as her southern boundary, while Spain claimed as far north as thirty-two degrees and thirty minutes north latitude as her northern boundary. The land here in dispute, it will be observed, was that of the original Mississippi territory. To these lands Spain waived claim by treaty, Oct. 27, 1795.^[93]

On April 30, 1803, France sold to the United States Louisiana. This purchase brought in question the title of the remainder of British West Florida, i. e., that portion lying south of the thirty-first. This question had its origin in the indefiniteness of the boundary of Louisiana, and although the matter was not definitely settled until 1819, when Florida was purchased of Spain, the United States disregarded Spain's claim, and on April 14, 1812 added that portion west of Pearl river to Louisiana, and on May 14, 1812 the remainder was incorporated with the Mississippi territory.^[94]

With this act the Mississippi territory reached its full growth. It embraced all the territory which now makes up the states of Mississippi and Alabama. It had been just fourteen years, one month and seven days since the original territory was organized. It is estimated that 33,956 square miles were included in that territory. To the north of it 54,622 square miles had been added, and to the south 10,482 square miles, (of which 4,482 square miles is water.)^[95] In all the Mississippi territory embraced 99,060 square miles. Clause four of the act organizing the territory is as follows: "The territory hereby constituted one district, for the purpose of government, may, at the discretion of Congress, be hereafter divided into two districts, with separate territorial governments in each, similar to that established by the act. Congress exercised the right herein reserved, and on Dec. 10, 1817 the western portion of that territory embracing 46,810 square miles became the State of Mississippi, and the proud commonwealth joined the sisterhood of States."

FOOTNOTES:

[81] Public Domain, p. 51. (Extract charter, June 30, 1665.) "Know ye, that at the humble request of the said grantees, etc., we are graciously pleased to enlarge our said grant unto them according to the bounds and limits hereafter specified, * * * all that province * * * within our dominions in America aforesaid, extending north and eastward as far as the north end of Currituck river or inlet, upon a straight westerly line, to Wyonoak creek, which lies within or about the degrees of thirty-six and thirty minutes northern latitude, and so west in a direct line as far as the south seas; and south and westward as far as the degrees 29, inclusive of northern latitude &c., &c."

[82] The Public Domain p. 52.

[83] Poore's Charters and Constitutions Vol. II. p. 1410.

[84] Extract from charter, June 9, 1732: "Know ye, therefore, that we, greatly desiring the happy success of the said corporation, for their further encouragement in accomplishing so excellent a work, have of our special grace, certain knowledge, and mere motion, given and granted, and by these presents, for us, our heirs, and successors, do give and grant to the said Corporation, and their successors, under the reservations, limitations, and declarations, hereafter expressed, seven undivided parts (the whole into eight equal parts to be divided) of all those lands, countries, and territories, situate, lying, and being, in that part of South Carolina in America, which lies from the northern stream of a river commonly called the Savannah, all along the sea coast to the Southward, unto the most southern stream of a certain other great river called the Altamaha, and westward from the heads of the said rivers respectively, in direct lines to the South Seas."

[85] McMaster.

[86] Public Domain.

[87] McMaster Vol. III.

[88] McMaster Vol. III.

[89] Public Domain p. 84.

[90] Section 5 of the act. Poore's Charters & Constitutions Vol. II.

[91] McMaster Vol. III.

[92] McMaster Vol. III.

[93] Art. 2: "To prevent all disputes on the subject of boundaries which separate the territories of the two high contracting parties, it is hereby declared and agreed as follows, to wit: The southern boundary of the United States, which divides this territory from the Spanish Colonies of East and West Florida, shall be designated by a line beginning on the river Mississippi, at the northernmost part of the thirty-first degree of latitude north of the equator which from thence shall be drawn due east to the middle of the river Apalachicola or Chattahoochee," etc.

[\[94\]](#) The Public Domain.

[\[95\]](#) Public Land Commissioner Parts 1 & 4 pp. 88 and 105.

**THE EARLY SLAVE LAWS OF MISSISSIPPI.
BEING SOME BRIEF OBSERVATIONS
THEREON, IN A PAPER READ BEFORE THE
MISSISSIPPI HISTORICAL SOCIETY, AT A
MEETING HELD IN THE CITY OF NATCHEZ,
APRIL 20-21, 1899.
BY ALFRED H. STONE, ESQ.**

Probably no institution with which history deals has been the centre of more momentous events, or the subject of more earnest and acrimonious discussion than that of human slavery. To the study of whatever of the states of civilization we may devote ourselves, we find that, regardless of its present position of advancement, at some period of its history the personal ownership of human beings was a recognized feature of its social fabric. Nor is it true that the existence of this institution at any certain period of a people's history can be taken as an evidence of a low state of intellectual, moral or social development during such period. Quite the contrary was often the case,—despite the fact that we have heard so much of "the demoralizing and degrading effects of slavery" and are told that it was ever a curse upon any people who tolerated it,—for both biblical and secular history are replete with testimony to the magnificent achievements of nations whose most glorious epochs were those during which slavery flourished.

It is foreign, however, to our purpose to engage in a discussion of slavery as a civil institution, or to question whether its toleration was of good or evil effect, or yet to inquire whether it could ever have justifiably existed. We propose to look at but one of its many features,—and that merely from the standpoint of an investigator of what has already passed into the realm of ancient history,—become something "flat, stale and unprofitable" to all save the curiously inclined.

The bitter and often unreasoning hatred, on the part of many, of the institution and those who upheld it in this country, and the repugnance with which it came to be generally regarded by even sincere and generously inclined people in a section in which it was non-existent, were unquestionably largely induced by the constant contemplation from a distance of an institution the softer aspects of which could not be understood by strangers to its inner life,—but of which the one dominant feature was the bare fact of the bodily ownership of human beings,—the mere existence of the legal right to barter, sell and trade in human-kind. Of the relations between the master and his human chattels, and of the laws governing those relations, except in rare instances, they seemed to be ignorant,—as well, apparently, as of the safeguards with which a humane public sentiment surrounded the treatment of the slave, both by the law and the master.

It is a brief consideration of some of these laws, as they stood upon the statute books of our own state during the earlier years of its history, that we beg to invite your attention.

Under an old Federal ordinance, passed in 1787, for the government of the Northwest Territory, it was provided that in that territory there should be "neither slavery nor involuntary servitude," except of course for the punishment of crime. As the Congressional act of 1798, forming the Mississippi Territory, subjected it to the provisions of this ordinance, we note the somewhat curious fact that in Mississippi, in its incipient territorial organization, slavery was a prohibited institution. However, in the act of 1802, which for the first time provided for the establishment of a government in the Mississippi Territory, this provision alone of that ordinance was excepted, and slavery recognized as legal.

The first provision concerning slavery which we find in our books, after Mississippi became a state, is contained in a clause in our first constitution, adopted in the town of Washington, August 15th, 1817, which provided that the Legislature might establish in each county a Court of Probate, for the discharge of various enumerated functions "and for the trial of slaves." This very first provision touching them seems to look to establishing proper legal means for their control, and in itself bears testimony to the falsity of the notion, which at that time some pretended to entertain, that the whim of the

master was the sole law for the governing of the slave, and that the latter had no legal status whatever.

A little further along in the same instrument we find the Legislature delegated with authority to pass laws prohibitive of the introduction into the State of slaves "as merchandise." This apparently evidences the existence, even at that early date, of a spirit of opposition to the business of "slave trading" as a common vocation which easily accounts for the feeling with which the "nigger trader" was regarded by the better classes—those among whom he would look for purchasers of his goods. In this same clause the Legislature is empowered to pass laws to oblige the owner of slaves "to treat them with humanity," to provide for them necessary clothing and provisions, to abstain from all injuries to them extending to "life or limb," and, in case of the failure to comply with the directions of such laws, the slave might be sold to some more humane master. By this instrument it was also expressly provided that the Legislature should never have the power to deprive the slave of the right to an impartial trial by a jury.

I think it proper that we should call to mind these provisions of our first organic law—testifying as they do to the treatment which law and society exacted of the master toward his slave;—but, while we can not fail to be impressed with the spirit of justice and humanity manifested in our early constitution, at a casual reading, some of the succeeding legislative enactments might be regarded as extremely harsh.

But in considering laws of this nature, abhorrent as they may be to our present sense of humane propriety, we must not lose sight of the time in which they were effective, and our judgment must be tempered by a remembrance of the fact that they were operative in a state of society which, while no less refined or lower in its moral tone than our own, yet looked upon criminal laws from a view point radically different from that of today.

The debtor's prison still existed in England,—the stocks and pillory were instruments of common use both here and there,—the public whipping post claimed its daily victims,—the rack and thumb-screw were still applied to refractory witnesses in some of the courts of the old world and there was not yet in all Christendom a country in which women had equal property rights with men,—which, by the way, Mississippi was the first community

in the civilized world to confer, and she had not progressed thus far by some twenty odd years.

For all of the many petty offenses of which the slave might be guilty the punishment was confined to "stripes,"—few or many in the discretion of the justice of the peace, though for every offense the maximum number was fixed by law. Nor could they be applied but by authority of the magistrate, after due examination, though there was almost invariably coupled with the designating of the number of stripes the injunction that they be "well laid on." The mode of procedure in all cases wherein the offense was punishable with stripes was for the justice to summon "two respectable slave-holders to assist him,"—the evidence for and against the accused being laid before them, the three determined his guilt and fixed the punishment,—within the limits of the law.

The extent of this punishment varied all the way from ten stripes for "presuming to come upon the plantation of any person without leave from his master," up to thirty-nine for grand and petty larceny, between the punishment for which there was no difference, and for "buying or selling without a written permission from his master." This latter seems to have been regarded as quite an offense, as we have frequent references to it,—the punishment fixed being as great as that attached to misdemeanors which we would consider much graver. It merely consisted in the slave buying or selling anything whatever without his master's written permission,—such permission being necessary before he could lawfully carry on even the smallest of commercial exchanges.

Even in our present state of boasted enlightenment it is questioned by many thinkers and criminologists whether we have been wise in anywhere substituting the jail for the whipping post for minor offenses. At all events, as a deterrent to petty crime among our colored brethren one sound thrashing, "well laid on," would most likely prove more efficacious than any jail sentence imposed by a latter day justice of the peace.

It was unlawful for a slave to leave his master's premises without permission, and an offense for a negro, bond or free, to have in his possession any weapons of any kind. The penalty for engaging in any "riots, routs or unlawful assemblages" was the maximum thirty-nine lashes, and the same act provided that if any white person should be convicted in the

Circuit Court of "being in company with slaves or free negroes at any unlawful meeting" he should be fined twenty dollars, to go to the informer, and, moreover, receive not exceeding twenty lashes on his bare back, at the discretion of the court.

It was in defining such unlawful meetings or assemblages to include "all assemblies of slaves, or free negroes or mulattoes, mixing and associating with such slaves, above the number of five, at any place of public resort, or at a meeting house, in the night, or at any school, for teaching them reading or writing, either in the day or night, under whatsoever pretext" that our slave holding law makers sinned so grievously in the eyes of the abolitionist. While it may be observed that this particular act contained nothing to legally prevent a master from teaching his slave to read and write, yet the policy of the law at that time is of course well known to us all to have been opposed to any such education.

I shall not engage in any discussion of the question of negro education nor seek to air my personal views in regard to it, but merely venture the statement that the experience of a third of a century, involving the expenditure of millions of dollars by the white race upon it,—the moral, social and intellectual condition of the negro today calmly and fairly considered,—have not demonstrated the unwisdom of the slave holders position of seventy-six years ago, nor yet proven an adherence to opposite views to be for the best interests of either race.

In this connection it was provided that nothing contained in any of these enactments should be so construed as to prevent a master from allowing his slave to go to places of religious worship, sagely demanding, however, "that such worship be conducted by a regularly ordained or licensed white minister, or attended by at least two discreet and reputable white persons, appointed by some regular church or religious society,"—it not being lawful for a negro to exercise any of the functions of a minister of the Gospel,—though a master might allow his slave to preach to his own slaves, but to none others.

It was unlawful for a white man to do any trading whatsoever with a slave on the Sabbath, without the consent of the master in writing first being had by the slave, and with a free negro it was unlawful on that day under any circumstances,—our early fathers seemingly being at all times possessed of

a very high regard for the general efficacy and saving grace of a written permission from the master.

The right of a slave to act in defense of himself when assaulted by a white person was at all times recognized by the law, and while it was an offense punishable by thirty-nine lashes for a slave to "use abusive or provoking language to, or to lift his hand in opposition to a white person" yet no punishment was to be inflicted where it appeared to the justice that he was acting in self defense.

It was not lawful for a slave to possess horses, mules, sheep, cattle, hogs or dogs, nor could he cultivate any cotton for his own use,—the only penalty attached, however, being the forfeiture of the property,—except as to dogs, for the keeping of which he might be punished with not exceeding twenty-five stripes. Cruel or unusual punishment, for various plantation or household offenses, could not be inflicted on a slave by his master,—under penalty of a fine of five hundred dollars for each offense, the fine to go to the state treasury, for the benefit of the "literary fund."

The various misdemeanors enumerated here constituted the bulk of crimes of which it was thought probable the slave would be guilty,—there being but few others contemplated in our early criminal legislation.

For such others, however, much greater penalties were provided.

For an assault with intent to kill, by a slave upon a white person, where express malice was clearly proven, the punishment was death. If, however, only implied malice were shown the slave was to receive any number of lashes,—not exceeding one hundred on each day, for three days in succession. For all such offenses it must be borne in mind, the law guaranteed to the slave the right to a fair and impartial trial by a jury. The sheriff was required to summon "twenty-four good and lawful men of the vicinage," of whom at least twelve should be slave holders in their own right, from which number a jury of twelve was selected and duly sworn for the trial of the case. On such juries neither the master of the offending slave nor any person related to him, nor any one related to the prosecutor could sit. No previous indictment was essential, but in all other respects the trial was conducted just as in the case of a white person. It was obligatory upon the part of the court, where the owner failed to provide proper counsel for his slave, to appoint counsel to defend him, charging the fee for such

service to the master. The regular right of a challenge of jurors for cause was given the slave, and in capital cases six peremptory challenges were also allowed him, as was also the usual right of appeal.

On a trial for a capital crime it was permissible for the jury to convict of a crime under that degree, if the evidence justified such a verdict—the punishment then being "by burning in the hand, or by stripes," according to the magnitude of the offense,—"burning in the hand" being prescribed for nearly all felonies not punishable with death.

The maiming or manslaughter of a white person, rape and arson were all capital offenses,—as was also the "consulting, advising or conspiring to make insurrection or rebellion;" while for any free persons to be guilty of the latter offense with a slave the death penalty was also provided. Whenever sentence of death was finally passed upon a slave, he was always to be allowed at least twenty days before its execution, except in case of insurrection or conspiracy.

At a much later date than that which we are considering an act was passed providing for the payment to the owner of a condemned slave, out of the state treasury, of an amount equal to one-half his assessed value, to be paid as soon as he was executed.

Wherever it was found necessary to examine a free negro or slave, as a witness in any trial, no oath whatever was administered. He was charged by the court to declare the truth in the following words: "You are brought here as a witness, and, by direction of the law, I am to tell you, before you give your evidence, that you must tell the truth, the whole truth and nothing but the truth; and if it be found hereafter that you tell a lie, and give false testimony in this matter, you must, for so doing, have both your ears nailed to the pillory, and cut off, and receive thirty-nine lashes on your bare back, well laid on, at the common whipping post."

It did not conclude "So help you God."

The crime of perjury has always been regarded as peculiarly heinous, and we find it punishable here more severely than any other non-capital offense. The penalty was as indicated in the charge, to "have one ear nailed to the pillory, and there to stand for the space of one hour, and then the said ear to be cut off, and thereafter the other ear nailed in like manner, and cut off at

the expiration of one other hour," in addition to the thirty-nine lashes prescribed. However, notwithstanding the mandatory language of the statute and of the charge, this punishment would seem to have been discretionary, for the act concludes, "or such other punishment as the court shall think proper, not extending to life or limb." Be that as it may, it is safe to conclude that no such punishment was ever inflicted, and we can find nothing in any of the books tending to show that it was ever resorted to.

It was only permissible for an owner to emancipate a slave by and with the consent of the Legislature, and then only by proving that such slave had "performed some meritorious act for the benefit of the owner or some distinguished service for the state."

The courts were always open to a negro held as a slave who claimed to be entitled to his freedom,—though no person being a member of any emancipation society could sit as a juror in the trial of such causes.

While one of the earliest slave laws of which we have any record was that prohibiting the importing of slaves for sale, it was also made unlawful for a free negro to come into the state to live; and in 1831 an act was passed requiring every free negro between the ages of sixteen and fifty to remove from the state forever. But this was not followed by a general exodus, for the act contained a clause which allowed the negro to obtain from the Probate Court permission to remain in the state, upon a showing made of "good character and honest deportment,"—though it was always exacted that every free negro should be duly registered in the county of his residence.

In connection with these acts it would be interesting to review the earlier decisions of our Supreme Court,—as showing the spirit which actuated our judges when called upon to adjudicate in matters wherein the slave was involved, and the fairness and liberality displayed in the construction and application of the laws concerning him. But it is impossible in this brief paper to do more than glance at one or two. Among the very first decisions is one rendered in 1818, in which the learned judge held, in passing on an appeal for freedom from a number of negroes, claiming to be unlawfully detained as slaves, that the slaves in the Northwest Territory became free men by virtue of the ordinance of 1787, to which we have referred, and, with true justice, declared that, as such, they could "assert their freedom in

the courts of this state and be protected therein." In the same opinion he observed that "slavery is condemned by reason and the laws of nature, and can only exist through municipal regulation; therefore in a matter of doubt, as between depriving an owner of a vested right, arising from law, and depriving a human being of his liberty, a natural right, the court would lean 'in favorem vitae et libertatis,'" and the petitioners were declared to be free.

In another very old case we find it early judicially determined that, in this state, the unjustifiable killing of a slave was murder.

This opinion, delivered in 1821, in the first years of our statehood, so clearly enunciates the humane principles which then actuated our courts, and to this good day continue to move them, in all their dealings with the inferior race, that it is peculiarly worthy of a place in the record of a society devoted to preserving the earlier history of our state and its people, and we may be pardoned for quoting its language at length.

It was by Justice Clarke, in reviewing an appeal by a white man who had killed a slave in Adams county and been sentenced to hang therefor. He said in part, "In some respects slaves may be considered as chattels, but in others they are regarded as men. The law views them as capable of committing crimes. This can only be upon the principle that they are men and rational beings. The Roman law has been much relied on by counsel for the defendant. That law was confined to the Roman Empire, giving the power of life and death over captives in war, as slaves, but it no more extended here than did the similar power given to parents over the lives of their children.... At a very early period in Virginia the power of life over slaves was given by statute, but ... as soon as these statutes were repealed it was at once considered by their courts that the killing of a slave might be murder.... In this state the Legislature have considered slaves as reasonable and accountable beings, and it would be a stigma upon the character of the state, and a reproach to the administration of justice if the life of a slave could be taken with impunity,—if he could be murdered in cold blood, without subjecting the offender to the highest penalty known to the criminal jurisprudence of the county. Has the slave no rights because he is deprived of his freedom? He is still a human being, and possesses all those rights of which he is not deprived by the positive provisions of the law,—but in vain shall we look for any law passed by the enlightened and philanthropic legislature of this state giving to the master power over the life of the slave.

Such a statute would be worthy the age of Wraco or Caligula, and would be condemned by the unanimous voice of the people of this state, where cruelty, even, to slaves, much less the taking away of life, meets with universal reprobation.... Because slaves can be bought and sold it does not follow that they can be deprived of life.... The right of the master exists not by force of the law of nature or of nations, but by virtue only of the positive law of the state,—and, although that gives to the master the right to command the services of the slave, requiring the master to feed and clothe the slave from infancy till death, yet it gives the master no right to take the life of the slave, and if the offense be not murder it is not a crime, and subjects the offender to no punishment.... A distinction once existed in England between the killing of a Dane and a Saxon, but even in Coke's time the killing of any rational being was murder.... At one period of the Roman history, a history written in the blood of vanquished nations, slaves were regarded as captives, whose lives had been spared in battle, and the savage conqueror might take away the life of the captive, and therefore he might take away the life of the slave. But the civil law of Rome extirpated this barbarous privilege, and rendered the killing of a slave a capital offense. When the Northern barbarians overran Southern Europe, they had no laws but those of conquerors and conquered, victors and captives, yet even by this savage people no distinction was recognized between the killing in cold blood of a slave or a freeman. And shall this court, in the nineteenth century establish a principle too sanguinary for the code even of the Goths and Vandals, and extend to the whole community the right to murder slaves with impunity?

The motion to arrest the judgment must be overruled."

The defendant was sentenced to hang on July 27th, 1821.

I have endeavored as well as possible in the brief time allotted me, to refer to the most important features of our early slave laws. It has not been my purpose to attempt an exhausted research into such legislation,—the object sought being merely to show, as a matter of some historical interest, from an impartial mention of the early acts concerning slavery, that the position of the slave in Mississippi was not as it has sometimes been depicted; that so far from being a creature with no legal status, subject to the whims and caprices of his master,—a mere chattel, over which even the power of life and death might be exercised at will,—he was surrounded by all the

protection which just laws, humanely administered, could afford,—that the courts were ever open to him and that he could, and did appeal to them, and not in vain.

If any unknown or forgotten facts of historical importance to us have been brought to light, my purpose has been accomplished.

We have only touched upon the legislative enactments concerning slavery,—and for us, who know that it existed, it is unnecessary to revert to that higher law which controlled the relations between master and slave, and compelled such conduct toward the latter as made of him in countless instances the devoted friend.

Only an affection born of long years of treatment in the main considerate and kind, could have furnished history with the spectacle of the espousal by the slave of his master's cause, in a conflict the end of which meant so much of difference to the two.

The four years of faithful devotion to which the women of the South bear willing witness could never have been exhibited by an enslaved people between whom and their masters the relations had been other than those we know to have existed.

The society which made possible those relations was unique in the history of civilization,—and in the annals of all the peoples who have passed through bondage the conduct of the negro slave stands without a parallel.

FEDERAL COURTS, JUDGES, ATTORNEYS, AND MARSHALS IN MISSISSIPPI, 1798-1898.

[\[96\]](#)

BY THOMAS McADORY OWEN.

The Mississippi Territory was created by Act approved April 7, 1798.[\[97\]](#) This Act, limited in its provisions, authorized the President "to establish therein a government in all respects similar to that now exercised in the territory northwest of the river Ohio," excepting expressly the prohibitive provision respecting slavery.

TERRITORIAL COURTS.

The Ordinance of July 13, 1787, regulating the government of the Northwest Territory, authorized the appointment by the President of "a court to consist of three judges," "who shall have a common law jurisdiction," their commission to continue in force during good behavior. The governor and the judges were given a limited law making power. On May 7, 1798, just one month after the act of formation, the President commissioned the Governor and Secretary, and two judges—Daniel Tilton and Peter Bryan Bruin. On June 28, 1798, the third, Wm. McGuire, was commissioned as Chief Justice. Their law making labors ended disastrously, the enactments being generally condemned by the people as "repugnant to the established principles of jurisprudence derived from the common law of England." So great was the clamor against them that Congress advanced the Territory into the second grade of government, May 10, 1800. These obnoxious laws were in a few years repealed.[\[98\]](#)

The settled portions of the Eastern section of the Territory (now Alabama) were so remote from the Mississippi settlements proper as to make the duty of holding courts there very burdensome, and often courts were not held at all. Superior Courts were held in the District of Washington (now Washington County, Ala.,) on the 4th Monday in Sept., 1802, by Seth

Lewis, Chief Justice, and on the first Monday in May, 1804, by Judge David Ker, making two only in four years. Congress, therefore, on March 27, 1804, passed a law providing an additional judge for the Territory, to have jurisdiction in Washington District, and to this position Harry Toulmin was appointed.

The "Great Bend of the Tennessee" having been thickly settled, and formed into Madison County (now in North Alabama,) Congress provided, March 2, 1810, a judge to have jurisdiction therein, and to this position Obadiah Jones was appointed. Both Toulmin and Jones served during existence of the territory.^[99]

During the whole territorial period, 1798-1817 the *nisi prius* courts, and the appellate courts were held by these judges, three in what is now Mississippi, and two in what is now Alabama.^[100]

For the three groups of judges in the Mississippi section, the following is the *probable* order of succession:

- 1. McGuire, Lewis, Rodney, Martin, Campbell, Poindexter.
- 2. Tilton, Ker, Jones, Mathews, Leake.
- 3. Bruin, Fitts, Simpson, Archer.

TERRITORIAL ATTORNEYS AND MARSHALS.

Until the Act of Congress, Feb. 27, 1813, providing for territorial attorneys and marshals, all persons holding these positions in Mississippi did so under local regulations. Following the passage of the law, appointees were named who seem to have held office during the remaining years of the territory.^[101]

FEDERAL DISTRICT COURT.

The Act of April 3, 1818 marks the establishment in the State of the Federal Judiciary proper.^[102] A judge, attorney and marshal were authorized. The judge was given authority to appoint a clerk. During its whole existence the number of judges has never been increased.

Natchez was appointed as the place for the sitting of the Court, twice annually, and so continued until March 3, 1835, when there was a change to Jackson, where sessions have since been held. [\[103\]](#)

From April 3, 1818, to June 18, 1838, the whole State constituted one District. On the latter date it was divided into the Northern, with the place of holding court fixed at Pontotoc, and the Southern District, with Jackson as the place for holding the sessions. [\[104\]](#)

On May 16, the place of holding courts in the Northern District was changed from Pontotoc to Oxford, where courts are now held. [\[105\]](#)

The subsequent changes, resulting in the present arrangement is as follows: [\[106\]](#)

By Act June 15, 1882, the Eastern Division of the Northern District was created, with Aberdeen as the place for holding courts.

Feb. 28, 1887, the Western Division of the Southern District was created, with Vicksburg as the place for holding courts.

April 4, 1888, Southern Division, Southern District, was created, with Mississippi City as the place for holding courts.

July 18, 1894, Eastern Division Southern District, was created, with Meridian as the place for holding courts.

On the secession of Mississippi in 1861, Judge Samuel J. Gholson resigned. Mr. Lynch makes this observation on the court during the civil war period: [\[107\]](#)

"When the Confederate Government was inaugurated Judge Clayton was appointed to the bench of the Confederate District Court for Mississippi, and held that position until the close of the war. There was during this period, of course, but little civil business before his court, and only one point of a general interest in the laws of war was decided by him, which was, that when the Government was powerless to protect, it had no power to punish."

JUDGES.

Territorial.

Daniel Tilton, of New Hampshire, commissioned, May 7, 1798.[4]

Peter Bryan Bruin, of Mississippi, May 7, 1798.[\[108\]](#)

William McGuire, Chief Justice, of Virginia, June 28, 1798.[\[109\]](#)

Seth Lewis, of Tennessee, Chief Justice, May 13, 1800.[\[110\]](#)

David Ker, of Mississippi, temporary commission, Nov. 2, 1802, permanent commission Jan. 25, 1803.[\[111\]](#)

Thomas Rodney, of Delaware, temporary commission, July 12, 1803, permanent commission, Nov. 18, 1803.[\[112\]](#)

Ephriam Kirby, of Connecticut, temporary commission, April 6, 1804.[\[113\]](#)

Harry Toulmin, of Kentucky, Nov. 22, 1804.[\[114\]](#)

Obadiah Jones, of Georgia, Mar. 3, 1805.[\[115\]](#)

George Matthews, Jr., of Georgia, temporary commission, July 1, 1805.[\[116\]](#)

Walter Leake, of Virginia, Mar. 2, 1807.[\[117\]](#)

Francis Xavier Martin, of North Carolina, Mar. 7, 1809.[\[118\]](#)

Obadiah Jones, of Georgia, Mar. 6, 1810.[\[119\]](#)

Oliver Fitts, of North Carolina, Apr. 18, 1810.[\[120\]](#)

David Campbell, of Tennessee, Mar. 3, 1811.[\[121\]](#)

Josiah Simpson, of New Jersey, Feb. 18, 1812; also Feb. 9, 1816.[\[122\]](#)

George Poindexter, of Mississippi, Mar. 3, 1813.[\[123\]](#)

Stevenson Archer, of Maryland, Mar. 6, 1817.[\[124\]](#)

Federal District.

William Bayard Shields, of Mississippi, April 20, 1818.[\[125\]](#)

Peter Randolph, of Miss., temporary commission, June 25, 1823, permanent commission, Dec. 9, 1823.[\[126\]](#)

Powhatan Ellis, of Miss., July 14, 1832. [\[127\]](#)

George Adams, of Miss., Jan. 20, 1836. [\[128\]](#)

Samuel J. Gholson, of Miss., Feb. 13, 1839. [\[129\]](#)

Confederate District.

Alexander M. Clayton, ———, ——— 1861. [\[130\]](#)

Federal District.

Robert Andrew Hill, of Oxford, Miss., May 1, 1866, resigned Aug. 1, 1891. [\[131\]](#)

Henry C. Niles, of Kosciusko, Miss., temporary commission, Aug. 11, 1891, permanent commission, Feb. 15, 1892, oath taken, Feb. 15, 1892. [\[132\]](#)

ATTORNEYS. [\[133\]](#)

Thomas D. Anderson, July 29, 1813.

William Crawford, Dec. 10, 1814. [\[134\]](#)

Bela Metcalfe, Apr. 20, 1818. [\[135\]](#)

William B. Griffith, March 13, 1822, and also Dec. 22, 1825. [\[136\]](#)

Felix Houston, Jan 9, 1828. [\[137\]](#)

George Adams, March 3, 1830, and also May 12, 1834. [\[138\]](#)

Richard M. Gaines, Jan. 20, 1836.

Northern District.

Samuel F. Butterworth, June 25, 1838.

Oscar F. Bledsoe, Jan. 13, 1841, and also Feb. 8, 1845.

Andrew K. Blythe, Dec. 18, 1848.

Woodson L. Ligon, Aug. 27, 1850.

Nathaniel S. Price, April 1, 1853.

Jehu A. Orr, May 31, 1854.

Flavius J. Lovejoy, March 12, 1857.

Southern District.

Richard M. Gaines, July 9, 1840, March 13, 1844, and also March 22, 1848.

Horatio J. Harris, Aug. 10, 1850; Aug. 4, 1854, and also March 7, 1859.

Carnot Posey, temporary commission, Nov. 4, 1859, permanent commission, Jan. 30, 1860.

MARSHALS. [\[139\]](#)

John Hanes, of Mississippi, July 29, 1813. [\[140\]](#)

Henry G. Johnson, of Mississippi, April 20, 1818. [\[141\]](#)

Walter M. Leake, March 1, 1820.

Charles M. Norton, temporary commission, Nov. 22, 1823, permanent commission, Dec. 9, 1823.

John H. Norton, Jan. 3, 1825, and also Jan. 2, 1829.

Anthony Campbell, May 28, 1830.

Samuel W. Dickson, temporary commission, Jan. 18, 1832, permanent commission, Dec. 11, 1832.

William M. Gwin, temporary commission, Oct. 12, 1833, permanent commission, June 30, 1834, and also June 26, 1838. [\[142\]](#)

Northern District.

Adolphus G. Weir, June 25, 1838.

Alexander K. McClung, temporary commission, April 15, 1841, permanent commission, Aug. 14, 1841.

Andrew A. Kincannon, March 12, 1845.

John Rayburn, Dec. 18, 1848.

William McQuiston, May 16, 1850.

Charles R. Jordan, April 6, 1853.

William H. H. Tison, temporary commission, April 21, 1857, permanent commission, May 17, 1858.

Southern District.

Fidelis S. Hunt, Jan. 13, 1841.

Anderson Miller, temporary commission, April 15, 1841, permanent commission, July 22, 1841.

Thomas Fletcher, temporary commission, March 24, 1845, permanent commission, Feb. 24, 1846.

Fielding Davis, March 20, 1850.

Richard Griffith, April 4, 1853, and also temporary commission, April 21, 1857, permanent commission, May 15, 1858.

FOOTNOTES:

[96] The lists of Judges, Attorneys and Marshals presented below were compiled from the records of the State Department and the Department of Justice, Washington, D. C. In the multiplicity of Mississippi books, there is nothing of a special character relating to the above title, and so far as is known this particular data has never heretofore been published.

The principal repository for early Mississippi history, Claiborne's *Mississippi* (1880), contains an account of the jurisprudence of the Territory and State, Chapter XXXII, pp. 467-482. In Goodspeed's *Memoirs of Miss.* (1891), Vol. I, p. 101, it is stated that Judge A. M. Clayton contributed this chapter.

In James D. Lynch's *Bench and Bar of Mississippi* (1881), there is an imperfect account of the judicial establishment, with a large number of valuable biographical sketches, and portraits.

Goodspeed's *Memoirs of Miss.* (2 vols., 1891), has a Chapter on "The Legal and Judicial History" of the State, vol. I, pp. 100-131, with portraits.

The original materials are contained in the United States *Statutes*, the Mississippi Codes and the Session *Laws*, and the *Reports* of the Supreme Court of the State.

[97] *U. S. Statutes at Large*, vol. i, pp. 549-550.

[98] *U. S. Statutes at Large*, vol. ii, p. 69. See Claiborne, for account of laws passed by Governor and judges, second grade of government, &c., pp. 209, 211, 212, 214, 217, 218, 223, 224, 530.

[99] *U. S. Statutes at Large*, vol. ii, pp. 301, 563.

[100] It is beyond the scope of this paper, which is almost purely statistical, to enter into a review of the various territorial courts, or "systems" of judicature projected, &c. For full discussion, see Claiborne and Goodspeed.

[101] *U. S. Statutes at Large*, vol ii, p. 806.

[102] *U. S. Statutes at Large*, vol. iii, p. 413.

[103] *Ibid.* vol. iv, p. 773.

[104] *Ibid.* vol. v, 247. See also *Revised Statutes* of the United States (1878) Secs. 539, 552, and 572.

[105] *Ibid.* vol. xiv, p. 48.

[106] *Supplement Revised Statutes*, 1874-1891, pp. 344, 500, 547, 583, 584, 638, 639.

[107] *Lynch's Bench and Bar of Miss.*, p. 506.

With the other Judges comprising the first court, he was quite unpopular, and in 1802 he abandoned his office.—Claiborne, pp. 209, 223, 231.

[108] Resigned in 1810. He had held judicial office under the Spanish government, and was an excellent man, but not a lawyer. Claiborne, p. 161., note, has a good sketch, with other references on pp. 152, 172, 209, 223, 283.

[109] He was the only lawyer on the first bench of Judges. He early resigned.—Claiborne, p. 209.

[110] His appointment changed public sentiment toward the Court which had hitherto been hostile. For sketches of, see Claiborne, p. 108, note, also p. 223. Gov. W. C. C. Claiborne speaks of him as "a learned lawyer."

[111] He was highly esteemed and his appointment increased the respect of the people for the Court. Claiborne, pp. 231, note, and 141, 238. See Goodspeed, vol. i, p. 1073, for sketch. He died 1805, and not in 1810 as stated by Claiborne.

[112] Claiborne, pp. 242, 258, 283. He presided, with Judge Bruin, at the trial of Burr.

[113] He was probably appointed for the Washington District, but evidently never served. He was one of the Land Commissioners for the District East of Pearl river, appointed under Act of Congress, of March 3, 1803—Pickett's *Alabama*, vol. ii, p. 196.

[114] Judge for Washington District, now in Ala. Born in Taunton, England. He was the most prominent and the strongest of the early public men in Alabama, and died in 1824. An excellent account of his life is in Claiborne, p. 309, note. See also Brewer's *Alabama* (1872), p. 575; Lynch, p. 21-2; and Pickett's *Alabama*, vol. ii, pp. 204-5.

[115] Evidently never accepted appointment, as on Mar. 7, 1809, still a resident of Ga., he was appointed a Judge in Illinois. The latter place he also appears not to have accepted, as in 1810 he became Judge for Madison Co., M. T.

[116] Martin's *Louisiana* (1882), p. xxiii. Never received a permanent commission, but on Jan. 19, 1806, became a Judge in Orleans Territory. Son of Gov. George Matthews, of Ga. See also Gilmer's *Georgians*.

[117] Claiborne, p. 356; and Lynch, pp. 135-7.

[118] Resigned and became a Judge in Orleans Territory, March 21, 1810. For excellent memoir, by Judge W. W. Howse, *see* Martin's *Louisiana* (1882).

[119] *See* note *supra*. He accepted this appointment, and presided in the courts of Madison county, and later of other counties in the Northern part of Alabama territory until 1818.

[120] Grandfather of James Harris Fitts, Tuscaloosa, Ala.—*Memorial Record of Alabama* (1893), vol ii, p. 1090. He has sometimes been confounded with Gideon Fitz, of Va., who was a brother-in-law of Gov. Robert Williams. Mrs. Sallie B. Morgan Green, so well known in Miss. as a writer, but now of Calusa, Cal., is a grand daughter of Gideon Fitz, *See* Claiborne, pp. 161 *note*, 352; and Goodspeed, vol. i, p. 109.

[121] Goodspeed, vol ii, p. 109.

[122] Claiborne, p. 352.

[123] Claiborne, Chapter xxx, pp. 361-414, contains an elaborate biography. In a *note*, p. 414, is a brief account of his literary remains, now deposited with the Claiborne papers, in the University library, Oxford, Miss. *See also* Lynch, pp. 27-73. His portrait is in Lowry and McCardle's *History of Miss. for Schools*, p. 101.

[124] Returned to Md. in 1819.—Goodspeed vol. i, pp 311-12.

[125] First Federal District Judge. Claiborne, p. 260, *note*.

[126] Goodspeed, vol. i, p. 130.

[127] Claiborne, pp. 358, *note*, and 470; Lynch, pp. 27-8. He is said to have descended from Pocahontas.

[128] Claiborne, pp. 388-9, *note*; and Goodspeed, vol. i pp. 114, 285. He was the father of Gens. Daniel and Wirt Adams, and father-in-law of Gen. John D. Freeman.

[129] Lynch, pp. 497-500. The author, p. 499, comments on the failure of President Davis to appoint him his own successor. *See also* Goodspeed, vol. i, p. 787.

[130] Lynch, pp. 500-507; *steel portrait*.

[131] His sketch in Goodspeed, vol. i, pp. 922-929, contains an elaborate presentation of his judicial career, and discusses many of the questions which came before him when on the bench. Claiborne, p. 472, *note*, pays a splendid tribute to his character.

[132] Present incumbent.

[133] The list is not brought down later than 1860. Further detailed annotation as to both attorneys and marshals is expressly omitted except in a few instances.

[134] Appointed for and acted in Washington District. For sketch, *see* Brewer's *Alabama*, p. 392.

[135] First Federal District Attorney in Miss. after formation of the State.

[136] Lynch, pp. 112-126.

[137] Claiborne, p. 431.

[138] Became Judge later; *see note supra*.

[139] The list is not brought down later than 1860.

[140] Appointed for and acted in Washington District.

[141] First Federal Marshal in Miss. after the formation of the State.

[142] For elaborate memoir, and *portrait*, *see* Claiborne, pp. 427-446.

RUNNING MISSISSIPPI'S SOUTH LINE

PETER J. HAMILTON, ESQ.

Within a month after the 1899 meeting of this association at Natchez, the Alabama Historical Society will be celebrating at St. Stephens on the Tombigbee River the centenary of the withdrawal of the Spaniards below the line of 31° , which once separated the United States from the Spanish possessions east of the Mississippi River. In connection with this and our own meeting place a short study of the origin and delimitation of this, Mississippi's original south boundary, will be of interest.

It is an interesting question why the parallel of 31° was ever selected as a boundary. It crosses rivers not far above their mouths and seems singularly unsuitable. It makes one State own the source and another the mouth of all streams. It was put in the treaty of 1782, whereby Great Britain acknowledged American independence, for policy, because it confined the Spaniards to the coast, which they could neither use nor defend. Historically it was so selected because Great Britain had made it by proclamation of October 7, 1763, the north line of West Florida, and West Florida was captured from her by Spain in 1780. But why had it ever been made the boundary of Florida? The only reason apparent is that Great Britain in 1763 wanted to get immediate control only of the harbors and did not care to have her colonial governments clash with the Indians. The territory above was by the same proclamation made crown lands and reserved for the use of the savages. This policy was reflected in the great Choctaw treaty at Mobile March 26, 1765, when a tract was ceded "the boundary be settled by a line extended from Grosse Point, in the Island of Mount Louis, by the course of the western coast of Mobile Bay, to the mouth of the eastern branch of the Tombigbee River, and north by the course of said river, to the confluence of Alibamont and Tombigbee Rivers, and afterwards along the western bank of Alibamont River to the mouth of Chickianoce River, and from the confluence of Chickianoce and Alibamont rivers, a straight line to the confluence of Bance and Tombigbee rivers; from thence, by a line along the western bank of Bance River, till its confluence with the Tallatukpe River;

from thence, by a straight line to Tombigbee River, opposite to Atchalikpe (Hatchatigbee Bluff) and from Atchalikpe, by a straight line to the most northerly part of Buckatanne River, and down the course of Buckatanne River to its confluence with the river Pascagoula, and down by the course of the river Pascagoula, within twelve leagues of the seacoast; and thence, by a due west line, as far as the Choctaw nation have right to grant." The twelve leagues from the coast bring us to about this line of 31°, as closely as could be determined without a survey. It is true that on the Tombigbee land was ceded up to Hatchatigbee Bluff; but that was a reaching, in the only way possible, towards the new north boundary of West Florida as already fixed in 1764—an east and west line drawn through the mouth of the Yazoo River.^[143]

But while it is true that by the treaty of 1782 Great Britain thus acknowledged the south boundary of her revolted colonies as the line of 31°, it is not less true that she did not then own so far south. Spain, who was in possession, recognized the boundary through the Yazoo mouth, and, in fact, Great Britain in this treaty proposed to do the same thing if she re-acquired West Florida. Walnut Hills and Natchez on the Mississippi, Fort Confederation and Fort St. Stephen on the Tombigbee were strong Spanish posts and all above 31°.

The all-conquering Galvez was governor-general for a year after that treaty and would certainly have maintained the Spanish rights by force of arms if necessary. But his successor, the politic Miro, lived to see a rapid American growth west of the mountains, and the death of the active King Charles III. and the French Revolution wrought a change in Europe. The weak Charles IV. let his wife and her notorious paramour, Godoy, rule Spain.^[144] It so happened that French successes led to peace, but Godoy thought that Spain would soon be at war with England and that therefore peace with the United States was important for Spanish-America. At all events he suddenly assented to the demands of Thomas Pinckney, the American envoy, and on October 27, 1795, signed a treaty whose second article declared 31° as the boundary from the Mississippi to the Chattahoochee, and thence east by a line from the junction of the Flint and Chattahoochee to the head of the St. Mary's River.

The colonial authorities could never believe this agreement *bona fide* and sought by delay to give the court a chance to undo the treaty. In 1797 the

Spanish minister declared the United States guilty of bad faith in making friends with England by Jay's treaty. A commissioner to run the line had to be as much of a diplomat as of a surveyor.

Such, at least, was the opinion of Andrew Ellicott, whom President Washington in the last part of 1796 sent by way of the Ohio and Mississippi to act for the United States. Baron de Carondelet, the governor general, was to represent Spain. Ellicott arrived at Natchez on February 24, 1797, and until he left on April 9, 1798,^[145] his time was taken up in negotiations with commandant Gayoso de Lemos or encouraging the dissatisfied citizens there to claim the rights of Americans.^[146] Among the prominent men there named by Ellicott were those on the revolutionary committees,—Anthony Hutchins, Bernard Lintot, Cato West, Isaac Gaillard, William Ratliff, Joseph Bernard, Gabriel Benoist, Peter B. Bruin, Daniel Clark, Philander Smith and Roger Dixon.

The permanent committee was composed of the last eight and Frederick Kimball, who lived below the line. These were really the government until the organization of the Territory. Gayoso admitted the neutrality of the district even before the Spaniards evacuated the town on March 30, 1798. Hutchins was a disturbing factor for a time, organizing a counter committee of safety and correspondence. Among his friends were Thomas Green, James Stuart, Ashly, (a Baptist minister,) Messrs. Shaw, (an attorney,) Davis, Justice King, Abner Green, Hocket, and Mr. Hunter, afterwards member of Congress from the Territory. Ellicott says that Gayoso declined to let Hutchins move below the line and that he therefore remained, to be prominent in Mississippi.^[147] Of the 299 pages of Ellicott's printed Journal, the first 176 are taken up with events before beginning the survey. General Wilkinson accuses him of officiousness with the Spaniards and of gross immorality on board his boat on the river. It may be true, but Wilkinson is no reliable authority, although he ought to have been a good judge of rascality.

Ellicott had been in public life before. He was a Quaker of Pennsylvania, and about 1789 ran the western line of New York, and afterwards the lines of the District of Columbia and the streets of Washington. In 1791 he was commissioner to run the line between Georgia and the Creeks.^[148]

On the present occasion he had with the party an escort of soldiers, at least part of the time under the gallant Captain John Boyer. The plans annexed as an appendix to the Journal must largely be those of David Gillespie, who did the actual surveying, and his report or journal would have been of greater value than Ellicott's. Ellicott acted as astronomer, but generally was the outside man. He was in New Orleans, Mobile, Pensacola, St. Marks and circumnavigating Florida, while Gillespie was quietly plodding the forests, running a guide line and by offsets establishing the true latitude of 31° . But nothing from Gillespie can now be found at Washington and even Ellicott's original report seems to have shared the fate of so much else in the vandal destruction of the capital by the enemy in 1814. For the Spaniards Captain Minor acted as surveyor, with Patrick Taggart as assistant, and Mr. Dunbar, (later of Mississippi Territory,) as astronomer.

The American side was better provided with instruments than the Spanish, having fourteen kinds in all.^[149] They consisted of two zenith sectors (the larger one having nearly six feet radius), "both principally executed by _____ Rittenhouse," a large achromatic telescope made by Dolland of London, with terrestrial and celestial magnifying pieces, besides two small telescopes for taking signals, a transit and equal altitude instrument made by Ellicott and used in the New York and Washington surveys, a regulator made by Ellicott, an instrument of eight inches radius for taking horizontal angles, constructed by George Adams of London, three brass sextants, one by Ramsden being of "superior style," a surveying compass made by Benjamin Rittenhouse "upon the newest and most approved style," two "excellent" stop watches, two "excellent" cases of drawing and plotting instruments, two four-sided copper lanterns for tracing the meridians and directions during celestial observations, an apparatus to protect the water in using an artificial horizon, consisting of covered cup, &c., and two two-pole chains of common construction. On the Spanish side were only an "excellent" sextant, graduated by the vernier to 10 seconds, an astronomical circle executed by Traughton of London, itself "a portable observatory," "executed in a masterly manner," and an old surveying compass of poor construction. The sextant and circle had been the property of Dunbar, and were acquired from him by Governor Gayoso.

Ellicott and party sailed from Natchez down the river and at Clarksville began work. On April 11th, he says, they "set up the clock, a small zenith

sector, and proceeded to take the zenith distance of pollux, for five evenings successively, the first three, with the plane of the sector to the east and the others with the plane west. From the result of those observations, it appeared that we were three miles and two hundred and ninety perches too far north. This distance my assistants, Messrs. Gillespie, Ellicott, Jr., and Walker, traversed with a common surveying compass and chain, to the south, in order to discover (nearly) a proper place to encamp, and set up the large sector, to determine the first point in the line with accuracy. When this traverse was completed it was found to be impracticable to convey our instruments, baggage and stores directly from Clarksville to the most eligible place, owing to the extreme unevenness of the country on the one hand, and the banks of the Mississippi not being sufficiently inundated on the other, to give us a passage by water through the swamps and small lakes; it was therefore determined to descend the Mississippi to the Bayou Tunica (or Willing's Bayou); from whence I understood we could convey our instruments, stores and baggage, either by land or water, almost to the place of beginning; though not without some difficulty. The distance from Clarksville to the Bayou Tunica by land is but eight and a half miles, but by the Mississippi more than fifty.

"On the 24th we left Clarksville, and arrived at the Bayou Tunica on the 26th, being detained one day by head winds.

"On the 27th my assistants were sent to carry a line east from the termination of the traverse already made, into the high land, and on the 28th I went and examined the country over which the guide line passed, and fixed upon a very elevated situation, about one thousand four hundred feet south of it, for our first position; but the difficulty of getting our instruments, baggage and stores to it, appeared much greater than I first expected. A party of our men were directed to open a road from the height already pitched upon, to Alston's Lake; the distance was about one mile. The road was completed on the 30th, and on the first day of May we moved and encamped on the top of the hill. Our instruments, baggage, &c., were first carted from the Bayou Tunica to Alston's Lake, into which I had previously taken through the swamp two light skiffs: the articles were then taken by water, up the lake to the point where our road from the hill struck it, and from thence packed on horses to our encampment. The country was so broken, and covered from the tops to the bottoms of the hills, with such

high, strong cane, (*arundo gigantea*,) and a variety of lofty timber, that a road from the Bayou Tunica, to our camp, could not be made by our number of hands, in less than a month passable for pack-horses.

"Our observatory tent being worn out by the military, who had no tents when they arrived at Natchez, I was now under the necessity of erecting a wooden building for that purpose; which I began on the 2d of May, and with the aid of four men finished on the 4th, and set up the clock, and large zenith sector; but the weather being unfavorable, the course of observations was not began till the 6th, and was completed on the 16th."

On the 21st he was joined by Captain Minor and on the 26th by Dunbar. June 1st Gayoso, who succeeded on the death of Carondelet, came with his suite and examined the line as determined; but he then returned to New Orleans, leaving Minor to represent him.

Ellicott in the 5th volume of the American Philosophical Society Transactions (reprinted as an appendix to his Journal) quotes from Dunbar the following account of the establishment of the point on the Mississippi River:—

"On the 28th of July, the line then approaching the 10th mile, and learning that the waters of the inundation were retired within the banks of the Mississippi, so that the lands were become sufficiently dry to give firm footing to the labourers, the astronomer for his Catholic Majesty taking upon himself the extending of the line through the river low ground to the eastern margin of the Mississippi. The party allotted for this service did accordingly encamp at the point D, pushing the line forward. Judging the present a convenient position for verifying the direction of the line, the astronomer for His Catholic Majesty established his observatory near the point D, and made ____observations with the circular instrument placed in the direction of the tangent____.

"The line being extended to the margin of the Mississippi on the 17th of August, the measurement from the point D, was found to be 2 miles and 180 perches English measure, (or 2111.42 French toises.) At the distance of 1 and 2 miles at the points X and Y, were erected square posts surrounded by mounds of earth, and at a distance of 88 French feet from the margin of the river, and in the parallel of latitude was erected a square post 10 feet high surrounded by a mound of eight feet in height. On this post is inscribed

on the south side a crown with the letter R underneath; on the north U. S., and the west fronting on the river, Agosto 18th, 1798. Lat. 31° N. In erecting the mile post, due regard was paid to the quantity of the offsets."

Their second camp was at Little Bayou Sara. Thence on their progress at first was slow on account of the cane, twenty to thirty-five feet high, matted with vines, and the many short, steep hills, besides the rainy weather. They hardly averaged a quarter of a mile per day. The Choctaw Indians, through whose country they passed, never disturbed the party, however, therein contrasting with the Creeks beyond Mobile River the next year.

While on Little Bayou Sara they learned of the formation of Mississippi Territory and the appointment of Winthrop Sargent as governor.^[150] The new governor arrived in Natchez August 6th, and General Wilkinson on the 26th, but Sargent's health did not permit him to organize the government until the next month.

But Ellicott was now outside civil complications. He made new encampments on the line at Big Bayou Sara (whence Dunbar returned to his home near Natchez,) Thompson's Creek, Darling's Creek and Pearl or Half Way River. At Thompson's the observations covered the satellites of Jupiter by night, and the sun by day. After leaving Thompson's Creek they had much trouble crossing swamps and rafting over deep streams. Those named on his map are Comite, Beaver Creek, Amite, Ticfaw, Tanchipahoe, and Boguechitoe, all easily recognized. The soil generally was poor, covered with pines on the sandy uplands. He naively tells us that while at Darling's a confidential letter from the Spanish governor-general to a Spanish officer "fell into my hands for a few hours." What right he had to open and read official correspondence between officials of a power with whom his country was at peace does not appear, but espionage went so far at this period that an American commandant at Natchez had tried to intercept Ellicott's own letters. Evidently Ellicott thought the end justified his own means. For he discovered that improper correspondence had been carried on between Spanish officials and "some gentlemen in the western part of the Union," and that nearly \$20,000 had been shipped from New Orleans in that connection. Ellicott copied the "interesting parts" and dispatched them to the Department of State. This may account for Wilkinson's hostility.

November 17-19 was occupied cutting a road through the cane brake, building rafts and ferrying across Pearl River. Here they had trouble getting provisions. Supplies and the large sector had arrived by water at a bluff at the mouth of the river, but the boat could not pass two natural rafts that blocked up the stream, as they often did. Gillespie succeeded in cutting through, but provisions meantime ran out except beef. Fortunately a small supply was secured by pack-horse from Thompson's Creek, and after two weeks Gillespie came back from New Orleans, bringing a few barrels of flour. After arranging for Gillespie to correct back to Thompson's Creek, and Daniel Burnet to carry the guide line on to the Mobile, Ellicott himself went down the river, and thence through the Rigolets to New Orleans, where he arrived January 4, 1799. There he obtained supplies, conferred with Gayoso, and took observations with his six feet sector.

Meantime the guide line was plodding eastwardly through the forests. At 117 miles from the Mississippi the party passed the Hatcha-Lucha (Black Creek) and about 168 miles they crossed the Pascagoula (now Chickasawhay) a little above where the Slapacha (Leaf River) falls in. This last is called Estopacha in other documents of the time. Thence on nothing special occurred until they reached the Mobile River, where the guide line had diverged 517.44 perches too far north.

The observatory had been erected before Ellicott's arrival from New Orleans in his schooner by way of Mobile. Observations (solar and lunar, of Castor and Pollux, &c.) were made from March 18 to April 9, 1799. Here the large sector was used, and the transit and equal altitude instrument also. Finally a boundary stone was set up, marked (according to the Journal) on the north "U. S. Lat. 31° 1799," and on the south "Dominos de S. M. C. Carolus IV. Lat 31° 1799." This piece of brown sand-stone, about three feet high is still in place near the Southern Railway and is the basis of all surveys in south-west Alabama.^[151] During this time Gillespie went up the river to St. Stephens. With a Haddley's sextant he determined the latitude of that place, and he also made a sketch of the river. Ellicott himself determined the latitude of Mobile and the point at the mouth of the Bay.

Among the most serious problems of the survey was carrying the line across the Mobile River and adjacent swamps. The only feasible way was found to be for parties on each side to make fire and smoke signals at certain intervals on the high lands to the east and west.

While Ellicott was at Pensacola, with Colonel Hawkins, trying to arrange with the Spanish commandant to secure the neutrality of the Creeks, his party pushed the line forward from the Mobile to the Escambia and Coenecuh Rivers above their junction. The matter of the Indians was never satisfactorily arranged, but the survey proceeded. On the Coenecuh, however, he notes that the more pressing enemies were flies and "mosquitoes," which made every observation a matter of great pain. Among these was the transit of Mercury in May, 1799. Thereafter they crossed the White Cedar Creek, Yellow Waters, and between the 321st and 334th miles crossed and re-crossed the larger Choctaw River, now the Choctawhatchee, and its branch, the Pea River. Between that and the Chattahoochee were a number of streams and lakes, but he names only the Waters of Chapully (Chipola River.) In fact, little or no account is given of this part of the survey, as Ellicott was not in the party. He sailed from Pensacola and finally met the others on the Chattahoochee.

There he was surrounded by hostile Indians and had difficulty establishing in September 1799 the mound at the junction of the Flint. He then left the party and went by sea around Florida to the St. Mary's, while Gillespie apparently worked overland to the sources of that river. There, as at the beginning of the Mississippi, Ellicott built a terminal mound.

But at the Chattahoochee, 381 miles from the Father of Waters, ended Mississippi Territory. And there we must bid adieu to Ellicott and the south line alike of Mississippi and of Alabama. Spain retired below that line in 1798-9, and before 1820 the United States had acquired the territory south of it even to the Gulf. As a boundary between countries the parallel of 31° has become obsolete; but the Quaker's work in running out the old British line still remains important, for it separates much of Mississippi from Louisiana and much of Alabama from Florida. The stone on Mobile River is only a point of departure in surveying; but the mounds on the Mississippi, the Chattahoochee and St. Mary's bound civilized States instead of savage hunting grounds, as when they were made, and one at least still bears Ellicott's name.

FOOTNOTES:

[\[143\]](#) Colonial Mobile, pp. 185, 294; 7 Statutes at Large, p. 55.

[144] 4, Am. Hist. Rev. p. 62, &c.; 7 Stat. at Large, p. 140.

[145] Ellicott's Journal, pp. 40, 177.

[146] But at least he did not turn cannon on Gayoso and compel him to evacuate, as stated (p.45) in Jones' Introduction of Protestantism.

[147] Ellicott's Journal, pp. 141, 282.

[148] Winsor's Westward Movement, p. 266; Ellicott's Journal, App. p. 45.

[149] Ellicott's Journal, App., p. 44, &c.

[150] Colonial Mobile, p. 342; Ellicott's Journal, p. 182.

[151] Picture in Colonial Mobile, p. 295, shows Ellicott to be inaccurate as to lettering.

ELIZABETH FEMALE ACADEMY—THE MOTHER OF FEMALE COLLEGES BY BISHOP CHAS. B. GALLOWAY, D. D.

I believe that Mississippi can justly lay claim to the honor of having established the first chartered institution for the higher education of young women in the South, if not in the United States. Though called an Academy, it did full collegiate work, had a high standard of scholarship, and conferred degrees. The institution was located at Washington, six miles east of Natchez. Washington had been the brilliant and busy little Territorial Capital, and was then the center of social and political influence.

A recent visit to the site of that venerable school enabled me to gather much valuable information about its work, and heightened my appreciation of its vast educative and spiritual influence upon the history and destiny of the Southwest. The walls of the spacious building still stand, but the merry voices that rang through its halls only live in the sweet echoes of a distant past. Borrowing a style of architecture from the Spanish of Colonial times, the structure was two and a half stories high, the first of brick, the others in frame. A fire consumed it twenty years ago, leaving only the solid masonry as a memorial of the educational ambition and spiritual consecration of Early Mississippi Methodism. Some of the grandest women of the Southwest received their well-earned diplomas within those now charred walls, and went out to preside over their own model and magnificent homes. The early catalogues contain the names of fair daughters who afterward became the accomplished matrons of historic families. For many years the Elizabeth Female Academy was the one institution of high grade in the entire South for the education of young women. All others have been followers and beneficiaries of this brave heroine of Mississippi.

The grounds and buildings were donated to the Mississippi Conference by Mrs. Elizabeth Roach in 1818, and in her honor the institution was called the Elizabeth Female Academy. The year following a charter was granted by the Legislature, of which this is a copy:

"An Act. To Incorporate the Elizabeth Female Academy.

"Be it enacted by the Senate and House of Representatives of the State of Mississippi in General Assembly convened, "That an Academy be, and is hereby established near the town of Washington, in the county of Adams, to be known by the name of the Elizabeth Female Academy, in honor of Mrs. Elizabeth Roach, the founder thereof, to be under the superintendence of John Menifee, Daniel Rawlings, Alexander Covington, John W. Briant, and Beverly R. Grayson, and their successors who are hereby constituted a body politic and corporate, to be known by the name and style of 'The Trustees of the Elizabeth Female Academy' and they and their successors are hereby made capable of receiving real and personal estate, either by donation or purchase, for the benefit of the institution, *not exceeding one hundred thousand dollars*, of suing and being sued, and of doing and performing all other acts, and shall possess all other powers, incident to bodies corporate.

"Sec. 2.—And be it further enacted, That all vacancies that may happen in the said Board of Trustees, either by death, resignation, refusal to act, or removal from the State, shall be filled by the members of the Methodist Mississippi Annual Conference: provided however, that all such vacancies may be filled by the said Board of Trustees, to continue until the meeting of the said conference next ensuing such vacancy, or until they shall fill the same.

"Sec. 3.—And be it further enacted, That the said trustees and their successors shall have the power to appoint their president, vice-president, and other officers, to engage such teacher or teachers as may be necessary for conducting the literary concerns of the Academy, to hold stated meetings of the board and to make all by-laws and regulations for the government of the institution and promoting piety and virtue among the students, but no religious test or opinion shall be required by the by-laws of the institution of the pupils admitted or to be admitted into said Academy. The president, or in his absence, the vice-president, may at any time call special meetings of the board by giving to each member five days notice of such meeting: the ordinary meetings shall be held on their own adjournment; Three members shall constitute a quorum to do business: the president, or in his absence, the vice-president shall preside, or in case of the absence of both, any member chosen by a majority of the members present shall preside.

"E. TURNER,

"Speaker of the House of Representatives.

"D. STEWART,

"Lieut. Governor, President of the Senate.

"Approved the 17th day of Feb., 1918.

"DAVID HOLMES,

"Governor of the State of Mississippi."

The "*announcement*" for the initial term appeared in the Mississippi State Gazette, of Oct. 24th, 1818, a paper published in Natchez, and was signed by B. R. Grayson, Secretary of the Board of Trustees.

The Academy opened its doors to pupils November 12th, 1818, under the presidency of Chilion F. Stiles, and with Mrs. Jane B. Sanderson as "Governess." Of the first President, and the first Lady Principal of that first college for young ladies in all the Southwest, the distinguished Dr. William Winans thus writes most interestingly in his manuscript autobiography:

"Chilion F. Stiles was a man of high intellectual and moral character, and eminent for piety. The Governess was Mrs. Jane B. Sanderson, a Presbyterian lady of fine manners, and an excellent teacher, but subject to great and frequent depression of spirits. This resulted, no doubt, from the shock she had received from the murder of her husband a few years previously by a robber____ Though a Presbyterian, and stanch to her sect, she acted her part with so much prudence and liberality as to give entire satisfaction to her Methodist employers and patrons. Some of the most improving, as well as most agreeable hours, of relaxation from my official duties were at the Academy in the society of Brother Stiles, who combined, in an eminent degree, sociability of disposition, good sense, extensive information on various subjects, and fervent piety, rendering him an agreeable and instructive companion. He was the only person I ever knew who owed his adoption of a religious course of life *to the instrumentality of Free Masonry*. He was awakened to a sense of his sinfulness in the process of initiation into that fraternity. Up to that time he had been a gay man of the world, and a skeptic, if not an infidel in regard to the Christian religion. But so powerful and effective was the influence upon him by somewhat in

his initiation, that from that hour he turned to God with purpose of heart, soon entered into peace, and thenceforth walked before God in newness of life, till his pilgrimage terminated in a triumphant death."

Mr. Stiles was succeeded in the presidency by Rev. John C. Burruss of Virginia, an elegant gentleman, a finished scholar and an eloquent preacher. The school greatly prospered under his administration, as it continued to do under his immediate successor, Rev. Dr. B. M. Drake, a name that will ever live among us as the synonym for consecrated scholarship, perfect propriety, unaffected piety, and singular sincerity. In 1833 Dr. Drake resigned the presidency in order to devote himself entirely to pastoral work, and was succeeded by Rev. J. P. Thomas; and in 1836 he gave way to Rev. Bradford Frazee of Louisville, Ky. Rev. R. D. Smith, well known throughout the Southwest for his rare devotion, was called to the president's chair in 1839.

Some of the by-laws adopted by the Board of Trustees for the government and regulation of the Academy, recall in a measure the rigid and elaborate rules prescribed by John Wesley for the school at Kingswood. A few of these by-laws I here reproduce.

"The President of the Academy____shall be reputed for piety and learning, and for order and economy in the government of his family. If married he shall not be less than thirty, and if unmarried, not less than fifty years of age_____.

"The Governess____shall be pious, learned, and of grave and dignified deportment____. She shall have charge of the school, its order, discipline, and instructions, and the general deportment and behavior of the pupils who board in or out of commons_____.

OF PATRONESSES.

"On the last day of every academic year, the Board of Trustees shall choose three respectable Matrons, who shall be acting patronesses of the Academy.

"It shall be the duty of the patronesses to visit the school as often as they think necessary, and inspect the sleeping rooms, dress, and deportment of the pupils, and generally the economy and management of the Academy,

and report the same in writing to the Board of Trustees for correction, if needed_____.

ON APPROPRIATION OF TIME.

"All pupils boarding in commons shall convene in the large school-room at sunrise in the morning, and at eight o'clock in the evening for prayers.

"The hours of teaching shall be from nine o'clock in the morning until noon; and from two o'clock in the afternoon until five; but in May, June and July, they shall begin one hour sooner in the morning and continue until noon; and from three o'clock in the afternoon until six, Friday evenings excepted, when the school shall be dismissed at five _____.

DISCIPLINE AND DRESS.

"No pupil shall be permitted to receive ceremonious visits.

"All boarders in commons shall wear a plain dress and uniform bonnets.

"No pupil shall be permitted to wear beads, jewelry, artificial flowers, curls, feathers, or any superfluous decoration.

"No pupil shall be allowed to attend balls, dancing parties, theatrical performances, or festive entertainments _____.

ACADEMIC DEPARTMENTS—COURSE OF STUDY

"_____The studies of the Senior Class are:

"*First Session.*—Chemistry, natural philosophy, moral philosophy, botany; Latin, Aesop's Fables, Sacra Historia, Viri Romae illustres.

"*Second Session.*—Intellectual philosophy, Evidences of Christianity, Mythology, general history, Latin, Cæsar's Bella Gallica.

"Students who have completed the full course above, shall be entitled to the honors of the institution, with a diploma on parchment, for the degree of *Domina Scientiarum*_____Those who have pursued with honor the whole course of studies, shall be entitled to remain one academic year, free of charge for tuition, and be associated in an honorary class, to be engaged in

the pursuit of science and polite literature, and ornamental studies. After which they shall be entitled to an honorary diploma ____."

The spiritual culture of the students was the supreme concern of the faculty. The Bible was systematically taught and revivals of religion were enjoyed. A notable one occurred in 1826.

The coming of Mrs. Caroline M. Thayer in the fall of 1825 was an epoch in the history of the Academy, and her administration marked an era. She was a remarkably accomplished woman with a genius for administration. Of her Dr. Winans, President of the Board of Trustees thus speaks:

"MONDAY, JAN. 16, 1826.

"In the evening I returned to Brother Burruss's, where I met Sister C. M. Thayer, who has come to take charge of Elizabeth Female Academy. She is a woman of middle size, coarse features, some of the stiffness of Yankee manners, but of an intelligent and pleasant expression of countenance; free in conversation and various and abundant in information. Rev. John C. Burruss, the President of the Academy, said: 'Mrs. Thayer is a most extraordinary woman; I have never seen such a teacher.'"

Again, under date of March 2d, 1826, in a letter to Rev. John Lane, Dr. Winans says: "The Academy is in a very flourishing condition—Sister Thayer is a tutoress of superior abilities, both as teacher and governess. We are very sanguine of the future usefulness and respectability of the Academy."

Mrs. Thayer was a niece of Gen. Warren, the hero of Bunker Hill, educated in Boston, warmly recommended by Dr. Wilbur Fisk, and before coming to Mississippi had made great reputation as an author and teacher. She had taught for a while with Rev. Valentine Cook on Green River, Kentucky, and had published a volume of essays and poems that attracted wide attention.

The editor of the *Southern Galaxy*, a paper published in Natchez, attended the semi-annual examinations at Elizabeth Female Academy in the Spring of 1829, and highly commended the institution, especially "the unquestioned capacity and superior accomplishments of the Governess," Mrs. Caroline M. Thayer. The eloquent address delivered on the occasion by Duncan S. Walker Esq., is published in full. In the list of young ladies receiving special mention for scholarship is found the name of "Miss

Martha D. Richardson of Washita, La." That fair daughter of the first college for young ladies in the South still lives in California as the widow of the late Bishop H. H. Kavanaugh.

In that same issue of the paper, March 26th, 1829, is this communication:

"TO THE EDITOR OF THE SOUTHERN GALAXY."

"Sir: The following lines are the production of a pupil in the Elizabeth Female Academy at Washington. If you think them worthy of a place in your paper, their insertion may aid the cause of female literature, by awakening emulation among your young readers, though their youthful author only intended them for the eyes of her preceptress.

"C. M. T."

WHAT IS BEAUTY?

'Tis not the finest form, the fairest face
That loveliness imply:
'Tis not the witching smile, the pleasing grace,
That charms just Reason's eye.

No, 'tis the sunshine of the spotless mind,
The warmest, truest heart,
That leaves all lower, grosser things behind,
And acts the noblest part—

That sunshine, beaming o'er the radiant face,
With virtue's purest glow,
Will give the plainest lineaments a grace
That beauty cannot show.

This face, this heart alone can boast a charm
To please just Reason's eye,
And this can stern Adversity disarm
And even Time defy.

—Margaret.

The annual commencement in the early summer was a great occasion. An elaborate notice of the same, which embraced Aug. 21st, 1829, was published in the papers of the young state—"the first detailed account of such an event in Mississippi." The essay of Miss Anna W. Boyd, who graduated with the honors of her class, appears in full. It will be interesting to many yet living for me to give the names of the graduates, and those distinguished in the several classes:

Miss Anna W. Boyd	Ireland.
Miss Susan Smith	Adams County
Miss Mary C. Hewett	Washington, Miss.
Miss Mary J. Patterson	Port Gibson, Miss.
Miss Sarah R. Chew	Adams County
Miss Eliza A. Fox	Natchez, Miss.

Honorary distinctions were conferred on the following pupils for proficiency in study and correct moral deportment:

First Class.

Miss Ellen V. Keavy	Pinckneyville, La.
Miss Martha D. Richardson	Washita, La.
Miss Mary A. Fretwell	Natchez, Miss.
Miss Maria L. Newman	Washington, Miss.

Second Class.

Miss Martha Cosby	Wilkinson County
Miss Sarah M. Forman	Washington, Miss.
Miss Catharine O. Newman	Washington, Miss.
Miss Susan C. Robertson	Port Gibson, Miss.

Third Class.

Miss Mary Scott	Alexandria, La.
Miss Charlotte C. Scott	Alexandria, La.
Miss Mary E. Gordon	Alexandria, La.
Miss Emily Vick	Vicksburg, Miss.
Miss Emily Smith	Adams County

Fourth Class.

Miss Charlotte Walcott	Vicksburg, Miss.
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Miss Mary A. B. Chandler

Pinckneyville,
La.

Fifth Class.

Miss Mary E. Roberts

Washington,
Miss.

Miss Matilda J. Nevett

Adams County

Sixth Class.

Miss Laura J. A. King

Adams County

Miss Martha B. Brabston

Washington,
Miss.

In that list of young ladies will be recognized a few honored matrons in the Southwest yet living, and many others will recall their grandmothers who have long been among the redeemed in heaven.

A Board of Visitors, consisting of such distinguished men as Robert L. Walker, J. F. H. Caliborne and Dr. J. W. Monette, attended that commencement, and made report as follow:

"____The most unqualified praise would be no more than justice for the splendid evidence of their close attention and assiduity, as exhibited on this occasion; and we take pleasure in giving it as our opinion, that such honorable proof of female literary and scientific acquirements has seldom been exhibited in this or any other country. And while it proves the order and discipline with which science and literature are pursued by the pupils, it proves no less the flourishing condition and the merited patronage the institution enjoys. Nothing reflects more honor upon the present age than the liberality displayed in the education of females; nor can anything evince more clearly the justness with which female education is appreciated in the South than this exhibition, and the interest manifested by the large and respectable audience during the whole of the exercises. The literary and scientific character of the Governess, Mrs. Thayer, is too well known to admit of commendation from us ____."

On account of the removal of the Capitol to Jackson, the shifting of the center of population, several epidemics of yellow fever and other causes, after varying fortunes, the Academy suspended. Ex-Chancellor Edward Mayes says of this institution: "In the decade from 1819 to 1829 its boarders amounted in number annually from 28 to 63." Mrs. John Lane, Mrs. C. K. Marshall, Mrs. H. H. Kavanaugh, Mrs. B. M. Drake, the mother

of the late Col. W. L. Nugent, the mother of the Rev. T. L. Mellen, and many other elect ladies were educated at that mother of female colleges.

The noble school continued its splendid work for more than twenty-five years, and laid broad and deep the foundations on which others have wisely builded.

EARLY HISTORY OF JEFFERSON COLLEGE.

BY MR. J. K. MORRISON

Jefferson College was incorporated by the Legislature of the Mississippi Territory on the thirteenth of May, 1802. The act of incorporation was entitled: "An act to establish a College in Mississippi Territory." The following named gentlemen attended a meeting of the Trustees of this institution, held January 3, 1803, viz: Wm. C. C. Claiborne, John Ellis, Wm. Dunbar, Anthony Hutchins, David Lattimore, Sulton Banks, Alexander Montgomery, Daniel Burnet, David Kerr, D. W. Breazeale, Abner Green, Cato West, Thos. Calvit and Felix Hughes.

John Ellis was appointed President *pro tempore* and Felix Hughes, secretary.

The Board then proceeded to elect their officers by ballot. His Excellency, Wm. C. C. Caliborne, was elected President, Sir Wm. Dunbar, Vice-President, Felix Hughes, Secretary, and Cato West, Treasurer. For some reason the last named officer declined to serve.

It was next moved that the following address be submitted to the National Government:

"To the Honourable Senate and House of Representatives of the United States in Congress assembled:

"We, the Trustees of Jefferson College assembled, agreeable to a law of this Territory, at our first meeting, beg leave to address the Honourable Legislature of the United States. The duty we owe to our Infant Institution, to the community of the Mississippi Territory, and to the United States calls on us to lay before you our wants and our prospects.

"Education in every state of the union has required, and we believe, met in some degree the fostering hand of public support. Every enlightened society, has been willing to contribute in some way to the cultivation of the minds of their rising generation, from whence so many public as well as private benefits have been found to flow.

"This society has laboured under peculiar Impediments to the pursuit of this object; lately emerged from the lethargic influence of an arbitrary government, averse from principle to general information our citizens have hardly as individuals yet become sensible of the necessity, and usefulness of Education; unaccustomed to act in concert their individual efforts have never aimed at more than private schools.

"The first attempt to institute a place of general education for the youth of this territory, has by a law of our Legislature, devolved on us. We are sensible of the usefulness of the design to ourselves and to our children. We are aware of the peculiar necessity of Public Education and general information, to enable us to maintain that Character we are called on to support, the Character of citizens of a Republic. Our insulated situation demands the means of education at home, and the infancy of our community and the circumstances already mentioned demand Patronage from our parent government.

"At a time when the true principles of Republicanism are more generally than ever diffused over the United States, when philosophy and Patriotism are so happily united in promoting the public good, we hope we shall not ask in vain. Our citizens may be tardy in learning the necessity of affording effectual support by voluntary contributions; our local government has no lands to bestow on us. But we trust the Legislature of the United States, in whom the right of our soil is vested, will give aid to an institution which will establish republicanism in the minds of the youth of this territory, and be the firmest bond of an attachment to the Union.

"In the Northwestern Territory, the general government acting on the ordinance of Congress has been attentive to the support of public instruction.

"Having a similar claim from a similitude of constitution, and such pressing inducements peculiar to ourselves, we rely with confident hope on your Honourable Body for such aid as you may judge proper."

The following resolution was also adopted:

"That a committee of the following members, viz: Messrs. Wm. Dunbar, Cato West, David Kerr, John Ellis, and Daniel Burnet be appointed to make inquiry as to the most convenient site for Jefferson College; to receive

proposals from individuals of any donations of lands for that purpose and to report to the Board at their next meeting."

On motion the following address to the citizens of the Territory was adopted:

"To the People of the Mississippi Territory:

"The Trustees of Jefferson College assembled at their first meeting embrace the opportunity of addressing you, our fellow-citizens of the Mississippi Territory, we are sensible of the difficulty of the Task to which we have been called by your representatives. A place of public education is to be created at a considerable expense without any public funds. The economy of our Legislature has not as yet suffered them to lay a tax on the community, to aid an Institution, which we hope will ultimately conduce to our public as well as private happiness. We are called on, therefore to supply the want of public funds by the liberality of private patriotism.

"Indeed when we look forward to the consequence of a successful attempt to raise a respectable school for the education of the youth of this Territory, we trust the enlightened citizens will not be wanting in furnishing the means essentially necessary.

"Our situation far remote from foreign schools, where a liberal education may be procured prevents our young fellow citizens generally from acquiring the advantages which a good school affords. If in a few instances parents send their children far from the inspection of their parental eye, great sacrifice must be made of parental solicitude and great hazard of the morals of the youth, and when these difficulties shall be overcome, young men having finished their education return among their fellow citizens perhaps with the power and inclination to serve them, but too much strangers for some time to gain their confidence. Having procured a distant education, they will enjoy little advantages over strangers who may emigrate to this territory from foreign countries or from some parts of the United States. Our citizens will not enjoy the advantage of a long personal acquaintance, to enable them to choose with judgement those whom they ought to encourage, as teachers of youth and preachers of religion and morality, as physicians, as lawyers, or as law-givers.

"But should the liberality of the public enable the patrons of Jefferson College to establish it as a public school for the Territory these evils would be succeeded by important Benefits. We should see our youth growing up under our own observation in habits of virtue and improvement. Those who should acquire public approbation by early talents and good behavior would be rewarded with the merited confidence of their fellow citizens on the entrance to public life, while strangers of merit would obtain a just share of public favors, our citizens would not be forced to employ persons unknown to them, to conduct their most important interests. Our young men living together while the social affections are yet untarnished by selfish views or party spirit would contract such firm attachments as would conduce gradually to obliterate that party rage which is the bane of our community too small to make divisions tolerable.

"From Jefferson College as a central school would emanate the taste and the knowledge necessary to make even a common education more reputable and more useful. In fine, our children being educated in the knowledge and Love of Republican Liberty would grow up to be the firm supporters of our Republican government.

"We do not pretend to undertake an enumeration of all the advantage, either public or private which the success of the present undertaking promises; but being deeply interested as well as yourselves in the event, we beg leave to offer you one more observation.

"Bountiful Providence has given to the citizens of this territory the means of procuring a Superabundance of wealth. It is an awful Truth, that it will depend on the education of the growing generation, whether a sudden increase of wealth will be the cause of a rapid increase in knowledge and rational refinement, or of luxury and unmeaning expense. As your growing riches then will furnish you with the happy means of forming the growing minds of your children to a rational love of good learning and virtue.

"So the danger of leaving your property to those who might not know how to use it usefully and innocently, shows the necessity of devoting a part of it to their Education.

"Such are our views, Fellow Citizens, of the importance of our present undertaking. We call on you then to lend your aid to an Institution, which will be devoted to increase the common happiness. All are interested, let all

contribute something to the public stock, let the rich give liberally and all others show their public spirit according to their abilities, Parents will meet their reward in possessing the means of promoting the real happiness of their children. Those who are not parents will enjoy the Benefit of living, in a society increasing in civilization and those arts and pursuits which are the ornaments of human nature."

A committee consisting of the following members, Messrs. Sulton Banks, David Lattimore and Wm. Dunbar was appointed to prepare the plan of a lottery for raising a sum not exceeding ten thousand dollars and to make a report to the next meeting of the Board of Trustees. This meeting was held at Selsertown. The committee appointed for the purpose of preparing a lottery scheme reported as follows:

That 2,000 tickets at \$5.00 a piece be sold, \$10,000.

No. of prizes:

1 of	\$2,000	is	\$2,000
2 of	500 each	\$1,000	
10 of	100 each	\$1,000	
20 of	50 each	\$1,000	
200 of	25 each	\$5,000	

The above prizes to be paid deducting 15% for the College.

A committee appointed to select a suitable location recommended one on the lands of Mordecai Throckmorton near old Greenville, in Jefferson county. The Board at its meeting agreed on this site recommended, and ordered their next meeting to be held at old Greenville, on the 11th of April following.

At this meeting the resolution proposing a site for the location of the college was repealed. The next meeting was held at Selsertown. At this meeting the Board on the 25th of July, 1803, accepted a donation of lands offered by John and James Foster, and Randall Gibson, adjoining the town of Washington, and embracing Ellicott's Springs.

The appeal to the public for aid was unproductive; that to Congress was responded to by a grant of a township of land and some lots of ground in and adjoining the city of Natchez.

The next meeting of the Board of Trustees was held in Natchez, on the 28th of January, 1804. Colonel Cato West, at that time the acting governor of the Territory, reported "that the lots in the city of Natchez, and an out-lot adjoining the same, granted to the college by Congress, had been only located, and that upon these lots were several valuable buildings." But a private individual and the city of Natchez laid claim to these buildings and an act was passed in Congress regranting them to Natchez.

Appeals were made to the public but were not responded to. A loan from the Legislature was prayed for but all the efforts on the part of the trustees amounted to nothing.

The Trustees were reassembled in April, 1810, having had no meeting since December 21, 1805.

In the meantime the Washington Academy had been established and conducted by Rev. Jas. Smylie. Subscriptions were raised and frame buildings erected on the college grounds.

A meeting of the two Boards was held and the building of the Academy and the subscriptions which had been raised for its support were transferred to the Board of Trustees of the prospective College.

The Board of the Washington Academy also had lottery tickets on sale, but found great difficulty in disposing of them.

Few of the tickets were sold, and fortunately for the institution the tickets calling for the largest prizes remained unsold. There was nothing gained from this and the next year the Board directed suits against some of the purchasers of tickets who had failed to pay for them.

The Academy buildings were placed in order and it was published that "an academy under the superintendence of Dr. Edwin Reese, assisted by Mr. Sam'l Graham would open on the first of January."

Nine years after the chartering of Jefferson College, it started as an academy, and as an academy it continued several years.

Soon afterwards the Trustees resumed their efforts to secure an endowment for the proposed College. The titles to the lots in Natchez were examined. In order to adjust the claims between the corporation of Natchez and Jefferson College, the matter was carried to law. In 1812 commissioners

were appointed for the recovery of such escheated property as belonged to the College, the Legislature having granted to it all escheated property for ten years. The authority of the Legislature was questioned in this matter, and it was carried before Congress. The Legislature was upheld in this and the College realized five or six thousand dollars, but lost heavily prosecuting their claims.

The Secretary of the Treasury, under the authority of an act of Congress passed the 20th of February, 1812, located on the 5th of June the township of land granted in 1803. The land selected was situated on both sides of the Tombigbee River. But nothing was realized from this until 1818.

In 1816, six thousand dollars to be paid in annual installments was granted by the Legislature. This money was for the purpose of hiring an instructor.

Mr. M'Allister, who was teaching at the time in Kentucky, was employed, and took charge of the Institution in 1817. In the August following the contract for the last building was let out.

In 1818, the rapid immigration to Alabama caused an increase in the value of the Tombigbee lands. An agent was sent to Alabama, who leased the lands owned by the College for ninety-nine years. About eight thousand dollars was received as the first payment, and the remaining installments amounting to more than twenty-five thousand dollars were to be paid in two, four and six years. With such an improved state of affairs the Board deemed it wise to borrow money to hasten the completion of the buildings then in progress. Nine thousand dollars was obtained from the bank and four thousand from the state.

The trustees were disappointed, however, in the expected revenues from the Tombigbee lands. The government in 1820 found it necessary to adopt measures for the reduction of the enormous debts of those who had contracted for lands in more prosperous times.

Liberal discounts were offered to its debtors, also the privilege of giving up the lands they had purchased. There was a great depreciation in the value of the lands at this time, and the purchasers were glad to surrender them to the government.

The trustees offered an abatement of one-half. But all, with one exception, gave the land to the government, as the greater portion of it was found to be

of no value. This source of revenue to which the trustees had looked forward with such sanguine expectations had been destroyed, heavy debts had been contracted, and there were no means of discharging them. So the trustees and friends of the Institution assumed the debts individually.

The college had a difficulty from another source. In 1818 there was an assembly of the clergy of all denominations in Washington. Some of the clergy, believing Mr. M'Allister's opinion to be unorthodox, publicly denounced the Institution.

This did the College an injury that the trustees could not repair. Rev. R. F. N. Smith, an associate of Mr. M'Allister, was placed at the head of the Institution, but this helped matters very little.

The source of revenue having been exhausted, Mr. Smith resigned. From 1821, an academy was kept up under various instructors on a small scale.

In 1825, a measure was introduced into the Legislature to institute suit for the recovery of the money loaned, but the majority voted against it.

To afford the Legislature an opportunity of placing the institution more immediately under its control and management and to give to it that patronage and support to which it would be entitled as a State Institution, the Trustees voted to give the power of filling vacancies in their body to the Legislature. The act was passed in January, 1826. This right was exercised for many years.

In May, 1826, the Trustees were notified that the selectmen of the city of Natchez were going to make an appeal to the Supreme Court of the United States in the suit commenced in 1813, for the property given by Congress and claimed by the city of Natchez. The Trustees not being able to bear the expenses of a suit appointed a committee to compromise with the city, which they succeeded in doing.

About this time the Legislature was considering the idea of establishing a State Institution, and its executive committee at its session in Feb. 1829, was ordered to appoint three agents to inquire into all the means and resources in the state applicable to the purposes of general education; to confer with the Trustees of Jefferson College and ascertain the condition and prospects of the Institution and whether it was practicable for the

Trustees to surrender the charter to the State, and on what terms it would be done.

A meeting of the two committees was held on the 27th of October, 1829. Questions were asked the committee from Jefferson College concerning the college buildings; the endowment; the number and character of its Professors; its future prospects; the expediency of surrendering the charter; and concerning the money loaned to the Institution by the Legislature.

It was found that the charter could not be surrendered to another Institution erected in its stead.

This agreement was not made with the Legislature, so it was decided to put forth greater energies than ever to build up the Institution.

It was decided to adopt a system of Education similar to that of West Point and a contract was made with E. B. Williston and Major Halbrook.

They assumed all responsibilities, and hired a number of competent instructors, and depended upon their success to pay the salaries of each.

The College under this management opened on the first Monday of December, 1829. This plan was eminently successful and for the first time since the establishment of the Institution it was a success. A large number of students was attracted to it and it was viewed with pride and gratification.

THE RISE AND FALL OF NEGRO RULE IN MISSISSIPPI.

BY DUNBAR ROWLAND, ESQ.

Twenty-three years have passed into history since Adelbert Ames, the last of the "Carpet Baggers," was driven from his high position as governor of Mississippi by the representatives of an outraged and indignant people. A new generation has grown to manhood and womanhood since those stirring times that led up to and culminated in the exposure and condemnation of the most reckless and profligate political combination and blighting curse that has ever burdened a free people. As we have just passed the twenty-third anniversary of that great event it is fitting that its memories be revived in the minds of those who took part in it, that its lessons may be impressed upon those who are to complete and affirm its results. The uprising of the people of Mississippi against Negro rule was a most magnificent example of that spirit of Southern patriotism that animated the hearts; first of such men as Walthall, Lamar, George, Featherston, Stone, Lowry and Harris, and then spread to the hearts of every true man in Mississippi. The young men of the State, the rising generation, have the greatest reverence and love for the brave men who fought such a gallant fight for the preservation of white supremacy in Mississippi.

The social, industrial and political conditions existing in Mississippi two years after the close of the civil war can only be properly appreciated by taking a backward view of what had gone before. From 1817 to 1860 Mississippi was a garden for the cultivation of all that was grand in oratory, true in science, and enlightened and profound in law and statesmanship. Those were years of a golden age, an age of chivalry in which she vied with her sister States in the lists of that grand tournament that was to decide the fate of a nation. That period of the State's history produced a roll too tedious to read of noble spirits, bright wits, and elegant scholars, whose names and deeds are preserved in the records of an admiring people. Mississippi takes special pride in the character of Jefferson Davis, whose name will be

forever enshrined in fame's proudest niche, as the representative of Southern honor, chivalry and manhood.

"And he will live on history's page,
While cycling years shall onward move,
A victim of a senseless rage,
Now idol of his people's love;
When hate is buried in the dust,
When party strife shall break its spear,
When truth is free and men are just,
Then will his epitaph appear."

Mississippi was enriched by the power and ability of George Poindexter, her brilliant governor and United States senator; she points with pride to the executive ability and constructive statesmanship of Robert J. Walker, Polk's great minister of finance, and author of the Walker Tariff Bill; she looks back with wondering admiration to that king of orators and eccentric genius, S. S. Prentiss, who thrilled the American heart with his god-like eloquence; she holds sacred the memory of the gifted and peerless Lamar, who stood, unawed and alone, as defender and protector, in her darkest and most trying hour; and no stone that marks the last resting place of the great of earth can be worthier of the Roman legend:

"Clarus et vir fortissimus."

The year 1861 brought ruin and desolation upon the State. The signal gun fired from Fort Sumter was the beginning of a bloody fratricidal strife, and was the first act in the greatest drama of political and social revolution known to history. That revolution brought political, industrial and financial ruin upon Mississippi. When peace came, it found a race of ignorant slaves, masters of her political destiny. Then came the days of reconstruction, and of devilish animosity and hate; days when ignorance and vice reigned supreme, and the law of brute force was terribly triumphant. During that time a brave people were condemned to all the suffering and oppression which crime and corruption could invent, and tyranny inflict.

The political party then in power stands before the bar of an intelligent public sentiment of today a confessed and convicted author of the greatest and most criminal mistake of all time. The experiment of negro suffrage

was a most stupendous blunder. Under that vicious system society was depressed to a greater degree than could be borne. For ten long years was Mississippi ruled by the adventurer, who filled the mind of the negroes with a spirit of misrule, prejudice and hatred against their former masters. He found a people impoverished by the loss of millions in slave property, and made penniless by a long and protracted war.

The State was turned over as so much prey to the hungriest and cruelest flock of human vultures that ever cursed mankind and the pathway towards better things was stained with the life blood of her best and noblest. Under such a reign property was insecure. There was open and notorious plunder without the hope of redress. Ignorance, crime and hatred had enthralled the white people of the state. No greater burden has ever been put upon a suffering people, and while it lasted in Mississippi the state was overwhelmed by a horde of ignorant, immoral and degraded vagabonds.

The blighting curse of negro rule was patiently borne by the people of Mississippi until 1875, when a halt was called, and every white man in the State took a solemn oath before high heaven that he would free himself and his posterity from such a disgrace, or die in the attempt. That idea was the battle-cry under which the campaign of 1875 was fought. That campaign was the supreme effort of a brave people to save themselves and their posterity from the blighting ruin of black supremacy. It was the most remarkable demonstration of courage ever shown to an admiring world; it was the courage that dared death and defied the world in its struggle against infamy and dishonor. The struggle was begun by a well attended mass-meeting of leading men from every county in the State. Lawyers left their books, doctors their patients, preachers their sermons, merchants their stores, and farmers their fields, and formed themselves into a mighty force for the overthrow of misrule. These brave and determined men met together at the State capitol in Jackson, Jan. 4th, 1875, and organized what is known to history as the Taxpayers' Convention of Mississippi. The convention was called to order by Hon. W. L. Nugent, one of the great lawyers of the Jackson bar. Gen. W. S. Featherston, of Holly Springs, was called to preside over the deliberations of the meeting, and his pure patriotism and great influence gave force to a gathering that was prepared to call the people of the State to arms if need be, in defense of their rights and liberties. To Gen. Featherston and Judge Wiley P. Harris all honor is due for the brave stand

they took at that time. They were both remarkable men of fearless courage and sound judgement. The labors of the convention resulted in a petition being drawn up for presentation to the legislature setting forth the desperate condition of the State, demanding reform and economy, and appealing to the people to rise up in their might and overthrow their oppressors. An extraordinary increase in taxation was shown to be almost equal to confiscation. The convention of taxpayers claimed and showed conclusively that in 1869 the State levy was 10 cents on the dollar of the assessed value of lands. For the year 1871 it was four times as great and for 1874 fourteen times as great. Such a condition of affairs could only result in general ruin and bankruptcy. After the adjournment of the taxpayers' convention the delegates returned to their homes and organized local taxpayers' leagues in every county in the State. The property-holders determined to reduce taxation or refuse to pay their assessments, and, if necessary, to resist the collection of all taxes for the support of the State government.

A new legislature was to be elected in November, 1875, and the only hope of property holders to save their lands from confiscation was to elect a legislature composed of white men pledged to economy. The Democratic State Convention met in Jackson on August 3d, 1875, and was made up of the best men in every walk of life. Gen. Charles Clark was made chairman. He was an ex-governor of the State and was revered and loved for his patriotic devotion to his adopted State. Hon. L. Q. C. Lamar was a delegate to the convention from Lafayette county, and was the leader in every movement. He made the greatest speech of his life on the floor of the convention, and it served as a bugle call to action to the white people to throw off the ruin and dishonor that threatened them. The campaign was placed under the guidance of Gen. J. Z. George, as chairman of the Democratic State Executive Committee, and such men as Lamar, Walthall, Barksdale, Lowry, Money, Featherston, Singleton and Chalmers took the stump and aroused the people to action. The people laid aside their business for three months and worked for the protection of their homes and for the preservation of free institutions. The popular heart was fired with enthusiasm as never before. Public feeling found utterance in the following resolution that became the slogan of the campaign, and was passed by the people of every county in the State:

"Resolved, That without equivocation and without mutual reservation, we intend to carry out the principles enunciated in the platform of the Democratic party at Jackson, on the 3d day of August, 1875, and to this we pledge our lives, our fortunes, and our most sacred honor."

The State executive committee met in Jackson, August 15, and organized for the campaign, and its first act was to issue the ablest and most stirring address that ever came from such a body. The address was prepared by Gen. George, the chairman of the committee, and is a masterpiece of political literature, and closes with this appeal: "In this contest Mississippi expects each of her sons to do his duty; brace up old age to one more effort, nerve, manhood, to put forth all its strength, and invite youth to its noblest enthusiasm."

In the very beginning of the campaign it became evident to Governor Ames and the Republican boodlers that the election would result in their defeat. Ames, in his desperation over impending disaster, applied to the Federal government at Washington for United States troops to be used in terrorizing the people on election day. He boldly declared that the death of a few thousand negroes would make sure the success of the Republican party, and did everything in his power to bring about an armed conflict between the two races. Bloody riots occurred at Clinton, Yazoo City and Vicksburg, in which hundreds of negroes were killed. President Grant refused to send Federal troops into Mississippi, and his refusal was based on the report of Mr. C. K. Chase, an agent of the attorney-general of the United States, who had been sent to report on the application of Gov. Ames for troops, his report being that there was no legal excuse for the presence of armed men. The Democratic orators, on every stump in the State, declared that the negro had proven himself unworthy of the right of suffrage, and should be deprived of it. They showed that wherever the negro controlled, depression and ruin were evident on every side. They proclaimed aloud that the honest, intelligent and decent white people should and would control the State. Negro suffrage had been tried for ten years with terrible results. They pointed to the ominous fact that the Southern States were behind in the road for progress, just in proportion to the number of negro voters in each. The right of manhood suffrage was daily denounced as a doctrine that was ruining the State by making it a prey to the worst and most depraved elements of society. Bitter experience had taught that freedom could not, in

a moment, transform an ignorant slave into a good citizen. The most dangerous experiment in modern times in government had proved to be a most colossal blunder. The negro had slavishly surrendered his vote to the dictation of a band of petty thieves and plunderers, who were interested in nothing but gain. Where was the State, under such control, that showed even a trace of honest, intelligent government? The appeals to the people were effective. After the most remarkable of political campaigns a legislature, with an overwhelming Democratic majority, was elected. The legislature met in Jackson, January 4, 1876, and organized by the election of Hon. H. M. Street, of Prentiss county, speaker, and Hon. George M. Govan, clerk. It had among its members, such men as W. S. Featherston, W. A. Percy, H. L. Muldrow, W. F. Tucker, W. R. Barksdale, I. T. Blount, J. S. Bailey, J. G. Hall, G. B. Huddleston, G. D. Shands, George H. Lester and Thomas Spight, in the house; and J. M. Stone, R. O. Reynolds, John W. Fewell, R. H. Thompson and T. C. Catchings, in the senate.

At the time the legislature assembled, the executive and judicial departments of the government were under the control of the Radical party, made up of and dominated by negroes, disreputable adventurers and carpet baggers. Adelbert Ames was seated in the executive chair. At the close of the war he was in Mississippi as a colonel in the Federal army, and after the State government set up by the white people was overthrown by Federal bayonets he was made military governor. After a new constitution was adopted and Mississippi was re-admitted to the Union, Ames was elected by the legislature to represent the State in the United States Senate. James L. Alcorn was his colleague, and fierce conflict arose between the two over the control of the Republican party in the State. Alcorn was a man of admitted ability. He had been a lifelong Whig before the war, but became a moderate Republican after its close. When the constitution of 1868 was adopted the military government of Ames gave way and was succeeded by Alcorn as the first governor elected by the people after the new organic law went into force. Gov. Alcorn was a large property holder and really desired the peace and prosperity of the State. His plan was to unite the old followers of the Whig party for the control of the negro element, and save the white people from the ruin that would result from negro control. The new governor was soon found to be in the way of the negroes and carpet baggers, and he was sent to Washington as a senator of the United States.

Ex-Gov. Robert Lowry thus writes of Alcorn and Ames as Senators from Mississippi, in his history of the State:

"Governors Alcorn and Ames were occupying their seats in the United States Senate. The former, a man of high bearing, wealthy, full of courage, proud and imperious, had a supreme contempt for the pretensions of the latter, and asserted in substance, on the floor, of the Senate, that Ames was a fraud, that his poverty of intellect was only equalled by his arrogant assumption of unauthorized powers; that he was not, and never had been a citizen of Mississippi."

Ames made the best reply he could, but he was no match in debate for his opponent. The estrangement and breach between them culminated in both declaring themselves candidates for governor of the State. Ames gained the negro support and was elected, and ruled the State with all the autocratic power of a czar. The public scandals of the Ames administration soon became notorious throughout the State, and the legislature stood pledged to a full investigation of all executive acts.

Early in the session a resolution was introduced by Gen. Featherston providing for the appointment of a committee of five to investigate and report whether or not Ames had been guilty of high crimes and misdemeanors in office. The resolution was passed and Speaker Street appointed Gen. Featherston, Gen. Tucker, W. A. Percy, H. L. Muldrow and Fred Parsons. After an investigation, lasting thirty-eight days, the committee made a report recommending that Ames be impeached and removed from office for high crimes and misdemeanors. The report of the committee was adopted by the house, and W. S. Featherston, W. F. Tucker, W. A. Percy, H. L. Muldrow, W. R. Barksdale, and Thomas Spight were appointed managers to conduct the impeachment trial before the bar of the senate. Twenty-one articles of impeachment were presented by the committee, to the house and adopted. They contained specifications and charges, involving high crimes and misdemeanors in office. The senate proceeded to organize as a high court of impeachment, and summoned Gov. Ames to appear for trial. Chief Justice Simrall, of the Supreme court, appeared in the senate March 16, 1876, and after having the oath administered according to law by Associate Justice Peyton, announced that the trial of Adelbert Ames, governor of Mississippi, for high crimes and misdemeanors in office would begin the next day. It was a time of great excitement in Jackson, and that feeling spread all over the State.

Governor Ames tried every known means in his power to intimidate the legislature. He decided at one time to attempt to disperse the body with Federal troops, but President Grant would not furnish them for such a purpose. The next plan was to collect an army of negroes in Jackson and incite them to riot and bloodshed against the whites, but the cowardice of the negroes prevented its accomplishment. One of the most corrupt and colossal schemes of public robbery ever devised by a band of plunderers was being laid bare to the eyes of an indignant people, and every effort was made by the guilty officials to hush up the investigation of their delinquencies. At the beginning of the investigation the governor and his partners in crime assumed a bold front and defied the legislature to do its worst, but when they found that the investigation was backed by a public opinion that knew no turning, they began to weaken and plead for mercy. It was brought out in the investigation that the State was full of defaulting county treasurers and sheriffs who were partisan friends of the governor, and were allowed to retain their positions. The investigation developed that the office of State Treasurer was being filled by an official who had never given bond for the faithful performance of his duty. It was found to be the custom of the governor to remove judges from the bench when they made decisions against his friends, and one public official, the sheriff of a county, was removed by force of arms. Ames was employing the same methods that he put in force during his right as military governor, and was applying the rules of arbitrary martial law in times of peace. Incompetency and rascality reigned supreme. All legislation had been in the hands of ignorant negroes who for years, were intent upon nothing but public pilfering. On March 29th, 1876, the court of impeachment was opened, and the managers of the House appeared and announced themselves ready for trial. In the meantime Ames had become panic stricken over the certainty of conviction and offered to resign and leave the State if the impeachment articles were withdrawn. The one great object of the trial was to rid the State of Ames and his gang of corrupt officials, and the managers of the proceedings agreed to allow him to resign and the following order was made by the impeachment court: "That articles of impeachment heretofore preferred by the House of Representatives against his Excellency, Adelbert Ames, be and the same are hereby dismissed, in pursuance of the request of the House of Representatives, this day presented by the managers in their behalf." After

that order was entered, counsel for Ames offered the following from their client:

"EXECUTIVE OFFICE,

"Jackson, Miss., March 29, 1876.

"To the People of the State of Mississippi:

"I hereby respectfully resign my office of governor of the State of Mississippi." "ADELBERT AMES."

After the reading of the resignation, Mr. Pryor, attorney for the resigning governor, spoke as follows:

"Mr. Chief Justice and Senators—At the instance of my learned associates, I rise merely to return to the chief justice and the senators the expression of our grave sense of the courtesies and kindness which we have received, both from the learned chief justice and senators, and especially from our honorable adversaries, the managers on the part of the house."

By his resignation Ames practically admitted his guilt, and soon after left the State in disgrace. Hon. John Marshall Stone became governor of the State by virtue of his position as president pro tem. of the senate, one day after Ames' resignation. A better man was never made governor of any State, and with his administration commenced an era of peace and prosperity that continues to this day.

GLIMPSES OF THE PAST.

BY MRS. HELEN D. BELL

From my youth up "Historical Mississippi" has possessed a never failing charm__ books, papers and manuscripts I have faithfully searched, and my gleaning has brought me sheaves from many a field, where stronger hands have wrought.

I shall leave chronology and statistics to the members of the Association who are more capable of dealing with them, and shall give a few current events that interested our ancestors some sixty years ago.

In one of Irwin Russell's inimitable dialect poems, he makes an old negro preacher say:

"An' when you sees me risin' up to structify in meetin';
It's just clumb up de knowledge-tree an' done some apple
eatin'."

My "knowledge-tree" proved to be an old file of newspapers published from 1836 to 1843.

As far back as 1838 an active interest was taken in Historical Mississippi, and this Association, is not the first to try and preserve records and deeds, facts, traditions and legends of our beloved state.

A Lyceum flourished in the Natchez district, with Mr. Dubuisson as president. A notice of a meeting that was to be held in Washington, Miss., June 2d, 1838, says: "There is a proposition before the Lyceum to change its name to that of 'The Mississippi Philosophical & Historical Society.' It should be incorporated, as it bids fair to be the nucleus around which the taste and talent of this section of our state may rally."

Besides literature and history, an interest was taken by the men and women of this period in many other things. Realizing that Mississippi was an agricultural state, they formed an "Agricultural-Horticultural & Botanical Society," and one meeting was held April 28th, 1843, in the Methodist

Church in Washington, President B. S. C. Wailes in the chair. There was no public dinner, but every planter had enough along with him to supply a dozen more than his own family. Col. Wailes, Mr. Affleck and many others, we are told, kept open house; Mrs. Shields, Miss Rawling, Miss Newman and Miss Smith were appointed to examine and report on needle-work and other articles of feminine industry. They made their report through Mr. Joseph D. Shields, and awarded prizes to Mrs. Dr. Broome, Mrs. Anna D. Winn, Mrs. Sarah West, Miss Virginia Branch, Miss Eliza Magruder, Miss Julia Cashell, and Miss Mary McCaleb.

The women of the thirties had never heard of the "new woman" yet they were fully alive to their own interest. It is said that when the "married woman's property right" bill was up for discussion in 1839, it was passed mainly through the exertions and influence of Mrs. T. B. J. Hadley, who kept the most popular boarding house in Jackson. She had become enamored of the civil law principle in Louisiana, and was determined to have this statute in our state. How did she accomplish it? From the day that Adam ate the apple, women have had firm convictions as to the best way of bringing men to their "point of view." If any of Mrs. Hadley's boarders opposed this bill, she put them on short rations and they had no comfort until they gave in. By the way, it is believed that our Mississippi Statute on this subject—property rights of married women—was the first which was passed in any state in the Union, which was governed by the principles of common law.

Politics ran high; Whigs and Democrats were ready at all times to give reason for the faith within them, to fight for it, yea, even to die for it at need. But through it all ran an intense loyalty to the state. Prentiss was once on a boat coming to Natchez, when some one remarked that the Governor of Mississippi was a dog. "Sir," said Mr. Prentiss, rising, "you cannot call the Governor of Mississippi a dog in my presence; it may be that he is a dog, but he is *our* dog."

In 1843, the burning question was the payment of the state bonds issued by the Union & Planters' Bank. Feeling ran high, it was made an issue in the canvass, and the repudiators were successful. Even to this day we are made to feel the sting of that act, which was a blunder,—and Talleyrand tells us that "a blunder is worse than a crime." Many were the reasons given for the nonpayment, and in a speech delivered in 1843, at the Court House in

Natchez, Governor Tucker told his audience not to think for a moment that the *real* great seal of the state was affixed to those "fictitious and unconstitutional bonds." The Governor goes on to say that when the time came to affix the great seal, no seal was to be found, so "a Vicksburg artist was employed as a Vulcan to forge the seal, which was to make bondsmen of the proud and chivalrous people of Mississippi; he did his best, probably, but as the fates would have it, his eagle turned out to be a buzzard. We cannot but think," goes on the Governor, "that an over-ruling destiny controlled the hiding away of the state seal, so that its broad and honest face should never be seen on a badge of servitude to European note-shavers—and the Union Bank bonds no more have the seal of the state upon them, than the figure of the bond seal looks like an eagle."

On May 28th, 1838, a number of literary and scientific gentlemen, belonging to Natchez and vicinity, went to Selsertown for the purpose of making an excavation in the large Indian Mound, which was evidently a fortress and strong-hold of power in the olden times. The mound is an immense mural pile, with a watch-tower elevated many feet above the level surface of the mound at one side. It had a subterranean or covered way leading to its centre,—the traces of which still remained in 1838. The large mound is most admirably situated for defense, being based on a summit, from which there is a gentle declivity for many hundreds of yards in every direction, commanding a sweeping view of the horizon. It was said by the oldest inhabitants that when they first settled near the Selsertown mounds, there were traces of great roads more worn by apparent travel than any roads in existence in this part of the State now (1838), leading in different directions from the principal mound. This must have been a great central point of aboriginal power, the great metropolitan and kingly residence of the sun—descended dynasty of the Natchez Kings—a dynasty embalmed in story and song, and descended to us on the wings of legend and romance. The gentlemen were: Rev. Messrs. Charles Tyler and Van Court, Doctors Monette, Merwin, Benbroke, Inge, Hitchcock and Mitchell, Judge Thatcher, Prof. Forshey, C. S. Dubisson, J. A. Van Hosen, Thomas Farrar, Col. B. S. C. Wailes, Maj. J. T. Winn and others.

One of the great orators in 1838, was Rev. J. N. Maffett. He was much in demand for lectures and speeches, and was one of the most extraordinary

men of the age. It is said that for imagery, enunciation, intonation and a deep knowledge of the human heart, Mr. Maffett stood without a peer.

About 1843, Mr. Thomas Fletcher, of the Natchez bar, was quite a favorite public speaker. His style was said to be smooth, musical and polished.

Mississippians, in the years that are gone, were as generous and open-hearted as they are today. They gave presents, not valued by dollars and cents, but into which they put time, labor and love, as the following letter proves. It was sent with the cradle to a friend in Charleston, S. C.

"The body or frame of the cradle, is manufactured out of the shell of what we call the snapping turtle, that weighed 135 pounds caught by myself out of my own waters. The railing is constructed out of the horns of bucks, killed with my own rifle by my own hands. The rockers were made from a walnut tree that grew on my sister's plantation adjoining mine. The spring mattress, or lining, is stuffed with wool from my own sheep. The loose mattress is also filled with domestic wool, manufactured and lined by my own wife. The pillows are filled with feathers from our own wild geese, and have also been manufactured by my own hands, after having been slain by my own steady aim. The pavilion, which you will perceive is to be thrown over the canopy, was fabricated, fitted and contrived by my own right thrifty, ingenious and very industrious 'better half.' Accompanying the cradle is a whistle which was made by a friend residing with me, and out of a tusk of an alligator, slain by my own hand, as well as a fan, made also by the same friend out of the tail of a wild turkey killed by me; accompanying the whole is the hide of a panther, dressed after the fashion of the Chamois, the animal having been slain by my own hands, and with my trusty rifle. This is for the stranger to loll and roll upon when tired of his cradle."

It is to be hoped that these unique gifts into which the Mississippi planter, his wife, and friend, put hours of love-labor, are today the cherished heirlooms of some old South Carolina family.

So in a minor key I have told of the past. As I read these old files I lived over the lives of our ancestors. I could see the crowds and hear them cheering some favorite speaker—the audiences gathered to hear the words of eloquence from gifted tongues—the Indians stepped for me his "sun dance," I discussed with famous housewives the value of the articles made

by deft fingers, and sat with the planter by his fireside, forgetting that "the tender grace of a day that is dead" will never come back.

And may love for Mississippi,—her Past, Present, and Future grow ever in our hearts.

"Mississippi! what bright visions, what pleasant reflections, are associated with thy name! It is the land of flowers, of beauty, of natural wealth, of chivalry and unbending energy; The nursery of native genius and eloquence; The home of hospitality, the generous and confiding Patron of the unknown and friendless stranger! Thy majestic river, thy broad prairies, thy snow-white fields the very air we breathe—gladdens the heart, enlarge the soul, and stimulate to noble deeds."

HISTORIC ADAMS COUNTY

BY GERARD BRANDON, ESQ.

In the dim ages of the past, when our wondrous bluffs emerged from the inland sea which geologists tell us once swept over the alluvial lands of the Mississippi Valley, it would seem that the Great Spirit with special favor smiled upon and blessed that portion of his fair domain which is now embraced within the present limits of "Historic Adams County," as if to make of it an Eden for the Western World.

Perhaps no section of so limited an area has been more productive of the fossil remains of pre-historic animals, or has furnished so much to the collection of the geologist. It was largely from Adams County that Wailes, the geologist, obtained his collection which was afterwards purchased by the University of Louisiana. Mammoth Bayou, just beyond the limits of the City of Natchez, is so called on account of its so often returning to the light, remains of this gigantic animal, and it still continues to render its contributions. Indeed, there is scarcely a creek or water-course in the county that has not, at some time, contributed its share. Here also dwelt pre-historic man, the mound-builder, who has left in Adams County many of the monuments of himself, and notably the celebrated Emerald Mound, near old Selsertown,—one of the largest, loftiest, and most remarkable in the whole Valley of the Mississippi. And so, in later days, when the first of the white race came to this favored spot, they found here in the greatest beauty, abundance, and perfection, all the flora and fauna of the South. Chateaubriand, who during his exile visited the "Natchez Country," found here the inspiration and theme for writings which have made him immortal, and in his "Attala," "Rene," and in his great epic "The Natchez," has given us the impressions made upon his poetic imagination by the beauties of the landscape. And while the hand of the spoiler, man, has robbed the landscape of so many of its robes of natural beauty, there still remains enough to touch the fancy and impress the mind. We can still view the wondrous "Devil's Punch Bowls," in and just beyond the northern limits of Natchez, which, while the exact reverse of mountain scenery, presents a view almost as wild

and grand. The view from our lofty bluffs, of our mighty river, of the green plains of Louisiana beyond, of the sun as he sinks beneath the Western horizon, and of the moon as she silvers the river with her parting beams, are worthy of any painter's brush. The fertile valleys of the St. Catharine and Second creeks still present some remains of their former beauty and fertility, which made the Natchez Country, in its palmy past, the promised land for so many brave and adventurous spirits.

It was in this favored section that lived the celebrated Natchez Indians, whose name is perpetuated in that of our historic city, and who have left behind them a history of which a Spartan would have been proud. Their civilization was higher than that of the surrounding tribes, and their customs and religion were similar to those of the ancient Mexicans. Like the Mexicans, Peruvians, and ancient Persians, their god was the sun, and in the temple built for his worship the priests kept burning, day and night, the sacred fire. To the sun they sacrificed the first fruits of the chase and of war, and sometimes, (as did the Mexicans), offered human sacrifices, even of their own children, to appease their angry deity. They honored their chiefs with the title of "Suns," and their king was the "Great Sun."

Such were the Natchez Indians, as portrayed to us by history and tradition, in the year 1700, when first visited by Iberville, the great French pioneer. The tribe then had about twelve hundred warriors: but, according to their own account, had been much more powerful; being then reduced in numbers by constant wars with surrounding tribes. So impressed was Iberville by the beauty and natural advantages of the location, that he decided to plant a colony here. This design was not carried into execution however, until June, 1716, when Bienville, the brother of Iberville, built a fort within the present limits of Natchez, and called it "Rosalie." But peaceful relations with the Indians were of short duration, and a few preliminary murders on both sides were followed, in 1723, by the first general outbreak of the Indians. This was quelled by Bienville with characteristic cruelty and severity, which inflamed the fires of hatred and revenge in the breasts of the savages. Nor did the French adopt a policy which might have averted a catastrophe that was soon to come; but persisted in their course of treachery, aggression and oppression.

The Indians finally matured a plot to rid themselves of their enemies by a general massacre. The execution of the design was doubtless hastened by

the requirement of Chopart, commandant of Fort Rosalie, that White Apple Village, on Second Creek about twelve miles from Natchez, should be abandoned, so that it, with its surrounding fields, might be converted into a French plantation. On November 28th, 1729, the Indians, by stratagem gained admission into the fort, and the historic massacre began.

The governor general, Perrier, at New Orleans, as soon as the news was received, at once dispatched Chevalier Lubois, with a large force from that city to exterminate the Natchez. After a fierce but indecisive conflict, a truce was arranged, by which the Indians surrendered the prisoners in their hands. During the night the whole tribe crossed to the West of the Mississippi, and entrenched themselves near the junction of the Washita and Little rivers. Thither the vengeance of the French still pursued them, and the destruction of this interesting tribe is a matter of history.

It appears from the statements both of Monette and of Claiborne, in their respective histories, that the forts in which the Indians entrenched themselves, when attacked by Lubois after the massacre at Fort Rosalie, were near the junction of the St. Catherine creek with the Mississippi river. Both historians unite in stating that after their retreat to the West of the Mississippi, Lubois erected at Natchez near the brow of the bluffs, the terraced Fort Rosalie,—the remains of which were plainly visible when Monette wrote, but which, when Claiborne's history was written, had been largely effaced by the great landslide. But some traces still remain along the front a little distance below the Natchez compress. The name of this second Fort Rosalie, when occupied by the English, was changed to Panmure.

Both Monette and Claiborne clearly state that this second fort was not upon the same site as the original fort of the same name erected by Bienville, and where the massacre took place. Monette states that the first fort was remote from the bluffs, probably near the eastern limits of the city. Claiborne practically confirms him, stating that the original fort was some six hundred and seventy yards from the river. But its exact location is not known. Local tradition, however, erroneously points out the remains of the fort below the compress as those of the fort where the massacre occurred. This error is doubtless the result of confusion in the minds of persons not familiar with the historical facts, and arising from an identity of names. Tradition was certainly of more value years ago, when Monette and Claiborne lived, and they must certainly have had the benefit of it.

With the destruction of the Natchez Indians, the French colony located in their fertile country grew with great rapidity, but without events of more than passing historical interest. But the line of the Latin-French, claiming from the lakes to the gulf, and of the Anglo-Saxon, claiming from ocean to ocean, had crossed, and at the close of the great French and Indian Wars, by the treaty of Paris, Feb. 16th, 1763, the banner of France was lowered at Fort Rosalie, and instead the flag of England floated there, with the name changed to Fort Panmure.

Attracted by the fertility of the country, settlers in great numbers now began to pour in from Georgia, the Carolinas, and other English colonies. This remote settlement was not subject to the influences of the great American Revolution, and hither came many loyal to the British government, or wishing to be neutral in the war of independence. Consequently a strong English sentiment prevailed here during that period, as evidenced by the attack on Col. Willing, in 1779.

But the English regime was of short duration. War with Spain was begun, and in September, 1779, Galvez captured the British post at Baton Rouge, and in its surrender Fort Panmure was included. But so strong was the British sentiment, that the people of the Natchez district did not quietly submit to a change of rulers, and in 1781, there was a revolt against the Spanish power, which, however, Galvez very promptly suppressed. By the treaty of Paris, in 1783, Great Britain ceded to Spain all of the Floridas south of the 31st., parallel, all north of that line being recognized by her as within the limits of the United States, then acknowledged by her as an independent nation. But, under the British regime, the whole front along the Mississippi River, as far north as the mouth of the Yazoo, had been included in West Florida, and had passed to Spain with the surrender of Baton Rouge, in 1781. Thus being in possession by force of arms the Spaniards were loath to evacuate in favor of the United States, and with characteristic pertinacity retained possession till 1798, notwithstanding the treaty of 1783, and their recognition of the 31st., parallel as the boundary line by the treaty of Madrid in 1795.

During this period of wrongful possession, Spain dealt with this section as if it were really a Spanish province, plainly indicating her intention not to surrender possession except under duress. These seventeen years form one of the most interesting chapters in the history of Adams County. Roman

Catholicism was the state religion, and its church was the centre from which the city of Natchez was laid out. This church was built on the spot where the store of the Natchez Drug Company now stands. Whilst Protestants were tolerated, they were not free in the practice of their religion. Parson Cloud, the first Episcopal minister in this section, was persecuted and driven away, and many interesting accounts are extant illustrative of the spirit of Spanish bigotry and persecution. That portion of Natchez between the church and the bluffs was reserved for residences of the Spanish grandees,—the English, Irish, and American settlers being assigned to other portions of the town.

There are still to be found here several old houses built during the Spanish regime. They are recognizable from having a low brick basement surmounted by a wooden upper story,—built as if in anticipation of an earthquake,—a combination of residence and fortification. The old Postlethwaite house on Jefferson street is such a one. The Spanish made many grants of land, as though Spain were the lawful sovereign, which grants were, however, afterwards usually recognized by the American authorities when followed by possession. The old Spanish records in the office of the Clerk of our Chancery Court, are a treasure store for the antiquary and historian. These records are not quite complete, a portion having been carried away, (it is said to Havana) by the Spaniards when they evacuated Natchez.

But the United States would recognize no title by adverse possession on Spain to this fair land, and finally began to vigorously assert her rights. About Feb. 24th, 1797, Andrew Ellicott arrived at Natchez, accompanied by a sufficient military escort and clothed with power as commissioner of the United States to meet the representative of Spain, to mark out the 31st parallel as the boundary between the two dominions. He first camped near the present intersection of Wall and Jefferson streets and there hoisted the American flag.

The Spanish governor, Gayoso, resorted to various subterfuges and evasion to delay the fixing of the boundary line and the evacuation of Natchez. It was not till March 29th, 1798, that the Spaniards, after exhausting every excuse for delay, and under the influence of a popular uprising supported by the military forces of the United States, finally evacuated Fort Panmure. And then they left, not by the light of day, with military honors and with

martial music and banners flying; but like thieves, at midnight they stole silently away. It was only after this that Governor Gayoso, from New Orleans, issued commissions to Sir William Dunbar and Capt. Stephen Minor, as commissioners for Spain and in May, 1798, the work of surveying the 31st parallel was begun.

The State of Georgia had all along claimed as her own a large portion of the present State of Mississippi, including what is now the county of Adams. This territory she had organized as the county of Bourbon in 1785, and she attempted alone to assert her rights against Spain. There thus arose a conflict of claims between Georgia and the United States, which was finally adjusted and Mississippi Territory organized by Act of Congress, approved April 7th, 1798.

Natchez was made the first territorial capital, and Winthrop Sargent was appointed the first territorial governor. Sargent, by proclamation, on April 2d, 1799, formed the Natchez District into the two counties of Adams and Pickering,—the latter name being afterwards changed to Jefferson.

Under the new regime, population and wealth increased with amazing rapidity. Treaties were made with the Indian tribes, and great public roads were opened up,—notably the Indian trail known as the 'Natchez and Nashville Trace.' This was the great government mail and overland stage route from New Orleans to the North and East, in the early days before steamboats plied the water or railroads traversed the land. As a natural consequence it was infested in the vicinity of Natchez by daring highwaymen, noted among whom were the celebrated Mason and Murrel,—heroes of bloody deeds that would have made Dick Turpin pale with envy.

Along this route, at six mile intervals, were relay stations for change of horses and for refreshments. The first of these was the old town of Washington,—now a veritable deserted village. This town was laid out and named by Ellicott, who, during the delays incident to the evacuation of Natchez by the Spaniards had removed his camp hither to the banks of the St. Catherine creek. He camped by a beautiful spring that still bears his name, and which is now within the grounds of Jefferson College. Many years ago it was arched over, and a bath-house was supplied with its crystal water. But even the ruins of this have all disappeared. The old town of

Washington almost rivals Natchez in its historic associations. Here in 1803 was founded Jefferson College,—the oldest endowed institution in the Southwest, and from whence such men as A. Gratz Brown and Jefferson Davis were sent forth to fight the battles of life. Here also was the celebrated Elizabeth Academy for girls. The old building was destroyed by fire nearly twenty years ago, but its brick walls are still standing.

Washington was made the territorial capital of Mississippi by act of the legislature on Feb. 1st, 1802. Within my memory the old brick church (founded by the celebrated Lorenzo Dow), and which was also used as the state-house, and in which the constitutional convention of 1817 was held, was still standing, just within and to the right of the entrance to the campus of Jefferson College. The ruins were sold for old brick, and thus this interesting relic passed away. It was in this building that the preliminary investigation of the charges against Aaron Burr was held. He was arrested in January, 1807, near the mouth of Coles creek, some twenty miles above Natchez, brought to Washington, and released on bond (which he broke), with Lyman Harding and Benijah Osmun as sureties. The room occupied by him is still pointed out in the old Osmun residence on the "Windy Hill" plantation, now owned by Miss E. B. Stanton. It is about five miles from Natchez.

In its day, the town of Washington was a veritable literary centre,—no doubt due to the influence of Jefferson College and of the Mississippi Society. Monette, the historian, and Wailes, the geologist, lived, died and are buried here, and their old homes still remain. Ingraham, the author of the "Pillar of Fire," at one time was a professor in Jefferson College. A few miles distant was the home of Claiborne, the historian, the rival and compeer of Prentiss.

At Washington Andrew Jackson was encamped in 1813, when he disobeyed the order to there muster out his soldiers, and instead of doing so, marched them back to Tennessee for the purpose. And here, a few days later, were brought some of the British prisoners captured at the great battle of New Orleans. Two miles from Washington was the home of General Felix Huston. Within its limits is the grave of Judge Thomas Rodney.

In the early days, before the institution of slavery had assumed its subsequent gigantic proportions, resulting in the concentration of great

landed estates in the hands of a few wealthy slave-owners, Adams county was divided into a great number of small farms, owned by white settlers. This is evidenced by a study of the titles of the great plantations, the records showing them to consist of consolidated farms, in many instances. This is further evidenced by the great number of private burying grounds scattered throughout the county adjacent to Natchez and Washington, in which are found tombs with inscriptions often a century old, and names without a living representative here.

But if slavery produced decadence in one way, it produced growth in another. Adams county, and especially the suburbs of the city of Natchez, became the home of wealthy families, owning broad acres, not only in this but in many other counties, and in the neighboring State of Louisiana. The beautiful description by Mrs. Hemans, of "The Stately Homes of England," would have applied almost without change to the ancestral residences occupied in ante-bellum days, by veritable lords of the manor, surrounded by all the luxury and refinement which wealth and slavery could produce. Some of these relics of an unforgotten past, still remain, such as "Elmscourt," "Gloster," "Llangollin," "Longwood," "Auburn," "Inglewood," "Monmouth," "Melrose," "Arlington," "Somerset," "Oakland," "Manteigne," "Richmond," "Devereux," "Concord," "Sweet-Auburn," "Brandon-Hall," "Selma," "Green-field," "Coventry," "The Forest," and others. Many more have been destroyed by the fire-fiend, and only ruins now remain. "The Forest" the home of Sir William Dunbar, and "Selma," the original residence of the Brandon family, were indigo plantations, in the days before cotton was king. "Concord" is of special interest, as an old Spanish house, and the residence of Governor Gayoso.

However, with the rapid increase in the population of the other portions of Mississippi, the controlling influence at first exercised by Adams County gradually disappeared. This was further affected by the jealousy of our wealthy land owners which was felt by the inhabitants of the newer and poorer interior counties. Finally by Act of Nov. 28th, 1820, the General Assembly gave to the present city of Jackson its name in honor of our great Democratic warrior and statesman, and made it the future capital of our State.

Thus the sceptre departed from Adams County; and while she has ever maintained a position in the State of which her citizens are proud, yet from

this time she has ceased to be the political centre of Mississippi, and the place where its history is made.

Yet hither must Mississippians ever come, as to the cradle in which the infant State was rocked. Hither will pilgrims journey to visit our historic shrines and to drink from the primal springs of a glorious past.

The immortal Prentiss won his first laurels here; and here his ashes rest (side by side with those of Governor Sargent); while in our city cemetery sleep Judge Joseph D. Shields, his pupil and biographer, and the historian Claiborne, his great political antagonist. Vidal, the last governor of despotic Spain in Louisiana, here sleeps his last sleep in the land of the free; as does also Alvarez Fisk, the benefactor of the schools and libraries of both Natchez and New Orleans.

Upon the rolls of our distinguished dead, besides those already mentioned, are the names of Thomas B. Reed, Edward Turner, Gerard C. Brandon, Christopher Rankin, Cowles Mead, Wm. B. Shields, S. S. Boyd, John A. Quitman, John T. McMurran, Robert J. Walker, Anthony Hutchins, George Poindexter, Lyman Harding, W. C. C. Claiborne, Adam L. Bingaman, Dr. Cartwright, Dr. Duncan, Dr. Jenkins, John I. Guion, Andrew Marschalk, and many others.

But it is not her public or professional men alone, who have made the Historic Adams County of the past. "Her merchants were princes," in the olden time, when ships from the ocean were moored at the wharves of Natchez, bringing and taking in exchange the treasures of the old world and the new. Here one of the first cotton compresses was established. The old Mississippi Railroad, built in 1836, but completed only as far as Hamburg, was the earliest in the South and one of the oldest in the Union. Its old road-bed and massive embankments still remain,—monuments of the enterprise of our forefathers.

Thus, even after her political supremacy had departed, Natchez still remained the financial and commercial centre of this State. But the great financial panic of 1836 and 1837 came, and like a cyclone swept our prosperity away. This was followed by the terrible tornado of May 7th, 1840, which laid our city in ruins, and numbered its victims by the hundred, and which is even yet recalled with dread upon each recurrence of its anniversary.

I have thus endeavored to present, in epitome, an outline of the history of Adams County, from its earliest settlement to within times too recent to require research by the historian. I have endeavored likewise to indicate a few of the most interesting spots which may be visited by the student of history coming into our midst.

THE HISTORICAL OPPORTUNITY OF MISSISSIPPI BY R. W. JONES, LL. D.

A writer truly and forcibly says that Americans have been much readier to do great deeds than to record them—to make those signal achievements that are worthy of remembrance than to be troubled with the tediousness of writing them. If this is true anywhere, it has in the past been unquestionably true of Southern people and Mississippians.

In a recent number of the *American Historical Review*, Albert Bushnell Hart discussed the "Historical Opportunity of America;" and this led me to think of the Historical Opportunity of Mississippi.

If anything great and systematic in the line of historical research and production is to be done in Mississippi we must have organization. The State Historical Society must have local co-operation; this can be best effected by Auxiliary Historical Societies co-operating with the Central Organization.^[152] The local Society is the natural centre of historical activity. We are highly gratified to report a decided revival of interest in history-writing since the organization of our State Society; at least there has been a revival as far as the production of monographs and brief biographies.

The following suggestions are presented with a hope that they will promote still further the historical work in the State:

- 1.—The educated young ladies of a locality can be interested in the finding, classifying, and development of historical material; the advanced pupils of High Schools and Colleges can be induced to prepare monographs as a part of their literary work, and all this material should be carefully calendared. We find as a general rule that the editors and proprietors of our newspapers are among the most public spirited of our citizens; they will gladly publish all local material of historical interest. In this way duplicate printed copies of all local material can be easily had and copies furnished for the archives and publications of the Mississippi Historical Society.

2.—An important auxiliary to history is picture-making. Experts with the Camera and amateur 'Kodakers' can facilitate greatly the work of the historian by making and cataloguing pictures of important objects and persons and depositing them in the archives of the local Society and of the State Society, so that the future historian who may not be able to visit the localities may yet have satisfactory knowledge of them. By these means and others we will cultivate a spirit that actively fosters history; we will cause search to be made for old Manuscripts, for files of old papers and every thing that will throw light on our past history. As the author, previously referred to, states, valuable manuscripts ought as naturally and as readily to find their way to the archives of history as the meteorite reaches the Mineralogical Museum.

3.—In the past history of Mississippi, a great many very valuable papers have been lost and destroyed because there was no known, safe depository for them. It need not be so any longer, as the State Historical Society has safe depositories. If we will all search for old historical material, write up facts and incidents of importance that have come under our observation, or otherwise to our knowledge, we will be doing a work creditable to our own names and we shall make possible the writing of a history that will represent in truthful aspect that noble race of Southerners to which we are proud to belong, and we shall show to the world the kindliness of those domestic institutions under which have grown up the fairest and most attractive women who ever graced human homes and the highest refinement and honor that have taken up abode among men.

4.—I have already referred to the public spirit of the press, to the important service it has rendered to our cause and the confidence with which we can continue to rely upon its co-operation. In addition, we *need* a fund for printing the Society's transactions and those important articles which receive the Society's endorsement. The State Legislature would do well to make an annual appropriation of a few hundred dollars to cover the cost of such publications and thus encourage the interest and pride of its citizens in that history which so intimately concerns them and their ancestors. Other states have set us a worthy example in this important matter. We hope the next legislature will give this matter favorable consideration.

5.—The marking of historical sights and buildings with marble or bronze, bearing appropriate inscriptions is a matter of the liveliest importance. To

some this may seem needless, but the more we study and observe it the more we are convinced of its educational and patriotic value.

One who goes to England and Scotland, and notes in their great cities such as London and Edinburgh the numerous monuments, mural tablets and other devices which commemorate events and characters and deeds will understand better than ever why the Englishman and Scotchman each is proud of his race, his government, his country.

In 1896, I visited the old town of Portsmouth, Va., and as I passed along the main street I saw a marble slab inserted flush with the pavement, and it told that on that spot the honored and loved Lafayette stood when he revisited the old Commonwealth and received the grateful greetings of a people for whom he had put his life into the perils of war.

The preservation of historical buildings and grounds and the devotion of them to public and patriotic uses is of the same character and importance.

The Ladies Association, aided by the eloquence of Edward Everett, purchased Mt. Vernon and donated it to the sacred purposes of patriotism. The preservation of the old church at Williamsburg, Va., of Independence Hall in Philadelphia, of Monticello as Jefferson left it—all these and other things of like character not only keep alive our interest in the great events of the past but sustain and justify our civic pride.

Is there nothing of this kind in Mississippi that is worthy of loving care and devotion to public use? Upon the extreme southern border of the State, where the Magnolia blooms in its native perfection, where the crested waves of the gulf work the sunbeams and the moon's silvery sheen into forms of laughing beauty that suggest the noble womanly character of the wife and the "daughter of the Confederacy," where the roaring sea, that cannot be hushed, tells of the unconquerable spirit of devotion to our people and their cause, that stood erect amid all the indignities and wrongs put upon it by a vindictive and cruel foe; here we have Beauvoir that is worthy of the care of all Mississippians, of all Southerners, nay of all American patriots. This property suitably marked, will furnish one of the grandest of object lessons, pointing to a man who bravely fought for his country on foreign soil, who stood as an embodiment of incorruptible principle and splendid ability on the floor of the United States Senate and who headed a great popular movement which produced the most philosophic, as well as

the most thrilling period of the history of this country and who shows us how a great man can maintain his manliness and command respect and admiration even in defeat and direst disaster.

Let us cultivate the spirit of history. Every intelligent citizen of our State should take an interest in the Mississippi State Historical Society and actively promote its objects. Let local Societies be formed and enthusiasm in their work be engendered; let every item of historic interest be put in typewritten or printed form and let copies be sent to the Secretary of the Mississippi State Historical Society and other copies lodged with the local Society. Let us be careful to mark and preserve every object of historic interest and to emphasize its value. Thus we shall show that we are justly proud of our race, our State and the achievements of our ancestors.

FOOTNOTES:

[\[152\]](#) For the general plan of such organizations, see "Suggestions to Local Historians" in the *Publication of the Mississippi Historical Society for 1898*.—*Editor*.

NANIH WAIYA, THE SACRED MOUND OF THE CHOCTAWS. BY H. S. HALBERT.

As Nanih Waiya is so often referred to in the folklore and traditions of the Choctaws, the writer of this paper has deemed it not amiss to give some account of this noted mound and, in connection therewith, some of the legends with which it is inseparably associated.

Nanih Waiya is situated on the west side of Nanih Waiya Creek, about fifty yards from it, in the southern part of Winston County, and about four hundred yards from the Neshoba County line. The mound is oblong in shape, lying northwest and southeast, and about forty feet in height. Its base covers about an acre. Its summit, which is flat, has an area of one-fourth of an acre. The mound stands on the southeastern edge of a circular rampart, which is about a mile and a half in circumference. In using the word "circular," reference is made to the original form of the rampart, about one-half of which is utterly obliterated by the plow, leaving only a semi-circle. This rampart is not or rather was not, a continuous circle, so to speak, as it has along at intervals, a number of vacant places or gaps, ranging from twenty to fifty yards wide. According to Indian tradition, there were originally eighteen parts or sections of the rampart, with the same number of gaps. Ten of these sections still remain, ranging from fifty to one hundred and fifty yards in length. All the sections near the mound have long since been leveled by the plow, and in other places some of the sections have been much reduced. But on the north, where the rampart traverses a primeval forest it is still five feet high and twenty feet broad at the base. The process of obliteration has been very great since 1877, when the writer first saw Nanih Waiya. Some of the sections that could then be clearly traced in the field on the west have now utterly disappeared. About two hundred and fifty yards north of Nanih Waiya is a small mound, evidently a burial mound, as can be safely stated from the numerous fragments of human bones that have been exhumed from it by the plow and the hoe. The great number of stone relics, mostly broken, scattered for hundreds of yards

around Nanih Waiya, shows that it was the site of pre-historic habitations. In addition to this, the bullets and other relics of European manufacture evidence the continuity of occupancy down within the historic period. The magnitude of these ancient works—the mound and the rampart—together with the legendary traditions connected with them, leads one irresistibly to the conviction that this locality was the great center of the Choctaw population during the pre-historic period. It should here be stated that the symmetry of the mound has been somewhat marred by a tunnel which was cut into it in the summer of 1896 by some *treasure-seekers*, who vainly hoped to unearth some wonderful bonanza from out the deep bosom of Nanih Waiya.

The name Nanih Waiya signifies Bending Hill. *Warrior*, the absurd spelling and pronunciation should be repudiated by the map and the history maker. The adjective *Waiya* signifies "bending," "leaning over," but it is difficult to see the appropriateness of the term as applied to the mound. According to the conjecture of the writer, the term was originally applied to the circular rampart, which the Choctaws may have considered a kind of *bending hill*. And in process of time the name could have become so extended as to be applied to the mound and rampart conjointly, and ultimately restricted to the mound alone, as is now the case in popular usage.

According to the classification of the archæologists, Nanih Waiya is a pyramidal mound, which kind of mounds is found almost exclusively in the Gulf States. The chroniclers of De Soto's expedition speak constantly of the mounds, and of these writers, Garcilaso de la Vega tells us exactly how and why they were made. According to his statement, in building a town, the natives first erected a mound two or three pikes in height, the summit of which was made large enough for twelve, fifteen or twenty houses to lodge the cacique and his attendants. At the foot of the mound was laid off the public square, which was proportioned to the size of the town. Around the square the leading men had their houses, whilst the cabins of the common people stood around the other side of the mound. From the "lay" of the land, the writer is satisfied that the public square at Nanih Waiya was on the north, between the mound and the small burial mound. In regard to the rampart, it was, no doubt, surmounted by palisades, as De Soto's writers particularly describe the palisaded walls, which surrounded the Indian towns. As to the gaps in the rampart, the writer is convinced that these gaps

were left designedly as places for the erection of wooden forts or towers, as additional protections to the town. The Knight of Elvas describes the town of Pachaha as being "very great, walled, and beset with towers, and many loop-holes were in the towers and the wall." La Vega mentions the towers made at intervals of fifty paces apart in the stockade wall of Maubila, each tower capable of holding eight men. Dupratz describing the circular stockade forts which he had seen among the Southern Indians, expressly states that "at every forty paces a circular tower juts out." Other statements from early writers could be given showing that wooden towers were built along at intervals in the stockade walls that surrounded the ancient towns of the Southern Indians. These statements, no doubt, give us the correct solution to the mystery of the gaps in the earthen rampart at Nanih Waiya.

While there can be no doubt but Nanih Waiya was the residence of the cacique and his attendants, in accordance with the statements of La Vega, other statements induce the belief that the summit of this mound was sometimes used as a place of sun-worship. Sun-worship, it should here be especially noted, was not performed as an isolated ceremony, so to speak, but came in as part of the programme in the transaction of all tribal business, both civil and military. The Choctaws were sun-worshippers, as were all the other branches of the Choctaw-Muscogee family. They regarded the sun as the type or essence of the Great Spirit. And as the Sun, or rather Sun-God, warms, animates and vivifies everything, he is the Master or Father of Life, or, to use the Choctaw expression, "*Aba Inki*," "the Father above." In like manner, according to their belief, as everything here below came originally from the earth, she is the mother of creation. Sun-worship, it may here be stated, prevailed to some extent, though in a much attenuated form, as late as seventy years ago among the Choctaws, as is evidenced by the actions of the Choctaws of that day during an eclipse of the sun. Even at the present day some faint traces of this sun-worship may be seen in the antics of a Choctaw prophet at a ball play. The chroniclers of De Soto's expedition give us frequent hints as to the prevalence of sun-worship among the Indian tribes of the countries which the Spanish army traversed. Two centuries later, William Bartram, in his description of the Creek rotunda, which was erected upon an artificial mound, gives an elaborate account of the ceremonies in the rotunda connected with partaking of the black drink. He states that the chief first puffed a few whiffs from the sacred pipe, blowing the whiffs ceremoniously upward

towards the sun, or, as it was generally supposed, to the Great Spirit, and then puffing the smoke from the pipe towards the four cardinal points. The pipe was then carried to different persons and smoked by them in turn.

Imagination, perhaps, would not err, if going back a few centuries, we could depict scenes similar to this as often enacted upon the flat summit of Nanih Waiya. And, perhaps, the superstitious reverence which the Choctaws have ever manifested towards this mound may be a dim traditional reminiscence of its once having been a great tribal center of solar worship. The aboriginal mind, in sun-worship, from viewing the sun as the Father of Life, as without the light and warmth of the sun nothing would spring into existence, no doubt instinctively turned to the earth as the Mother of Creation. If there was a father there must be a mother. In the course of time, what more natural that the pre-historic villagers living at the base of Nanih Waiya, with its tremendous pile ever looming up before their eyes, should finally come to regard it as the mother of their race. As far back as history and tradition run, Nanih Waiya has ever thus been regarded by the untutored Choctaws of Mississippi. During the various emigrations from the State, many Choctaws declared that they would never go west and abandon their mother; and that just as long as Nanih Waiya stood, they intended to stay and live in the land of their nativity.

There is another evidence that Nanih Waiya was a great national center during the pre-historic period. The ravages of civilization have still spared some traces of two broad, deeply worn roads or highways connected with the mound, in which now stand large oak trees. The remnant of one of these highways, several hundred yards long, can be seen on the east side of the creek, running toward the southeast. The other is on the west side of the creek, the traces nearest the mound being at the northeastern part of the rampart, thence running towards the north. Many years ago this latter road was traced by an old citizen of Winston county full twenty miles to the north until it was lost in Noxubee swamp, in the northeastern part of Winston County. These are the sole traces of the many highways, that no doubt, in pre-historic times, centered at Nanih Waiya.

Nanih Waiya is a prominent feature in the migration legend of the Choctaws, of which there are several versions. While the versions all agree, to some extent, in their main features, as the immigration from the west or northwest, the prophet and his sacred pole, and the final settlement at Nanih

Waiya, there is still much diversity in the respective narratives in regard to the details and other minutiae. The most circumstantial narrative is that of the Rev. Alfred Wright, published in an issue of the *Missionary Herald* of 1828. The version given in Colonel Claiborne's "*Mississippi*," pages 483, 484, is a very unsatisfactory version. The writer of this paper wrote this version in 1877, and sent it to Colonel Claiborne, who inserted it in his history. It was taken down from the lips of Mr. Jack Henry, an old citizen of Okitibbeha County, he stating that he had received it in early life from an Irishman, who had once lived among the Choctaws and who had heard the legend from an old Choctaw woman. As will be seen, the legend was transmitted through several memories and mouths before being finally recorded in printer's ink. It came not direct from Choctaw lips, and no doubt, was unconsciously colored, or its details imperfectly remembered in its transmission through the memories of the two white men. The version which is given below came direct from the lips of the Rev. Peter Folsom, a Choctaw from the nation west, who was employed in 1882 by the Baptists of Mississippi to labor as a missionary among the Mississippi Choctaws. Mr. Folsom stated that soon after finishing his education in Kentucky, one day in 1833, he visited Nanih Waiya with his father and while at the mound his father related to him the migration legend of his people, which according to Mr. Folsom, runs as follows:

In ancient days the ancestors of the Choctaws and the Chickasaws lived in a far western country, under the rule of two brothers, named Chahta and Chikasa. In process of time, their population becoming very numerous, they found it difficult to procure substance in that land. Their prophets thereupon announced that far to the east was a country of fertile soil and full of game, where they could live in ease and plenty. The entire population resolved to make a journey eastward in search of that happy land. In order more easily to procure subsistence on their route, the people marched in several divisions of a day's journey apart. A great prophet marched at their head, bearing a pole, which, on camping at the close of each day, he planted erect in the earth, in front of the camp. Every morning the pole was always seen leaning in the direction they were to travel that day. After the lapse of many moons, they arrived one day at Nanih Waiya. The prophet planted his pole at the base of the mound. The next morning the pole was seen standing erect and stationary. This was interpreted as an omen from the Great Spirit that the long sought-for land was at last found. It so happened, the very day

that the party camped at Nanih Waiya that a party under Chikasa crossed the creek and camped on its east side. That night a great rain fell, and it rained several days. In consequence of this all the low lands were inundated, and Nanih Waiya Creek and other tributaries of Pearl River were rendered impassable.

After the subsidence of the waters, messengers were sent across the creek to bid Chikasa's party return, as the oracular pole had proclaimed that the long sought-for land was found and the mound was the center of the land. Chikasa's party, however, regardless of the weather, had proceeded on their journey, and the rain having washed all traces of their march from off the grass, the messengers were unable to follow them up and so returned to camp. Meanwhile, the other divisions in the rear arrived at Nanih Waiya, and learned that here was the center of their new home, their long pilgrimage was at last finished. Chikasa's party, after their separation from their brethren under Chahta, moved on to the Tombigbee, and eventually became a separate nationality. In this way the Choctaws and the Chickasaws became two separate, though kindred nations.

Such is Mr. Folsom's version of the Choctaw migration legend. This national legend is now utterly forgotten by the modern Choctaws living in Mississippi. All, however, look upon Nanih Waiya as the birthplace and cradle of their race. She is "ishki chito," "the great mother." In the very center of the mound, they say, ages ago, the Great Spirit created the first Choctaws, and through a hole or cave, they crawled forth into the light of day. Some say that only one pair was created, but others say that many pairs were created. Old Hopahkitubbe (Hopakitobi), who died several years ago in Neshoba County, was wont to say that after coming forth from the mound, the freshly-made Choctaws were very wet and moist, and that the Great Spirit stacked them along on the rampart, as on a clothes line, so that the sun could dry them.

Soon after the creation, the Great Spirit divided the Choctaws into two "iksa," the "Kashapa Okla," and the "Okla in Holahta," or "Hattak in Holahta." Stationing one iksa on the north and the other on the west side of the sacred mound, the Great Spirit then gave them the law of marriage which they were forever to keep inviolate. This law was that children were to belong to the iksa of their mother, and that one must always marry into the opposite iksa. By this law a man belonging to the Kashapa Okla must

marry a woman of the Okla in Holahta. The children of this marriage belong, of course, to the iksa of their mother, and whenever they marry it must be into the opposite iksa. In like manner a man belonging to the Okla in Holahta must marry a woman of the Kashapa Okla, and the children of this marriage from Kashapa Okla must marry into the Okla in Holahta. Such was the Choctaw law of marriage, given, they say, by Divine authority at Nanih Waiya just after the creation of their race. The iksa lived promiscuously throughout the nation, but as every one knew to which iksa he belonged, no matrimonial mistake could possibly occur. This iksa division of the Choctaws still exists in Mississippi, but is slowly dying out under the influence of Christianity, education, and other results of contact with the white race.

The Choctaws, after their creation lived for a long time upon the spontaneous productions of the earth until at last maize was discovered, as they say, on the south side of Bogue Chito, a few miles distant from Nanih Waiya. There are several versions of the corn-finding myth, in all of which a crow and a child are main factors. Some of the versions state particularly that the crow came from the south, "Oka mahli imma minti tok." Other versions are silent on this point. The version here given is a translation by the writer of a version which was written down for him in the Choctaw language by Ilaishtubbee (Ilaishtobi), a Six Towns Indian. It is as follows:

A long time ago it thus happened. In the very beginning a crow got a single grain of corn from across the great water, brought it to this country and gave it to an orphan child, who was playing in the yard. The child named it *tauchi*, (corn). He planted it in the yard. When the corn was growing up, the child's elders merely had it swept around. But the child, wishing to have his own way, hoed it, hilled it, and laid it by. When this single grain of corn grew up and matured, it made two ears of corn. And in this way the ancestors of the Choctaws discovered corn.

"The great water" referred to in the above myth is the Gulf of Mexico. "Okachito," "great water," is the term invariably applied by the Mississippi Choctaws to the Gulf. If there are any traces of historic truth in the myth, we may infer that it contains a tradition of the introduction of corn into the Choctaw country across the Gulf of Mexico, from South America or from the West Indies. Professor J. W. Harshberger, in his monograph on the nativity and distribution of maize concludes that its earliest home was in

Central America, whence it spread north and south over the continents of America. In his map in which he gives the lines of travel by which maize was distributed, he has two lines in South America. One of these lines extends southward between the Andes and the Pacific as far down as Chili. The second line, after leaving the Isthmus of Panama, goes eastward along the north coast of South America until it enters Venezuela. From Venezuela, it goes to the West Indies and from the West Indies to Florida. This line of maize distribution harmonizes with the Choctaw tradition embodied in the myth that maize came into the Choctaw country from across "the great water," that is, from across the Gulf of Mexico. We learn from the early Spanish writers that there was intercommunication between the natives of Cuba and those of Florida. This being the case, corn could have been introduced among the pre-historic peoples of the Gulf states, across the Gulf, directly or indirectly from South America. To add completeness to the matter, according to Professor Harshberger's map, maize was introduced among the ancient peoples of the States lying north of the Gulf States by a line of distribution running from northern Mexico. It may be still further added that maize was certainly introduced into the Gulf States and into the Mississippi Valley before the beginning of the mound-building era, for only a sedentary agricultural people were capable of building the mounds.

Returning from this digression, the question may be asked, when was Nanih Waiya built, who were its builders, and how long was it in building? As to the last question, it would be a moderate estimate to say that it would take two Irishmen, equipped with spades and wheelbarrows, full ten years of constant toil to build Nanih Waiya and its rampart. The evidence shows that the earth used in making the mound was carried at least one hundred yards—an additional amount of toil that must be taken into consideration in making an estimate of the time consumed in building Nanih Waiya. Furthermore, it can be safely stated that the two supposed Irishmen could accomplish as much in one hour in the way of dirt-piling as three pre-historic natives with their rude tools of wood and stone, and baskets or skins for carrying the earth, could accomplish in one day. Nanih Waiya then must have been a long time in building. There must have been frequent interruptions of work to allow its builders time to raise crops, or in some manner to procure their supplies of food. The probabilities are, that while the work of building the rampart and the towers was carried on continuously until they were completed, so as to have the people of the

place well protected from their foes, the work of building the mound was a gradual one. A small or moderate sized mound may first have been built for the cacique and his attendants. In course of time, perhaps by his successor, the mound may have been made larger and higher, each succeeding cacique adding to its size until it attained its present dimensions. In short, the mound may have been the successive work of two or three generations.

As to the builders of Nanih Waiya, all the evidence shows that they were Choctaws. There is no evidence that any race preceded the Choctaws in the occupancy of Central Mississippi. And it is not at all probable that the Choctaws would have held this mound in such excessive reverence if it had been built by an unknown or alien race.

During the decadence of the mound-building custom, the mounds were gradually made smaller and many of these small mounds reveal relics of European manufacture, thus giving indisputable evidence of their modern age. From these facts it can be safely assumed that the larger the mound, the greater, presumably, is its antiquity. Nanih Waiya then, being the largest mound in Central Mississippi, may possibly date back to about fifteen hundred years ago, as the fifth century is given by the archæologists as the beginning of the mound-building age, which age lasted about one thousand years. It may be sufficient to say that Nanih Waiya is very old and was built by the Choctaws themselves, or possibly, granting it a very remote antiquity, by the primordial stock, from which, by subsequent differentiation, the various branches of the Choctaw-Muscogee family were formed.

In regard to the modern history of the mound, one event may be placed on record. At some time in 1828, at the instance by Colonel Greenwood Leflore, a great national council of the Choctaws convened at Nanih Waiya. The object of this council was the making of new laws so as to place the Choctaws more in harmony with the requirements of modern civilization. On this occasion severe laws were enacted against drunkenness and against the practice of executing women as witches. This assembly is remarkable as being the only known national Indian council held at Nanih Waiya within the historic period. How many Indian councils similar to this the mound may have witnessed in the pre-historic past can never be known.

This imperfect sketch of the Choctaw sacred mound is brought to a close with a hope, that, as long as Mississippi stands, so long may Nanih Waiya stand, steadfast and immovable, the greatest of Mississippi's pre-historic monuments.

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